

Legality due diligence tool for coffee produced in Colombia



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BACKGROUND

The European Union Deforestation Regulation

On 31 May 2023, the European Union (EU) adopted Regulation 2023/1115 on the placing on the EU market and the export from the EU of certain commodities and products associated with deforestation and forest degradation (EUDR). This regulation requires operators and traders who place products from supply chains associated with deforestation or forest degradation on the EU market to demonstrate that these products are traceable, deforestation-free and legal. The scope of application covers seven commodities: coffee, cocoa, rubber, oil palm, soy, cattle, and timber, as well as derived products such as chocolate and cocoa paste. The regulation is scheduled to enter into force on 30 December 2026 (and 30 June 2027 for micro and small enterprises established as such before 31 December 2020). Businesses affected by the regulation (operators and traders) will be required to carry out due diligence before exporting or trading their products, in order to gather sufficient information to demonstrate that the product presents no or negligible risk of non-compliance.

Consequently, operators trading coffee or derived products on the EU market must demonstrate that these products have been produced in accordance with the relevant legislation of the country of production (Article 3), which is defined as that relating to the legal status of the production area. The EUDR adopts a flexible approach, listing general areas of law rather than specifying

particular legal instruments, as these differ from country to country and may change over time. These areas are [for agricultural products, see Article 2.40 of the EUDR]:

- a. Land use rights
 - b. Environmental protection
 - c. Third parties' rights
 - d. Labour rights
 - e. Human rights protected by international law
 - f. Free, Prior and Informed Consent (FPIC), as set out in the United Nations Declaration on the Rights of Indigenous Peoples
 - g. Tax, anti-corruption, trade and customs regulations
-

In this context, understanding the legislative framework of the country of origin, identifying the relevant legal requirements for the product in question, and determining how to verify compliance with these requirements is a challenge not only for operators responsible for due diligence, but also for the competent EU authorities in charge of controls, and other stakeholders.

Overview of the coffee sector in Colombia

In Colombia, coffee is recognised as a crop of major cultural, social, economic and environmental importance and, unlike other agricultural activities, is not directly associated with deforestation. Although there are 76,633 coffee-growing Agricultural Production Units (APUs) located near areas of deforestation, representing around 16% of national production, studies agree that coffee is mostly grown under schemes that respect forest cover and may even promote conservation, especially when cultivated under agroforestry and shade systems. In this context, Colombia has made progress in commitments such as the deforestation-free coffee agreement, “Coffee, Forests and Climate” (2021), which aims to strengthen the adaptation and resilience of coffee-growing communities to climate change, promote sustainable livelihoods, and contribute to the protection and restoration of forests. Likewise, when forest areas are converted to coffee cultivation, the country requires rigorous technical and environmental processes that guarantee responsible land use. These practices help Colombian coffee establish its position not only as a high-quality product, but also as a production model that, when well-managed, supports sustainability and ecosystem conservation.

Coffee farming is highly significant at the territorial level. Coffee is grown in 610 municipalities in Colombia, representing more than 54% of all municipalities. The cultivated area is 840,000 hectares (18% of the country’s agricultural land) and is distributed across approximately 660,000 plots. Coffee production is

carried out by around 560,000 producers, 54.1% of whom cultivate one (1) hectare or less, 97% cultivate less than five (5) hectares, and only the remaining 3.1% can be considered medium or large producers (with more than 5 hectares). This concentration of coffee cultivation on small plots with limited cultivated areas is one of the sociodemographic characteristics of this population and reflects the prevalence of family farming within the coffee production model. The population in coffee-growing households amounts to 1.8 million people, with an average of 3.8 members per household. Most of them live in rural areas (81.2%), have an average of 5.5 years of formal education, and 27.4% live in households that have been affected by the armed conflict.

In economic terms, coffee accounts for 15% of agricultural GDP and between 5% and 8% of the total value of the country’s goods exports. Colombia achieved a historic record of 5.4 billion dollars in coffee exports for the 2024/2025 coffee year¹. The United States was the main destination, followed by the European Union and Canada². Domestic consumption continues to grow steadily and currently averages 2.2 kg per person per year.

The sector still faces structural challenges such as international price volatility, informal labour, harvest seasonality, deficiencies in processing and drying infrastructure, the growing risks of climate change, and the need for generational renewal. The National Federation of Coffee Growers

1. <https://sectorial.co/informativa-cafe/exportaciones-de-cafe-colombiano-alcanzaron-cifra-record-de-us-5-400-millones/>

2. <https://www.elpais.com.co/colombia/colombia-celebra-un-record-historico-en-exportaciones-de-cafe-en-el-ultimo-ano-asi-fue-el-registro-0119.html>

promotes comprehensive programmes aimed at addressing these challenges through innovation, environmental sustainability, gender equality, and institutional strengthening, which contribute to promoting continuous improvement throughout the Colombian coffee value chain³.

In short, Colombian coffee farming combines a broad social and rural base, a solid production

tradition, and significant weight in regional and national economies. Its major challenge is to transform these difficulties into opportunities through market diversification, technological innovation, improved social conditions, and the adoption of more sustainable practices, to ensure that coffee-growing families can live with dignity from their work and that Colombia continues to be recognised worldwide for its quality coffee.

Cooperation between Colombia and the European Union

In early 2024, with the aim of facilitating access for Colombian products to the European market under the EUDR Regulation, the European Forest Institute (EFI) and the European Union Delegation to Colombia agreed to support the analysis of the relevant legal framework for Colombia. This work, carried out within the framework of the Technical Facility on deforestation-free value chains, also includes activities to support the economic, environmental and social sustainability of productive sectors.

This tool is the result of collaboration between various public, private and civil society entities, with significant leadership from the National Federation of Coffee Growers (FNC) supported by EFI through the Technical Facility on Deforestation-free Value Chains, a programme funded by the European Union and supervised by the European Commission's Directorate General for International Partnerships (DG INTPA), and also the Forests, Climate and Peace Programme of the European Union Delegation in Colombia.

EFI's technical support was provided with assis-

tance for stakeholder management and communications under the "Traceability and Sustainability of Export Products" project implemented by the Particip and Idem Concept consortium (TRACE COL) and funded by the European Union. EFI, TRACE COL, the Ministry of Agriculture and Rural Development, and SwissContact formed the committee that served as the technical secretariat for the work and coordinated the development of the process.

The tool is based on the work of national and international experts in law and due diligence and on technical consultation with all national and international actors in the coffee sector: the Ministry of Trade, Industry and Tourism, the Ministry of Agriculture and Rural Development, the Ministry of Environment and Sustainable Development, the Rural Agricultural Planning Unit (UPRA), and ProColombia, as well as trade associations such as the National Federation of Coffee Growers (FNC), the National Federation of Cocoa Growers (FEDECACAO), the National Federation of Oil Palm Growers (FEDEPALMA), the APS Colombia Corporation, Asoexport, the National Association of Industrialists (ANDI), among others.

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3. <https://sites.google.com/cafedecolombia.com.co/fnc-consciente/fnc-consciente>; <https://federaciondefeteros.org/wp/sostenibilidad/>; <https://www.pactoglobal-colombia.org/objetivo-2030/federacion-nacional-de-cafeteros-lider-en-innovacion-y-sostenibilidad-para-beneficio-de-los-caficultores-del-planeta.html>



2

OBJECTIVES AND GENERAL APPROACH

The objectives of this tool are to promote a national and consensual vision of the Colombian legal requirements applicable to coffee production and trade, and relevant to the EUDR; and to provide recommendations for verifying coffee regulatory implementation and risk management, in support of operators' due diligence.

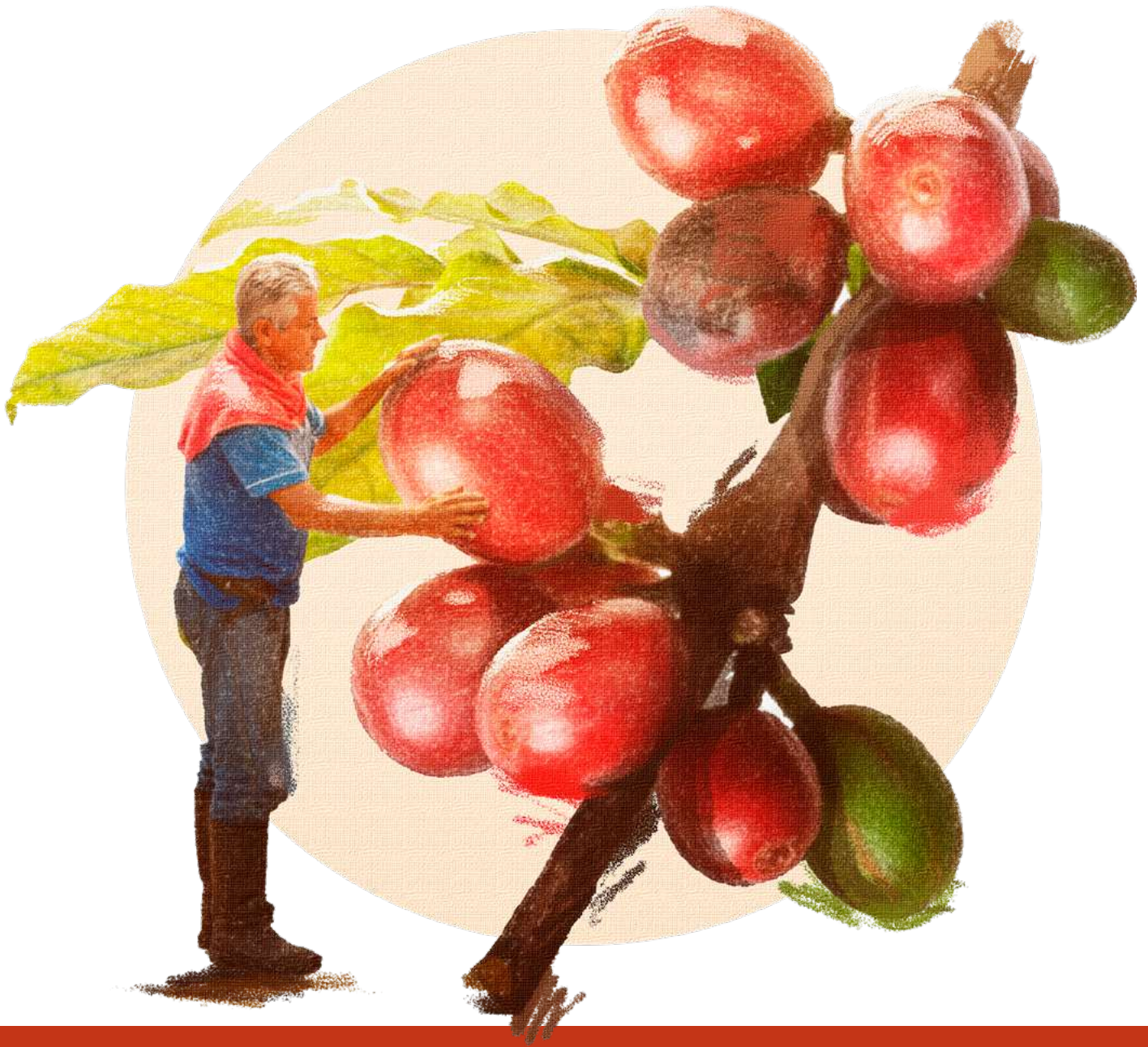
The tool was developed with the following aims:

- To support the harmonisation of operators' due diligence approaches
- To encourage the simplification of procedures for supply chain actors who may be required to provide data to their customers
- To facilitate a better understanding of national contexts by the competent authorities of EU Member States responsible for controls
- To ensure equitable access to information, reduce perceived risks, and position Colombian origin at a competitive advantage.

It is the responsibility of operators who place coffee or its derived products on the EU market to identify the relevant legal requirements for Colombia, within the meaning of Article 2(40) of the EUDR, and to adapt their due diligence to the risks identified. This tool provides guidance that can assist operators and other stakeholders in the sector in this regard. The tool is likely to evolve over time and be updated in response to various factors: possible legal reforms in the country, developments in public or private certification systems, lessons learned from the practical implementation of national due diligence recommendations, additional guidance provided by the European Commission or competent authorities, integration of best practices, technological advances, etc.



It is important to note that the results presented are not legally binding, do not impose any obligations on the relevant parties, and do not constitute legal advice.



3

METHODOLOGY FOR DEVELOPING THE TOOL

The study was divided into two steps:

Step
1

Mapping of the relevant national legal requirements applicable to the production and trade of Colombian coffee in the context of the EUDR, and collecting and supplementing with relevant information from the actors involved. The results of this step are captured in Annex 2 of this tool.

Step
2

Development of due diligence recommendations for operators, based on an analysis of the level of implementation of relevant legal requirements and existing means of verification.

Mapping of relevant national requirements

Based on various analyses of the legal framework for implementation in the country developed by the National Association of Industrialists (ANDI), the Coffee, Forests and Climate Agreement, GIZ, FEDECACAO, FEDEPALMA and FNC, the EFI team, together with Swisscontact Colombia, consolidated and supplemented in a first step all the relevant standards for the palm, coffee and cocoa sectors, comprehensively organised according to the Areas of law defined by the EUDR. These were structured into subcategories under a legal taxonomy developed by EFI in collaboration with Preferred by Nature, in order to facilitate their analysis (see <https://legalitynavigator.efi.int/>).

In addition, bilateral consultations were held with key actors, as well as socialisation and feedback meetings with stakeholder groups, including co-operatives and export companies from the productive sectors (see Annex 3).

For each subcategory, which groups together standards relating to the same objective, a legal requirement was drafted in clear and understandable language for operators, which was validated through multi-stakeholder exercises. Likewise, the relevance of each requirement for the sectors involved was determined collectively and by consensus, thus closing the first step of the process (see Annex 1 which details the legal mapping methodology).



Development of due diligence recommendations

The second step focused on developing a risk pre-assessment and began with the work of sectoral expert groups. For each relevant legal requirement, a search for information and analysis of existing data was carried out to establish the status of implementation and, where this was not possible, the associated level of risk. This level was determined based on available evidence, with the aim of formulating recommendations for due diligence actions to guide operators. These recommendations, based on sectoral risk per require-

ment, serve as guidance for operators to conduct their own risk analysis in their supply chains.

The tool is based on technical consultation with all national and international actors in the affected coffee, cocoa and oil palm sectors: administration and ministries, exporters, traders and chocolate makers, cooperatives and producer associations, certification bodies, civil society organisations and EU importing countries (see Annex 3).

Scope of the recommendations

Who are these recommendations aimed at?

These recommendations are aimed at the various stakeholders involved in verifying the compliance of coffee and derived products with the EUDR. They may be useful for:

- **Operators, within the meaning of the EUDR:** any natural or legal person who, in the course of a commercial activity, places Colombian coffee or derived products on the EU market or exports them.
- **Traders, within the meaning of the EUDR:** any natural or legal person in the supply chain, other than the Operator, who trades the products in question on the EU market.
- **Competent authorities of the EU:** authorities designated by Member States to ensure compliance with the obligations of the EUDR.
- **Actors in the supply chain in Colombia:** producers, cooperatives, traders, exporters and other stakeholders involved in coffee production and trade, from whom operators may request information, data and documents necessary to carry out their due diligence.
- **Colombian public entities:** government administrations and agencies responsible for regulating the coffee sector (production and trade), land, the environment, and sustainable development.
- **Civil society:** non-governmental organisations, associations and other actors that play a supervisory, supportive, and promotional role to ensure that coffee and its by-products comply with Colombian legislation and international commitments.

What are these recommendations for?

These recommendations can be used in different ways and at different times depending on the actors involved.

Operators and traders can use these recommendations to establish and document their due diligence system, ensuring that the coffee they trade complies with the legal requirements of the EUDR. They can use them to identify the documents and information that need to be collected or other actions that need to be taken with their suppliers in Colombia, and to assess the risks associated with their supply chain.

Competent authorities in the EU can use these recommendations as a standard for assessing the compliance of products traded under the EUDR. They can also use them as a basis for harmonising their controls and interpreting documents from Colombia.

Supply chain actors in Colombia can use these recommendations to understand the implications of the EUDR requirements for coffee and the expectations of European operators and traders subject to it. The recommendations can be used to structure and document the information they may provide to these operators and traders. They can also help them anticipate non-compliance risks and adapt their agricultural and commercial practices accordingly.

Colombian public entities can use these recommendations to strengthen controls on implementation of national legislation by producers and exporters, in order to ensure that coffee traded complies with current Colombian laws. They can also use it to support small producers in implementation by providing them with better access to information on current regulations and buyer requirements. They can build on these recommendations to make data more transparent and accessible, including facilitating access to administrative documents, to help operators demonstrate the legality of coffee.

Civil society can use these recommendations to monitor the implementation of Colombian legal requirements by companies and authorities. They can be used to conduct analyses and produce reports on the risks of non-compliance in coffee. They can also be used to raise awareness among producers, companies and consumers about the legality of Colombian coffee.

How to use these due diligence recommendations?

The recommendations presented in this document aim to address all relevant legal requirements identified by stakeholders during the first phase of this study. They cover, in particular, all the legal areas listed in Article 2.40 of the EUDR, in accordance with the precautionary approach adopted in the study (see Annex 1). However, a distinction is made between requirements directly related to the objectives of the EUDR and others, which are marked with an asterisk.

This flexible approach allows users of the recommendations to adapt their due diligence actions based on their interpretation of the scope of the EUDR.

Light or standard due diligence

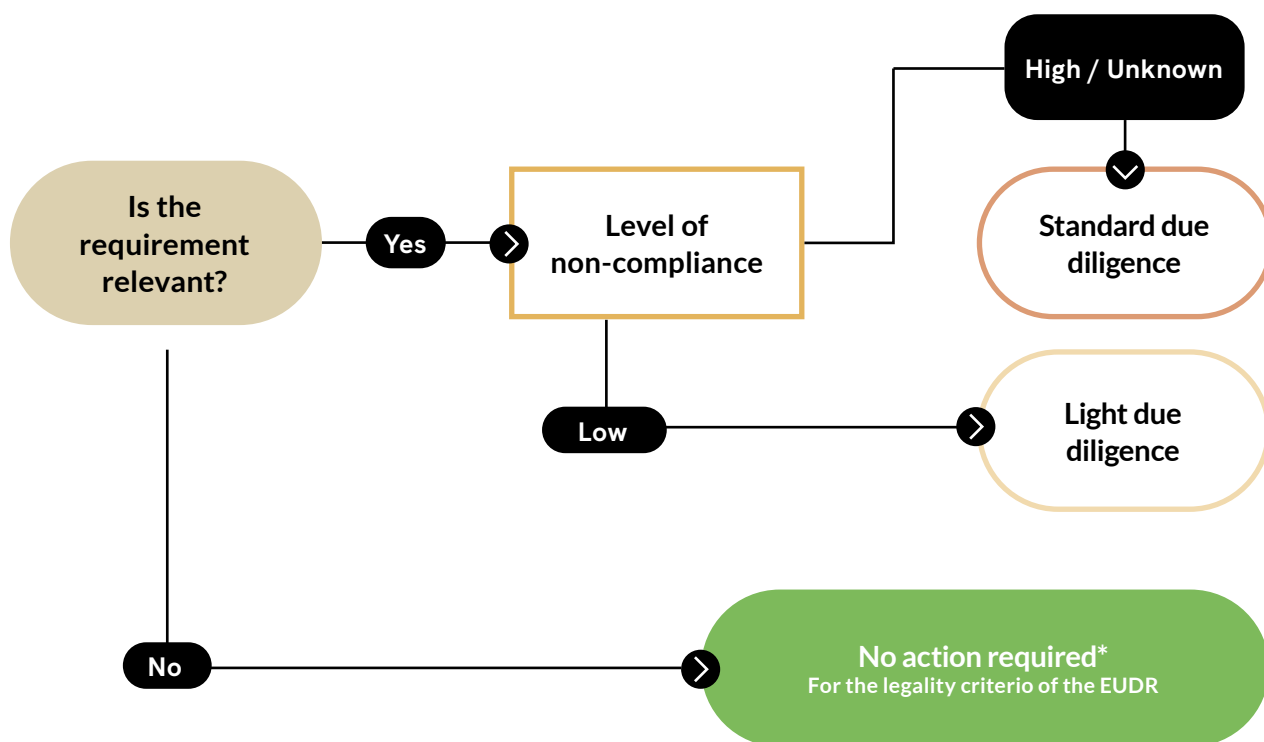
This study takes a pragmatic approach that seeks to identify due diligence actions proportionate to the risks, in order to limit the burden on those involved in the sector. The level of implementation has been assessed for each requirement considered relevant to coffee production and trade in Colombia. The level of implementation adopted by the study is based on relevant literature, expert knowledge of the sector, field surveys conducted as part of the study, and bilateral and multi-stakeholder consultations organised within the framework of the study.

When the level of implementation assessed for a requirement is high, the risk of non-compliance is considered negligible. Therefore, light due diligence actions are recommended. On the other

hand, when the level of implementation of a requirement is low or unknown, the risk of non-compliance is considered non-negligible. Therefore, standard due diligence is recommended.



Articulación entre nivel de cumplimiento y las recomendaciones de DD



However, this analysis is only indicative and has been carried out at country level only. **It is the responsibility of operators to carry out a non-compliance risk analysis of their products for each shipment.** Within this framework, these recommendations offer a range of due diligence options.

These actions are not prescriptive and are not presented in any specific order. It is up to operators to choose from these options based on the context, their knowledge of their supply chains, and the risks identified for coffee and derived products.

Role of certification in due diligence

Coffee certification systems are voluntary, public or private mechanisms that seek to ensure that coffee production and trade comply with certain environmental, social and economic standards. They can be established by governments, international organisations, NGOs or private companies.

Third-party certification and verification systems can play an important role in promoting sustainable agricultural and forestry practices and responsible sourcing. There are different types of certifications, which can be implemented at the national level on a mandatory basis or be private and voluntary (e.g. Rainforest Alliance, Fairtrade, 4C or Organic).

According to the EUDR, for the purposes of risk assessment, operators may take into account information from certification schemes or other third-party verified schemes. However, the European Commission's guidelines of 2 October 2024 indicate that self-declaration schemes that are not based on third-party certification procedures are, by definition, less robust due to a lack of independence and impartiality.

The Commission also specifies that certification schemes should not replace the operator's responsibility for due diligence. In other words, private certification schemes can be a tool to help European operators carry out due diligence

to comply with legality, deforestation and traceability criteria.

Operators must be able to justify why and how certification schemes comply with EUDR requirements. To do so, three elements must be taken into account:

- The coverage of relevant legal requirements for the EUDR by the certification system.
- The robustness of the certification system: in particular, certification scope (applicable to which actors in the value chain? to which products?); governance (management of internal procedures and updates, for example); accreditation processes of the competent control bodies; auditor qualifications and audit frequency; non-compliance management, impartiality and conflict of interest management, etc. This information must be periodically reassessed by the operator, particularly in relation to EUDR requirements.
- Traceability and the absence of mixing with non-certified products.

It should be noted that this tool has not carried out an exhaustive comparison of the coverage of the relevant legal requirements by certification systems used in the coffee sector in Colombia.



4

RECOMMENDATIONS FOR LEGAL DUE DILIGENCE IN THE CONTEXT OF NATIONAL COFFEE PRODUCTION



CATEGORY 1 LAND-USE RIGHTS

In Colombia, access and use of land are organised through various forms of tenure, including individual ownership, collective ownership—particularly in indigenous and Afro-descendant communities—as well as leasing and possession arrangements. These schemes allow different actors to carry out productive activities without formal land ownership being the only enabling condition. However, in certain areas of the country, careful analysis is necessary, as there may be a history or evidence of forced displacement and conflicts associated with tenure, which poses additional challenges to ensuring legal certainty and sustainable land use.

Section 1.2 refers specifically to the legal regimes for land use in Colombia. Land use is mainly regulated by the Land Use Plans (Planes de Ordenamiento Territorial, POT), which define how the territory can be occupied and used in each municipality, incorporating environmental, risk and sustainability criteria. Alongside these plans, there is an official technical instrument known as the National Agricultural Frontier (Frontera Agrícola Nacional), which defines the areas in which agricultural activities can be carried out and those subject to legal restrictions or exclusions, such as moorlands, natural parks or forest reserves. This tool is essential, as it enables the identification of risks and limitations in land use, ensuring that production, as in the case of coffee, is carried out in a manner compatible with environmental conservation and current regulations.

In Colombia, coffee growing takes place primarily within the National Agricultural Frontier. Of the 487,353 registered coffee production units, 46% are located within this frontier, 38% in areas with restrictions, and 17% in areas with legal exclu-

sions. Thanks to the Coffee Information System (SICA), which integrates more than 2.2 million georeferenced plots in 23 departments and 610 municipalities, it is possible to accurately determine the location of crops. Exclusions include strategic ecosystems such as moorlands, natural parks, and forest reserves, while restrictions refer to ethnic territories, environmental management areas, and disaster risk zones. This context highlights the need for coffee production to be developed under sustainability criteria and in harmony with environmental conservation and respect for collective territories.

The tables below, organised by area of law, show the due diligence recommendations agreed upon by the stakeholders.



Legal requirement	Context	Level of implementation	Due diligence recommendations
 Land use rights 1.1.1. Land tenure is established by individual private ownership or by possession (regular or irregular). NB: Land tenure may be individual or collective (see the following requirement).	The Coffee Information System (SICA) registers coffee producers and their form of tenure regardless of their relationship to the land. As of 31 December 2024, of the 661,309 coffee farms registered in the Coffee Information System (SICA), 52.6% correspond to holders, 45.7% to owners and 1.7% to tenants. In the coffee sector, some small producers cultivate land under irregular or informal possession, without holding formal title. However, cultivating without a formal title is not illegal. There are few conflicts over land tenure in production areas, and when they do arise, they are effectively resolved at the local level.	High level of implementation Light due diligence	Consultations with stakeholders Confirm that there are no complaints or litigation concerning the production plots in the coffee chain. This can be verified through the national or international press, NGOs, interviews with stakeholders, and consultation with official channels regarding complaints and reports. In rural areas, the National Land Agency (ANT) can be consulted to find out if there are any processes of formalisation or allocation of vacant plots, or complaints of irregular occupation of plots. If there are indications of complaints or litigation, then the following actions could be taken: Compilation and verification of documents <i>Formal titles:</i> Request the Certificate of Tradition and Freedom (<i>Certificado de Tradición y Libertad</i>) from the Superintendency of Notaries and Registries <i>Informal title:</i> Unregistered sale or informal inheritance. <i>Regular possession:</i> Supported by evidence of occupation and improvements (for eventual allocation). Note: Implementation of this legal requirement can be demonstrated with title deeds or their respective land certificates and transfer documents, or purchase agreements for land held without formal title. However, the absence of documentary evidence does not imply illegality or non-compliance, as it is not a requirement for tenure to be considered legal in the country.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Land use rights 1.1.2. Land tenure is established by collective ownership NB: Land tenure can be individual or collective (see previous requirement).	Colombia is characterised by a high level of legal and practical recognition of the rights of indigenous and Afro-Colombian peoples. Currently, 37.8 million hectares are registered under collective ownership, distributed among indigenous reserves and lands belonging to Afro-descendant communities. This represents approximately 34% of the national territory. In particular, indigenous community lands account for 28.4% of the country, while more than 5.6 million hectares have been titled for Afro-Colombian communities, mostly in the Pacific region (95.3%). Collective tenure is primarily concentrated in indigenous and Afro-Colombian territories, where coffee is currently grown in a community setting, as is the case in areas of the Pacific, Chocó, Cauca, etc. According to UPRA, the Agricultural Production Units (UPAs) that report coffee cultivation corresponding to the ethnic-cultural category represent 3.3% in indigenous reserves and 2.1% in Law 70 reserves of the total national UPAs (Source: Prepared based on agricultural frontiers and CNA, DANE 2014). Additionally, information reported in SICA in 2025 indicates that 3.2% of coffee producers cultivate in an indigenous reserve. In the emblematic Coffee Cultural Landscape, small, non-collective ownership predominates. Conflicts relating to collective land tenure in the coffee sector are very rare.	High level of implementation Light due diligence	Geospatial analysis Overlay the points or polygons of suppliers with layers of legally constituted collective territories (the Ministry of the Interior and the National Land Agency ANT have georeferenced information on collective territories). If overlaps occur, but the producers belong to the indigenous reserve or the Afro-Colombian community council, no due diligence action is required. If there are overlaps in areas of production and the producer is not registered in the census or registry of the reserve or collective territory, it is necessary to verify whether they have express authorisation from the representatives of the collective territory. Compilation and verification of documents A Certificate of Membership from the Ministry of the Interior may be requested at random (by sampling) to validate that the producer belongs to a given community or reserve. The internal authority of the collective territory (cabildo or community council) may issue a Certificate of Membership directly. In cases of production by persons who do not belong to the community, documentary evidence must be provided to show that the town council or community council has authorised production in their territories.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Land use rights 1.1.3. The farmer exercises the right to production on the plot through lease, usufruct, sharecropping agreement or provisional allocation contracts.. NB: This requirement comes into play/ is RELEVANT when the producer has mere tenure, i.e. does not have land ownership or possession as described in the above requirements.	Farmers who do not own or possess private land may exercise use rights through oral or written leases, usufruct agreements or provisional allocation contracts. In coffee production, this is uncommon, and no evidence has been found of farmers producing coffee on land over which they do not have direct possession or ownership. This is because the nature of coffee cultivation is permanent, which discourages land use without legal stability. In some cases, land ownership is passed down through family succession or informal agreements, without legal documentation proving the use rights. However, the absence of such documentation does not necessarily mean that it is illegal.	High level of implementation Light due diligence	Consultations with stakeholders Confirm that there are no complaints or litigation concerning the production plots in the coffee chain. This can be verified through the national or international press, NGOs, interviews with stakeholders, and consultation with official channels regarding complaints and reports. The National Land Agency (ANT) can be consulted to find out if there are any processes of formalisation or allocation of vacant land, or complaints of irregular occupation of plots. If there are indications of complaints or litigation, then the following actions could be taken: Compilation and verification of documents On a random basis (by sampling from the list of producers in your supply chain), request signed contracts or supporting documents that prove the status of the right to produce on another person's plot of land. In the case of oral contracts • Verification through records, with neighbours, associations or cooperatives. Verification of third-party testimonies. • Preparation of minutes with witnesses if necessary. Note: Implementation of this indicator can be demonstrated using documentary evidence, such as lease agreements and others. However, the absence of documentary evidence does not imply non-compliance.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Land use rights 1.1.4. The area of production has not been reported for situations of forced expulsion, abandonment or displacement of the original owner.	Although the coffee sector in Colombia is not associated with forced displacement, the intensification of the armed conflict, due to the incursion of new actors associated with drug trafficking, has created adverse situations for coffee-growing areas. The introduction of coca cultivation marked a structural change in land distribution, as these territories experienced displacement of smallholder farmers and/or forced land sales. Forced displacement in coffee-growing areas has been primarily linked to the armed conflict (guerrillas, paramilitaries and drug trafficking), affecting producing regions such as: • Eje Cafetero (Caldas, Quindío, Risaralda) • Northern Valle del Cauca • Southwest Antioquia, North Santander and Cauca However, if coffee-growing areas are affected by forced displacement, coffee cultivation is not the cause but rather the victim. No cases of forced displacement due to coffee cultivation have been identified, particularly given the permanent nature of the crop, which begins to produce after three years.	High level of implementation Light due diligence	Consultations with stakeholders Verify that there is no significant land conflict in the supply area by conducting interviews with stakeholders: mayor's office, local residents, NGOs and other local stakeholders. If there is evidence of conflict, proceed to the next step: Data collection and verification • Consult reports from the Victims Unit-Unified Victims Registry (RUV) or the Truth Commission, which offers interactive maps by municipality, for initial guidance. A productive plot on dispossessed land will only be determined to be illegal once a court ruling has been issued. • Consult the website of the land restitution unit https://www.urt.gov.co/, specifically RUPTA (the Single Registry of Abandoned Land and Territories) and the Registry System for Forcibly Dispossessed and Abandoned Lands (SRTDAF). • Consult the open data portal (https://www.datos.gov.co)

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Land use rights 1.1.4. The area of production has not been reported for situations of forced expulsion, abandonment or displacement of the original owner.	In fact, coffee cultivation has a significant history of positive transformation. According to records from the Coffee Farming Household Information System (Sistema de Información de Hogares Cafeteros, SIHC), in 2025, 20.6% of coffee producers were victims of the armed conflict, suffering forced displacement, and 20.8% of coffee producers have developed coffee crops in the municipalities most affected by the armed conflict and prioritised by the Peace Agreement (PDET municipalities), In Planadas, Tolima, Nasa indigenous communities reached agreements with the FARC to replace illicit crops with coffee, generating local peace and development processes. Associations such as ASOCANAFI and ASCISP have also led coffee production initiatives with a community and cultural approach. In Caldon, Cauca, Nasa and Misak indigenous peoples have created associations such as Un Grano Para La Paz (A Bean for Peace), where coffee is grown as a symbol of resistance, identity and reconciliation.	High level of implementation Light due diligence	Request support from a municipal representative or ombudsman, especially if it relates to land that may be subject to monitoring or conflict.

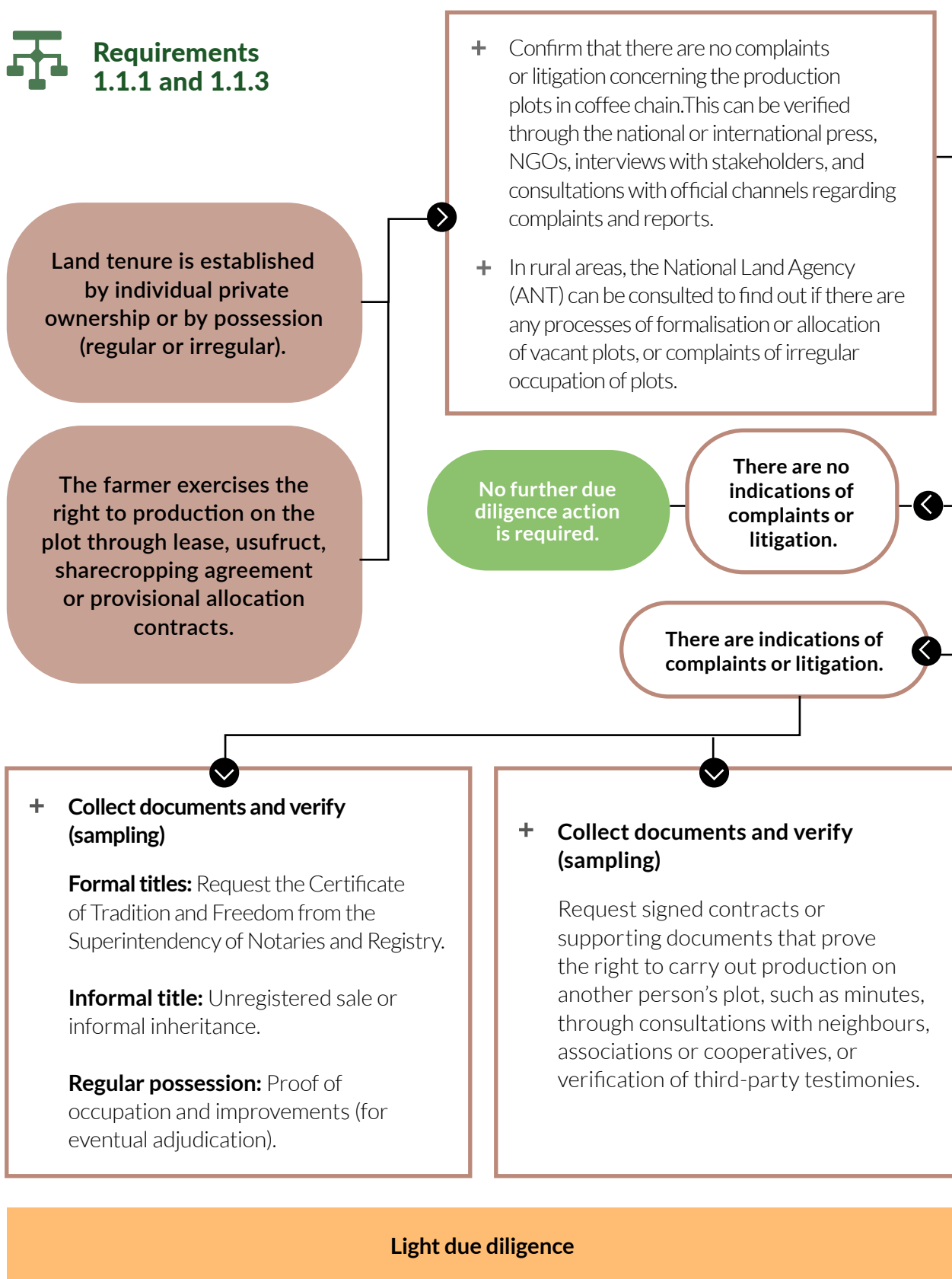
Legal requirement	Context	Level of implementation	Due diligence recommendations
 Land use rights 1.2.1. The plot is located within the national Agricultural Frontier; if it is located in conditional areas, production is only permitted under certain conditions that must be met.	Of the 662,537 coffee farms identified in the country, 83% are located within the National Agricultural Frontier. Within this area, 39% are in areas with some type of restriction, of which 17% fall within areas with legal restrictions. To verify this, information from 100% of the georeferenced coffee plots registered in the Coffee Information System (SICA) is used, which includes more than 2.2 million plots distributed across 23 departments and 610 municipalities in the country.	Variable implementation level Standard due diligence If the plot is within the agricultural frontier, the risk related to legality of land use may be low.	Implementation of procedures and processes First, consult the UPRA Rural Agricultural Planning System (SIPRA) and perform a geospatial analysis by cross-referencing the production polygons, coordinates, cadastral certificate of the plot, or land registry folio with the Agricultural Frontier (AF) map: - If the plot is within the Agricultural Frontier, no further due diligence is required for this requirement, except for plots near the AF boundary. - If the plot is located in a conditional AF or in an area excluded from the AF, additional DUE DILIGENCE actions are recommended. Document compilation and verification For plots near the AF boundary, where the scale does not allow for a clear determination of whether they are inside or outside, you can request (by sampling or systematically) the municipal land use certificate from the planning office to determine whether the land use is agricultural. For plots in exclusion zones: Data collection and verification Request the land use certificate from the environmental authority, and from your coffee supplier or directly from the producer if they have deforestation-free agreements, sustainable production agreements, or other enabling agreements for agricultural use. In cases of uncertainty, or to verify proper implementation of the conservation agreement, a field inspection may be conducted.
 Land use rights 1.2.2. Agricultural activity is permitted in accordance with land use ordinances.	In Colombia, the Land Use Plan (POT) is the municipal instrument that defines the use and occupation of urban and rural land. Within this framework, agricultural activity—such as the cultivation of coffee—is expressly permitted and regulated within the rural areas defined by each POT. Implementation of this requirement is covered by the previous one (requirement 1.2.1).	- If the plot is located within a conditional agricultural frontier, the risk may be medium. - If the plot is located outside the agricultural frontier, the risk may be higher.	

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Land use rights 1.2.2. Agricultural activity is permitted in accordance with land use ordinances.	The 2022-2023 Management Report to Congress of the Ministry of Housing, City and Territory (MVCT) indicates that, as of 30 March 2023, of the 1,103 municipalities in the country: • 192 municipalities have updated POTs • 877 municipalities have outdated POTs • 30 municipalities have POTs whose medium-term validity has expired • 4 municipalities have not formulated a POT		For plots in restricted areas: Data collection and verification • Ask the environmental authority in your jurisdiction about the type of conditions associated with agricultural production on the plot. • Request evidence or a statement from the producer that implements the applicable condition. • In case of lack of clarity, conduct a field inspection. Implementation of procedures and processes Where possible, support producers in obtaining formal permits for their agricultural activity in restricted areas.



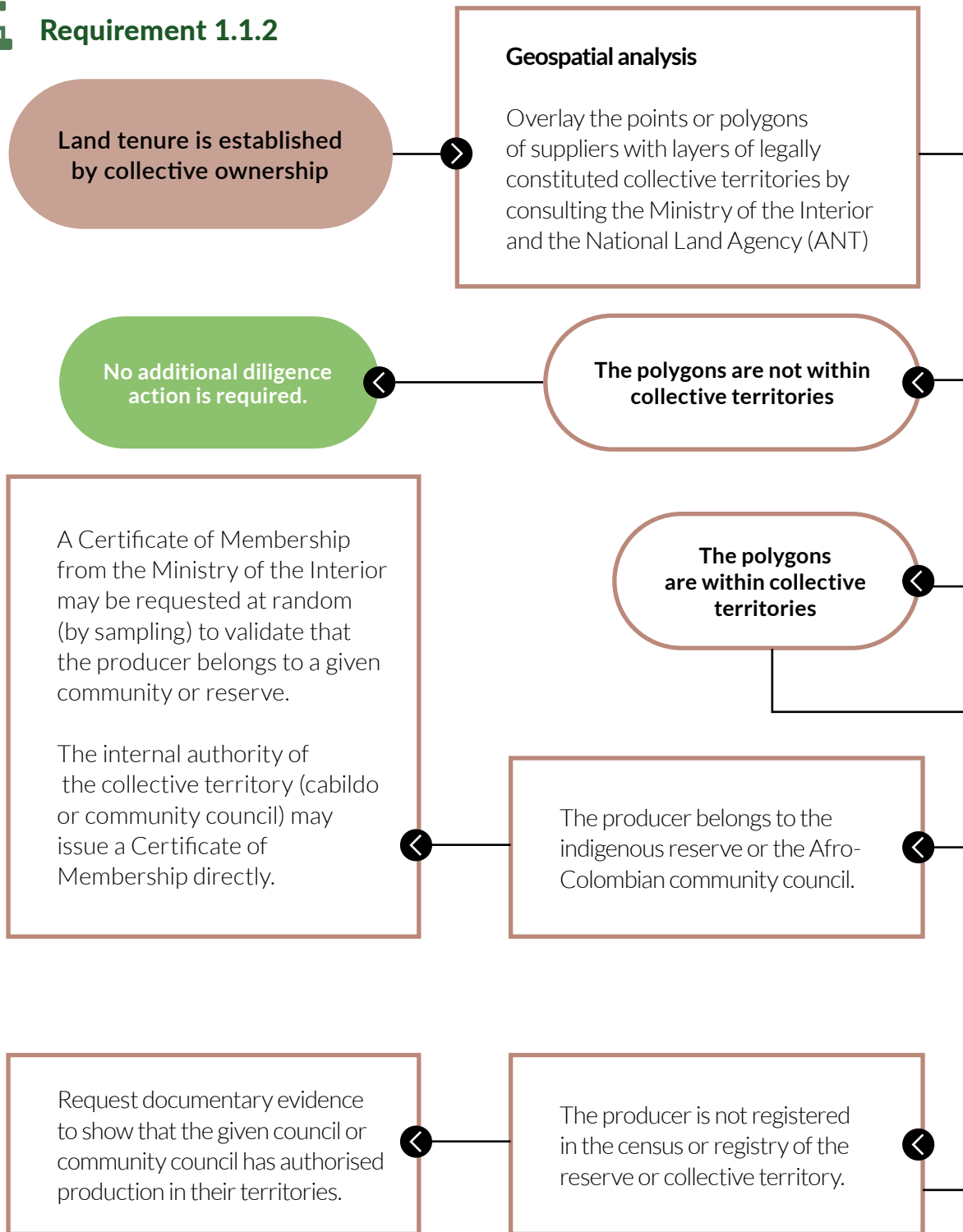


Requirements 1.1.1 and 1.1.3





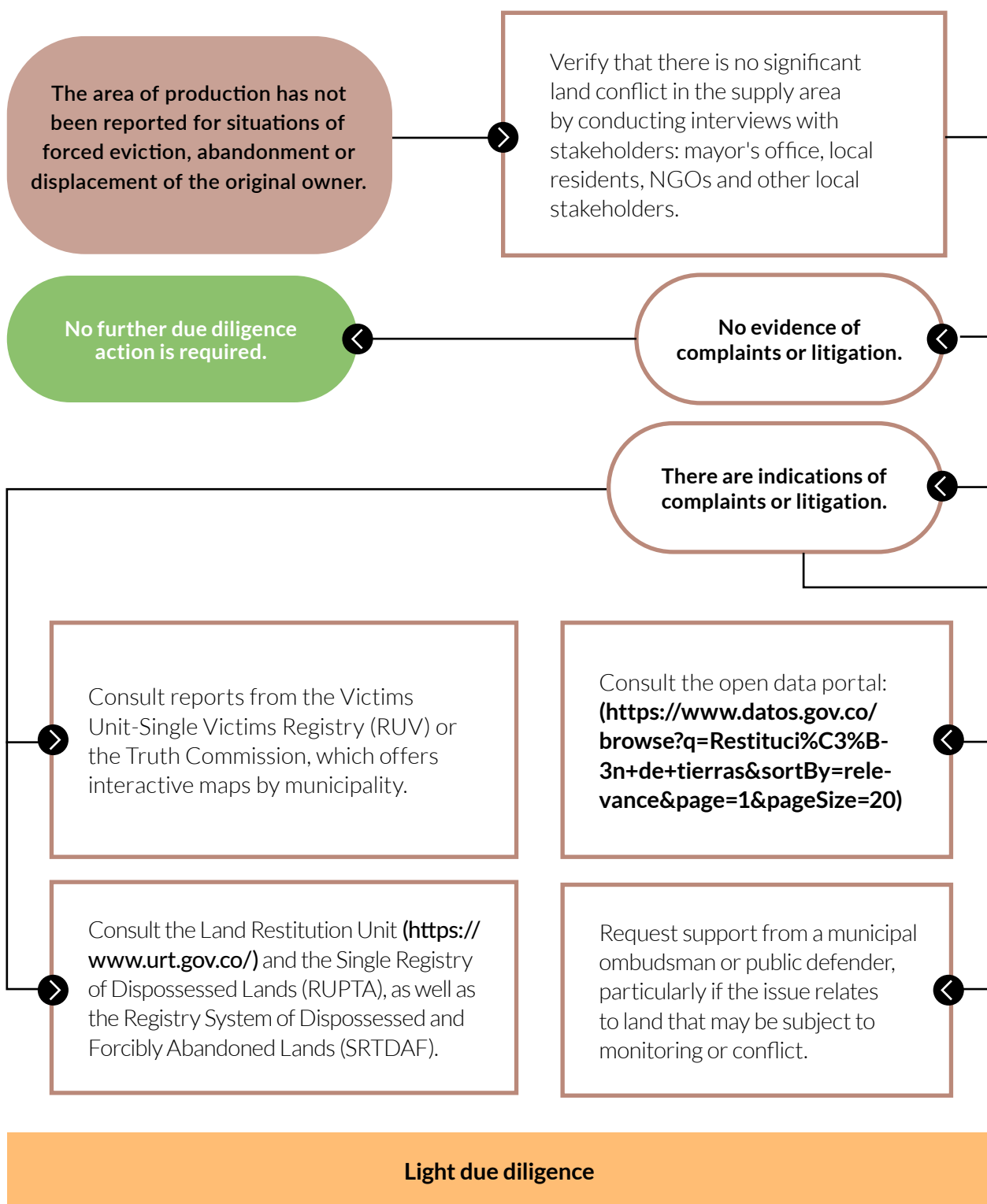
Requirement 1.1.2



Light due diligence

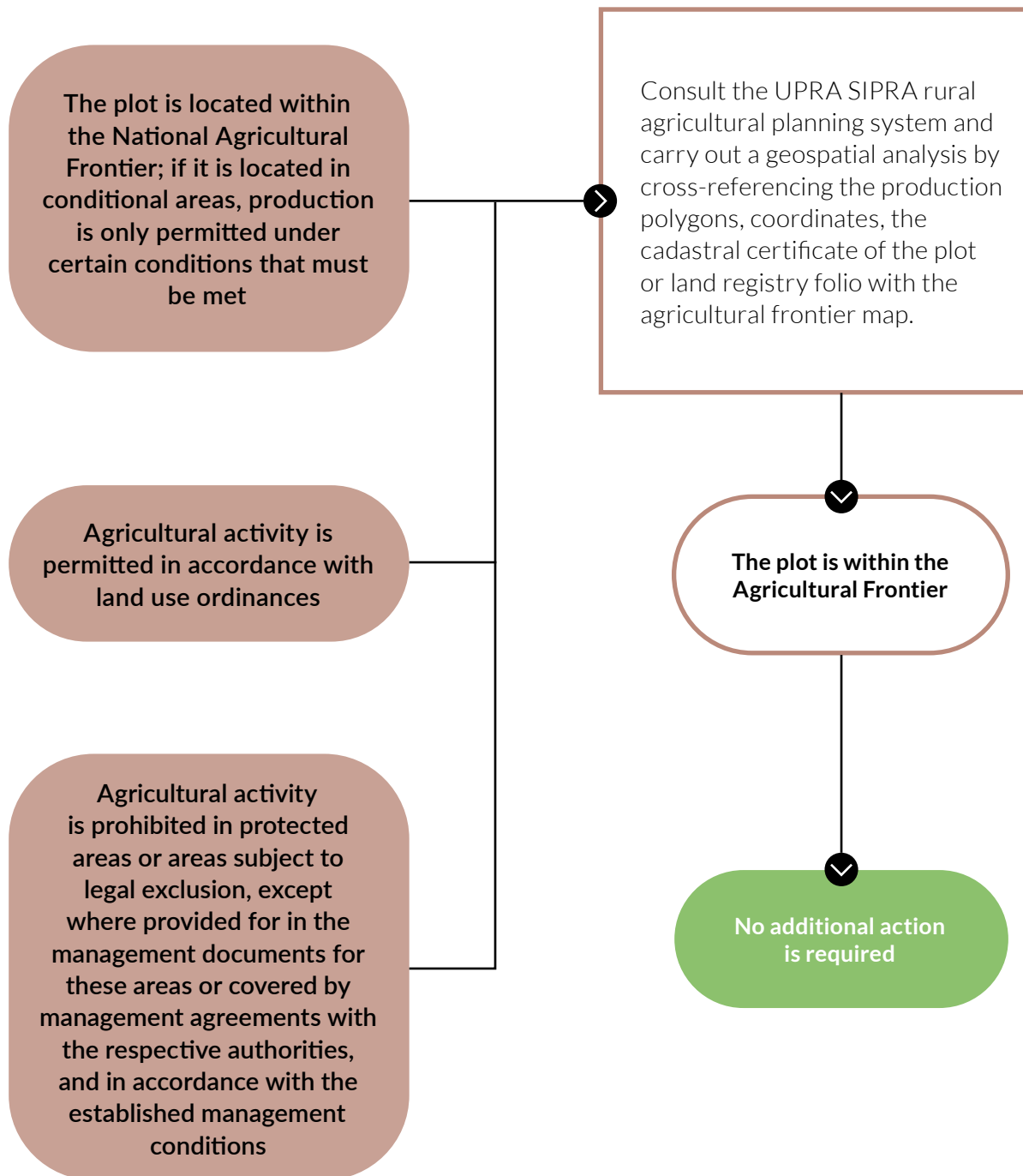


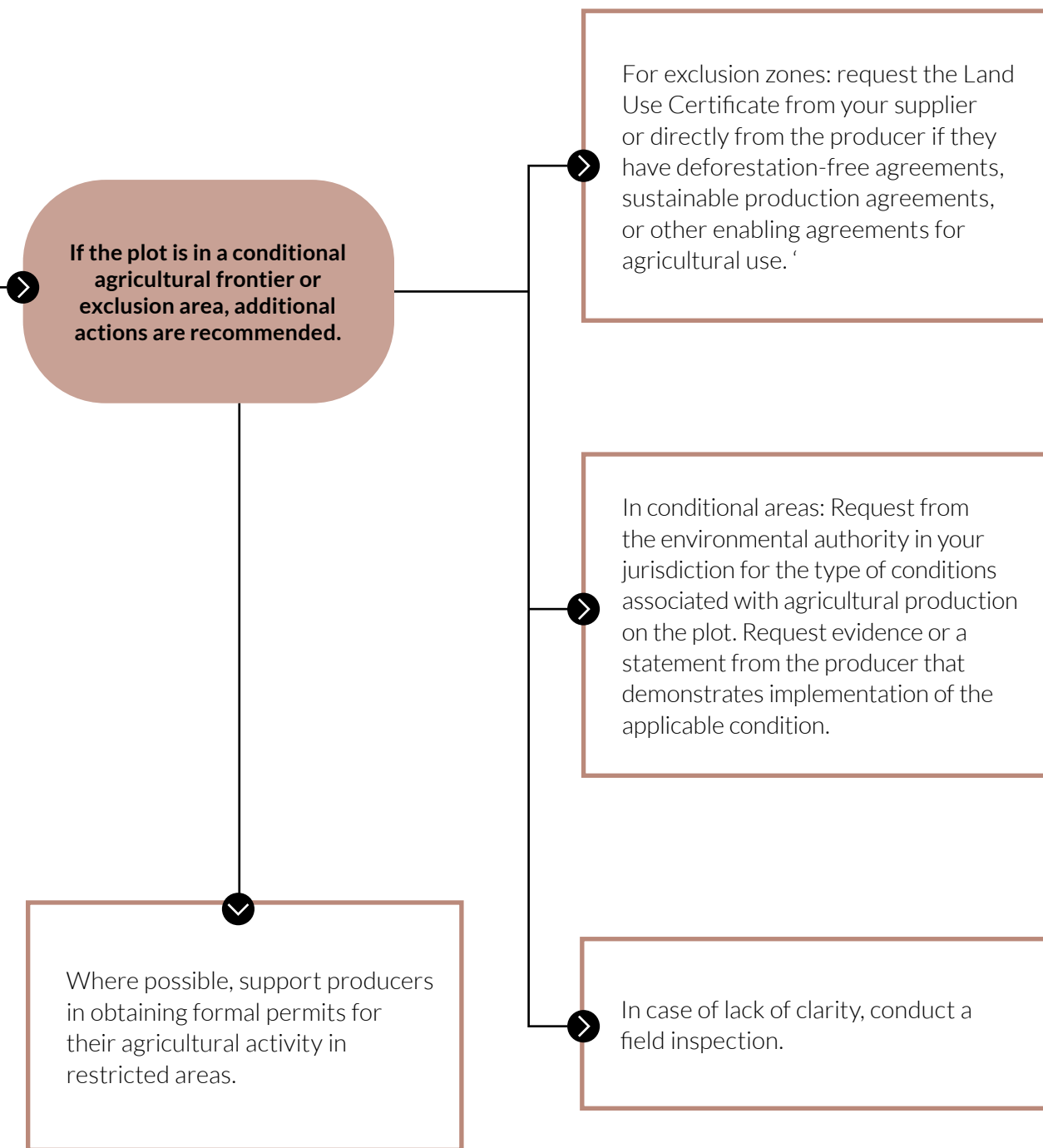
Requirement 1.1.4





Requirements 1.2.1, 1.2.2 and 2.1.1







CATEGORY 2 ENVIRONMENTAL PROTECTION

In Colombia, environmental regulations establish areas where agricultural activities are prohibited or restricted, which is essential for complying with standards such as the EUDR. In exclusion areas, such as moorlands, protected areas, or forest reserves, coffee and other products may not be grown, except in very specific cases where crops existed before the area was declared protected or when agroforests compatible with conservation are integrated. There are also territories with subject to specific restrictions, such as indigenous reserves, Afro-descendent community lands, or wetlands, where productive use may occur under particular rules and sustainable practices. In this context, the National Agricultural Frontier is the official tool that allows for the precise identification of which areas are suitable, which have restrictions, and where production conversion processes may be required, facilitating solid environmental due diligence in the face of non-compliance risks.

In addition to territorial exclusions and constraints, in Colombia it is essential to take into account other key environmental factors for adequate due diligence. These include soil management practices that prevent erosion and maintain fertility, responsible use of agricultural inputs to prevent contamination by agrochemicals, and proper handling of spills and solid waste that may affect nearby water bodies or ecosystems. Likewise, deforestation, pressure on water sources, and natural disasters such as landslides and floods reinforce the need for more sustainable production planning. These elements, together with legal verification of land use, form the core environmental risks and responsibilities that must be assessed when investing or producing in the Colombian agricultural sector.

The Colombian coffee sector does not face significant environmental challenges in terms of areas of production, although it does face challenges in fruit processing. Primary processing requires continuous attention to ensure sustainability, as in some cases it can generate spills into soil and water sources. While these requirements can create legal and operational uncertainty for producers, they have also driven significant advances in cleaner practices, such as ecological processing, micro-watershed management, and water decontamination. Coffee production is not associated with deforestation; studies of deforestation for coffee production based on analyses in departments such as Huila, the main national producer, show a decline in associated deforestation from 2020 to date.



Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.1. Agricultural activity is prohibited in protected areas or areas subject to legal exclusion, except where provided for in the management documents for these areas or covered by management agreements with the respective authorities, and in accordance with the established management conditions.	Although most coffee crops in Colombia are grown outside strictly protected areas, there are cases where farms are located within or near areas with some category of environmental protection, such as forest reserves, protected areas, etc. In these cases, producers may face restrictions on continuing their activities if they do not have management agreements or if forest management plans do not provide for agricultural use.	High level of implementation Light due diligence	See Due Diligence Actions for legal requirements 1.2.1 and 1.2.2
 Environmental Protection 2.1.2. Authorised agricultural inputs are used, managed and disposed of appropriately in accordance to technical procedures.	The use of agrochemicals is common in coffee cultivation. As the organiser of coffee production in the country and the representative and democratic body for growers, the National Federation of Coffee Growers coordinates the demands of the productive and commercial sectors to ensure compliance with both national and international regulations on hazards, personal protective equipment, waste management, withdrawal periods and trace presence. In this way, the FNC guides CENICAFE's research topics and supports regional and national activities	Standard due diligence	Compilation and verification of documents: Obtain the list of pesticides and fertilisers authorised by the ICA. Implementation of procedures and processes For your company and its suppliers: • Systematic collection of information from producers, if available, on: (1) implementation methods for herbicides, insecticides, fertilisers and fungicides (directly or through subcontractors) (2) type of herbicides, insecticides, fertilisers and fungicides used (check that they are on the updated list of products authorised by the ICA) (3) treatment of packaging.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.2. Authorised agricultural inputs are used, managed and disposed of appropriately in accordance to technical procedures.	involving the use of agricultural inputs. This plan is implemented nationwide, covering all coffee-producing municipalities in the country and supporting exports through ALMACAFÉ's work on 100% of the bags leaving the ports. No recent and reliable sources of information have been found to indicate the level of implementation of this requirement. Therefore, with the precautionary approach adopted by this tool, standard due diligence is recommended.	Standard due diligence	This information can be collected, for example, by periodically filling out a control sheet for the implementation of herbicides, fertilisers and pesticides and a control sheet for packaging, or periodically filling out a questionnaire. • Provide producers and cooperatives with an updated list of herbicides, insecticides, fertilisers and fungicides that are authorised/unauthorised at the cooperative level. • Provide producers with tools to monitor the implementation of fertilisers and pesticides and the treatment of packaging. • Provide annual training to producers on authorised/unauthorised pesticides and fertilisers and on packaging treatment, e.g. through training, campaigns, etc. Consultations with stakeholders Consult possible reports from NGOs, cooperatives and government authorities on possible cases of soil degradation in the sourcing area. Compilation and verification of documents • Plan for the management of pesticides or crop protection products, including biological products where relevant. • Plan or procedure for handling empty chemical packaging.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.2. Authorised agricultural inputs are used, managed and disposed of appropriately in accordance to technical procedures.		Standard due diligence	• Occupational health and contingency plan or procedure. • Training plan for employees in chemical management (include logs or attendance lists) in integrated chemical management. • Solid waste management plan. • Company policies prohibiting the use of red-labelled products. • Procedures for the proper use of pesticides and fertilisers. • Logbook of chemical and biological product implementations on farms. • Plan for the management and use of personal protective equipment. • Results of laboratory analyses to verify the presence of chemicals in coffee products, such as beans or cherries. Note: The law does not require direct documentation at the producer level for this indicator. Implementation would be demonstrated through practices on the farm.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.3. The productive activity does not result in spills into water sources, or, if it does, the activity is covered by the appropriate management plans and spill permits.	There is no specific data on the level of implementation of this legal requirement. However, according to the characterisations carried out by the FNC in 2024, 66% were in the process of transitioning to an ecological processing facility, with the implementation of at least one water-saving and/or pollution control practice, 27% had an ecological processing facility, and only 7% of coffee producers had a conventional processing facility with high water consumption. This is an indicator that although there is a percentage of products for which water resource management needs to be strengthened, progress has been made in coffee farming regarding the adoption of recommended practices and technologies. One of the reasons why there is still a gap in the adoption of technologies is related to the purchasing power of coffee producers and the lack of access to credit and projects, which means that other activities in the production process are prioritised and the technologies promoted by the FNC and traded by different companies are not adopted promptly.	Standard due diligence	Data collection and verification Verification of legal compliance for producers with more than 5 hectares: • Request spill permits from suppliers (Decree 3930 of 2010). • Request water concessions if they collect water from natural sources. • Verify whether they have been subject to environmental sanctions by the CARs (Regional Autonomous Corporations) via VITAL - Comprehensive Environmental Procedures Window - RUIA Consultation on Infractions or Sanctions Assessment of processing practices for producers with less than 5 hectares: • Conduct surveys and/or request self-declarations to determine whether the producer uses traditional wet processing (higher risk) or clean technologies such as Ecomill®, Becolsub®, recirculation or wastewater treatment, as well as the volume of water used per kilogram of coffee processed. Implementation of procedures and processes • If a risk of false declaration is identified, carry out on-site visual inspections to verify that there are no waste spills without proper treatment.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.3. The productive activity does not result in spills into water sources, or, if it does, the activity is covered by the appropriate management plans and spill permits.	Recognising the country's context in this area, significant efforts, led by the FNC and Cenicafe, are being made to resolve this situation, including: - The FNC is promoting a change in the trading model, shifting from the traditional purchase of dry parchment coffee to the purchase of coffee cherries at processing and beneficiation centres. This approach will reduce water consumption, add value to by-products, and comply with environmental regulations. - Cenicafe has developed and promoted technologies such as Ecomill® and Becolsub®, which allow wet processing with lower water consumption (up to 0.5 litres per kilogram of dry parchment coffee processed), significantly reducing pressure on water resources and concentrating the pollutant load, facilitating its treatment or recovery. - The FNC promotes the use of technologies for the treatment of by-products generated in the process, such as pulp processors with honey water recirculation and green filters and is also committed to supporting the conversion of by-products into value-added co-products. This minimises the impact generated and ensures compliance with current regulations.	Standard due diligence	- Promote the establishment of an improvement plan that ensures implementation of the legal requirement within two years. - Promote training programmes with suppliers on: - Efficient water management - Wastewater treatment - Applicable environmental regulations - Establish incentives for suppliers who adopt clean technologies. - Include environmental clauses in purchase contracts. - Provide training to producers to ensure proper management of packaging and solid waste. - Coordinate with CAR, FNC, Cenicafe, and local organisations to access technical and legal information or participate in technological conversion programmes. Field verifications - Verification at the producer level and environmental audits, on a periodic and sampling basis, to evaluate the treatment of spills where relevant. - Record these controls in the due diligence log.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.3. The productive activity does not result in spills into water sources, or, if it does, the activity is covered by the appropriate management plans and spill permits..	• Cenicafé has conducted studies and developed water quality monitoring protocols in coffee micro-watersheds, which are useful for determining the positive impacts generated by the implementation of good practices. • The FNC continuously carries out training and awareness campaigns for coffee producers on topics related to good agricultural practices, efficient use of water resources, wastewater management, valorisation of by-products, and conservation of coffee micro-watersheds.	Standard due diligence	To document due diligence, the FNC uses Cenicafé's knowledge and materials which explain how to manage waste at the farm level, as well as offering a free seminar featuring recommendations for use, management, and disposal.
 Environmental Protection 2.1.4. Solid waste and agricultural packaging are managed in accordance with proper classification, identification, and disposal procedures.	No evidence has been identified.	Standard due diligence	These actions can be carried out in conjunction with those in requirement 2.1.3. Data collection and verification • If the farm implements or is certified in Good Agricultural Practices (GAP), no further due diligence actions are required. • Conduct surveys and/or request self-declarations to determine whether the producer follows the mandatory technical procedure established for solid waste: 1. Classified (organic, recyclable, hazardous, etc.). 2. Characterised (identification of type, volume, origin).

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.4. Solid waste and agricultural packaging are managed in accordance with proper classification, identification, and disposal procedures.	No evidence has been identified.	Standard due diligence	3. Identified (labelling, proper storage). 4. Disposed of according to type: • Composting or agricultural use (organic waste) • Separate collection (recyclable waste) • Delivery to authorised waste manager (hazardous waste). Implementation of procedures and processes • If a risk of false declaration is identified, carry out on-site visual inspections to verify that there are no waste spills without proper treatment. • Promote the establishment of an improvement plan that ensures implementation of legal requirements within two years. • Provide training to producers to ensure the proper handling of packaging and solid waste. The FNC has Cenicafé's knowledge and materials which explain what to do with waste, and they also offer a free seminar featuring recommendations for use, management and disposal. Field verifications • Verification at the producer level and environmental audits, on a regular basis and by sampling, to evaluate the treatment of spills where relevant. • Record these controls in the due diligence log.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.6. The use of water for other activities associated with processing after obtaining a permit or concession and according to the conditions of this permit/concession.	The water used for processing is taken from rivers or rural aqueducts, or even from filtered rainwater, which may require a permit depending on its source. In Colombia, there is no publicly available, consolidated, reliable national figure on how many water concessions have been granted specifically for coffee processing (washing/pulping), nor is there an official estimate of how many producers operate without a concession. Given this lack of data, and in line with the precautionary approach of this tool, the level of non-compliance is considered standard. Traditional wet processing requires large amounts of water, which puts significant pressure on water resources. Washing and sorting consume 20 litres of clean water per kilogram of dry parchment coffee, and a similar volume is used in pulping and hydraulic transport of the pulp and coffee mucilage (Rodríguez-Valencia N. Z., 2013).	High level of implementation Light due diligence	These actions can be carried out in conjunction with those in requirement 2.1.3. Data collection and verification Verification of legal compliance for producers with more than 5 ha:: • Ask suppliers with water concessions if they collect water from natural sources. • Verify whether they have been subject to environmental sanctions by the CARs via VITAL - Comprehensive Environmental Procedures Window - RUIA Consultation on Infringements or Sanctions Implementation of procedures and processes • Promote training programmes for suppliers on: - Efficient water management - Wastewater treatment - Current environmental regulations • Establish incentives for suppliers who adopt clean technologies. • Include environmental clauses in purchase contracts. • Coordinate with CAR, FNC, Cenicafé, and local organisations to access technical and legal information and/or participate in technological conversion programmes. Field verifications • Verification at the producer level and environmental audits, on a periodic and sampling basis, to evaluate the treatment of spills where relevant. • Record these controls in the due diligence log.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.8 Producers have an obligation to protect and conserve the soil.	The National Federation of Coffee Growers of Colombia has historically promoted soil conservation practices in coffee-growing areas, especially on hillsides and slopes, through the implementation of terrace cultivation, contour planting, vegetation cover and agroforests, contributing to reducing erosion, improving fertility and ensuring the productive sustainability of coffee plantations. In addition, the coffee plant is perennial, and part of the coffee-growing process takes place under agroforestry systems, which helps prevent soil degradation.	High level of implementation Light due diligence	Stakeholders consultation Confirm the absence of soil degradation in the sourcing area through interviews with cooperatives, NGOs, local authorities and other local actors. Consult any reports from NGOs, cooperatives and the administration related to possible cases of soil degradation in the sourcing area. Implementation of procedures and processes • Support producers in best practices for the use of soils at risk of erosion, soil conservation and biodiversity loss, for example through training, campaigns, etc. • Promote the use of legumes as shade and green manure, which fix and return nitrogen to the soil. Data collection and verification Obtain, where available, details on possible training courses for producers on good agricultural practices (training organisations, dates, participants, content, etc.): • Land use and soil management plan • Good Agricultural Practices manual • Integrated pest management plan or agrochemical molecule rotation plan • Follow-up visit report by agronomists • Regenerative agriculture report

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.1.9. Agricultural activity does not exceed legal limits for atmospheric pollutants, and the burning of agricultural waste is carried out after obtaining a permit and in accordance with legal conditions.	Coffee cultivation and processing in Colombia may be a source of atmospheric pollution, depending on the practices used. In general, the most critical moments at the production stage are: • When agricultural waste (husks, branches, leaves) is burned to clear or prepare the land. • When nitrogen fertilisers are applied, which may result in nitrogen losses to the atmosphere (nitrous oxide), however this aspect is covered by requirement 2.1.3. Since burning is not a common practice in coffee cultivation, this risk is classified as negligible. There are initiatives aimed at reducing emissions generated during coffee production, such as the use of low-carbon-footprint fertilisers in departments including Huila, Antioquia, and Santander.	High level of implementation Light due diligence	Consultations with stakeholders: Confirm the absence of air pollution cases in the sourcing area through interviews with cooperatives, NGOs, local authorities and other local actors. Implementación de procedimientos/procesos Implementation of procedures and processes • Promote good agricultural practices that include the prohibition and adverse effects of burning crop residues. • Train producers on the necessary permits and applicable conditions for implementation. • Provide policies and technical guidance that include the prohibition and adverse effects of burning crop residues.

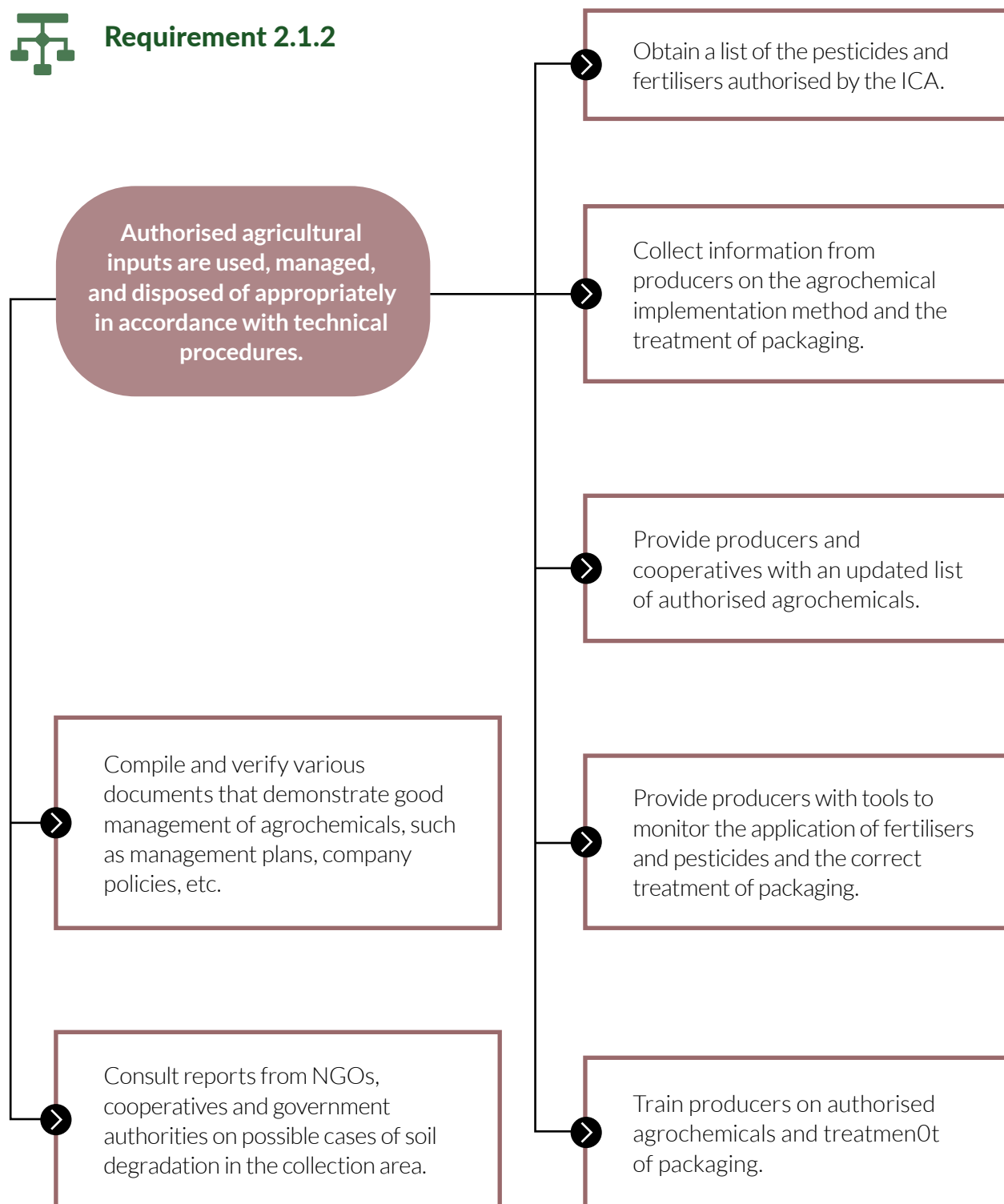
Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.2.1. The producer did not establish new areas of production for relevant products in areas of deforestation after 29 July 2021.	Law 2111 of 2021 amends the Penal Code by introducing the crime of deforestation in Article 33. While it does not establish a specific cut-off date or baseline for deforestation, it elevates it to the status of a criminal offence, effective as of 29 July 2021. Accordingly, this latter date is understood as the cut-off date, and evidence may be overlaid and considered from this date onwards, or from cases of deforestation reported since the law came into force. It is widely recognised that, at present, coffee cultivation in Colombia is not directly related to deforestation; however, studies and research advances on this topic are still scarce. According to the analysis carried out, there are 76,633 coffee production units (UPAs) close to deforestation hotspots, representing approximately 16% of the country's coffee production. This proximity does not imply a direct association with deforestation. Although coffee is not currently closely linked to deforestation processes, in 2021 the zero deforestation agreement 'Coffee, Forest and Climate', was signed, which seeks to mitigate and adapt coffee farming to climate change and promote the protection and restoration of forests in the coffee supply chain in Colombia through an Acuerdo de Voluntades de Actores Público Privados (Agreement of Willingness between Public and Private Actors), focusing on three priority areas: Promoting the adaptation, mitigation and resilience of coffee-growing communities to climate change; promoting sustainable production and livelihoods for farmers; and contributing to the restoration and protection of forests in Colombia.	High level of implementation Light due diligence	Geospatial analysis Overlay supplier points or polygons with IDEAM deforestation layers and deforestation hotspots. If the polygons are in areas close to deforestation hotspots, the following is suggested: Document compilation and verification - In a sample of producers near deforestation centres, verify whether they have been subject to environmental sanctions by the CARs via VITAL - Comprehensive Environmental Procedures Window - RUIA Consultation of Infractions or Sanctions

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.2.2. Producers who establish an agroforestry system or transform their forest plantation into an agricultural production system (including agroforestry systems) on a plot of land must comply with the legal standards on use.	By 2024, it was estimated that 37% of the hectares cultivated with coffee in Colombia were established under shade (Red AGRONET, 2024). If forest plantations are converted into agricultural systems, procedures for forest use must be complied with within the framework of the law. This conversion can be an opportunity for sustainable productive reconversion, if it is done on a technical and environmental basis. In cases where coffee is produced in agroforests, where shade or timber trees are used, and if the producer requires the use of timber for trading, this must also be done in accordance with forest registration and utilisation standards. In Colombia, this is not a common practice, and there have been no recorded cases of transforming forest plantations into agricultural systems such as coffee cultivation.	High level of implementation Light due diligence	Consultation with stakeholders: Carry out surveys of coffee producers to verify whether they have established their coffee plantations on former forest plantations or agroforests, or whether they trade the timber harvested from their agroforests. If so: Document compilation and verification • Obtain authorisation from the ICA or local environmental authority for forest use. • In cases where there are no records with the ICA, inquiries should be made with the environmental authority in your jurisdiction. • Compile evidence that ICA plantation registration commitments have been implemented (reforestation, compensation, etc.). • Consult VITAL (Integrated Window for Environmental Procedures) and RUIA (Register of Environmental Offenders) to see if there are any proceedings related to deforestation.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Environmental Protection 2.2.4. Agricultural activity does not violate the protection of endangered species or the conservation of biodiversity	In Colombia, there are significant initiatives to conserve biodiversity in relation to coffee cultivation, both by the State and by the coffee sector, NGOs and individual producers. The focus is increasingly on producing coffee in an environmentally responsible manner and generating added value in markets, while simultaneously conserving endangered species and ecosystems. Several institutional actions have been implemented in Colombia, such as the Sustainable Coffee and Biodiversity Programme – FNC and NGOs. Led by the National Federation of Coffee Growers, WWF and other partners, it promotes shade-grown coffee and practices that protect endangered species, such as howler monkeys and tanagers, among others.	High level of implementation Light due diligence	Data collection and verification - Review the Unified Register of Environmental Offences https://vital.minambiente.gov.co/SILPA_UT_PRE/RUIA/ConsultarSancion.aspx?Ubic=ext - Where available, compile studies on the fauna and flora present on the farms. Consultations with stakeholders - Support producers in assessing the presence of sensitive species, identifying biological corridors and compiling lists of threatened species. - Conduct awareness campaigns for producers on the importance and protection of flora and fauna in areas of production. Field verifications If other due diligence actions have detected potential risks of non-compliance with this requirement or proximity to protected areas (by cross-referencing with Agricultural Frontier in 1.2.1), field visits may be conducted to verify the correct implementation of biodiversity protection standards through: (1) interviews with producers (level of knowledge of regulations, illegal hunting activities, protected fauna and flora species, etc.); and (2) direct monitoring through field visits (presence or absence of sensitive ecosystems such as watercourses and wetlands, as well as protected flora and fauna).



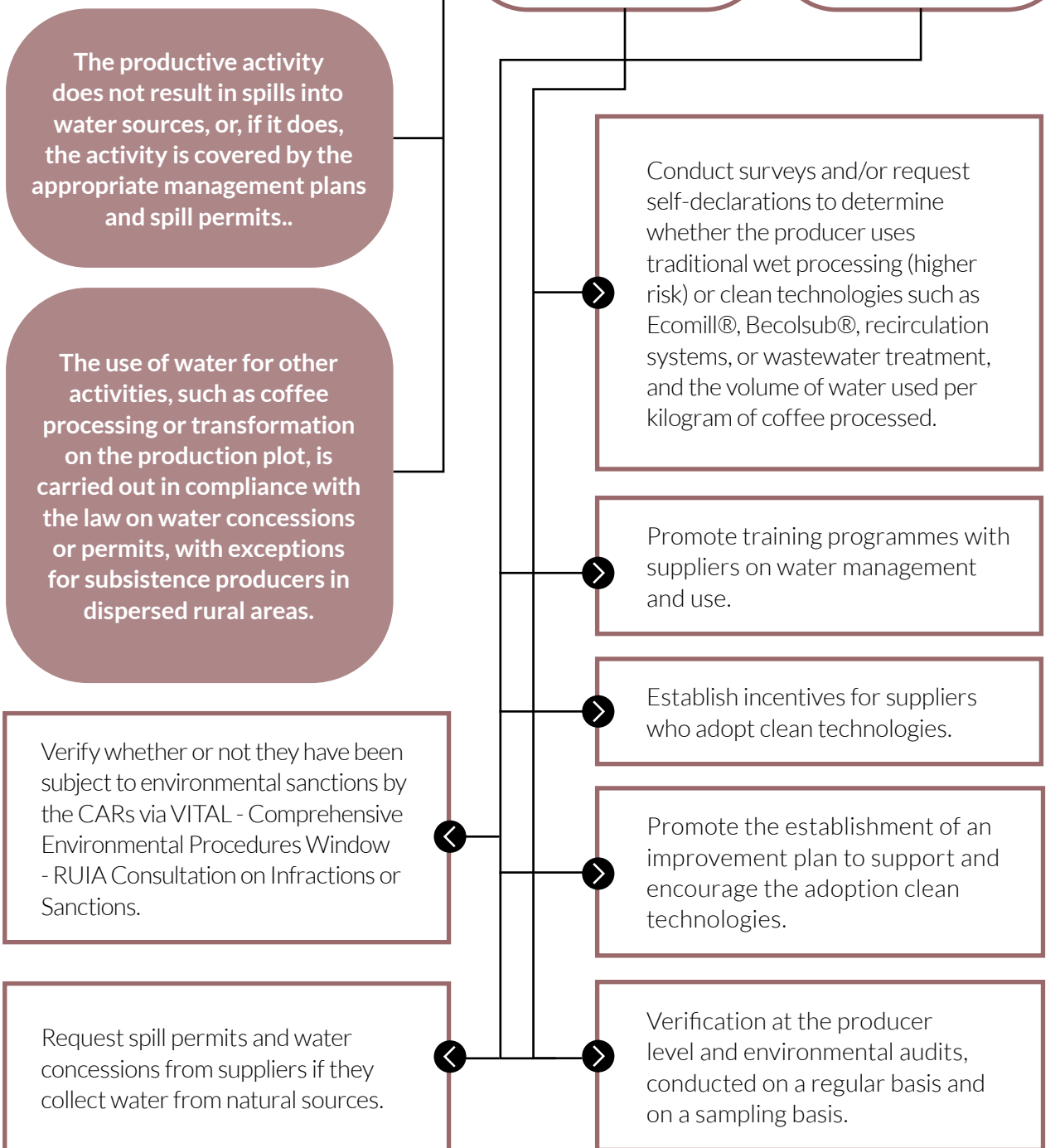
Requirement 2.1.2



Standard due diligence



Requirement 2.1.3 and 2.1.6



Standard due diligence 2.1.3 | Light due diligence 2.1.6



Requirement 2.1.4

Solid waste and agricultural packaging are managed in accordance with proper classification, identification, and disposal procedures.

The producer implements technical recommendations on solid waste management.

No additional due diligence action is required.

The level of implementation of technical recommendations by the producer is unknown.

Conduct surveys and/or request self-declarations to determine whether the producer follows the mandatory technical procedure.

If a risk of false declaration is identified, carry out visual verification visits to ensure that there are no waste spills without proper treatment.

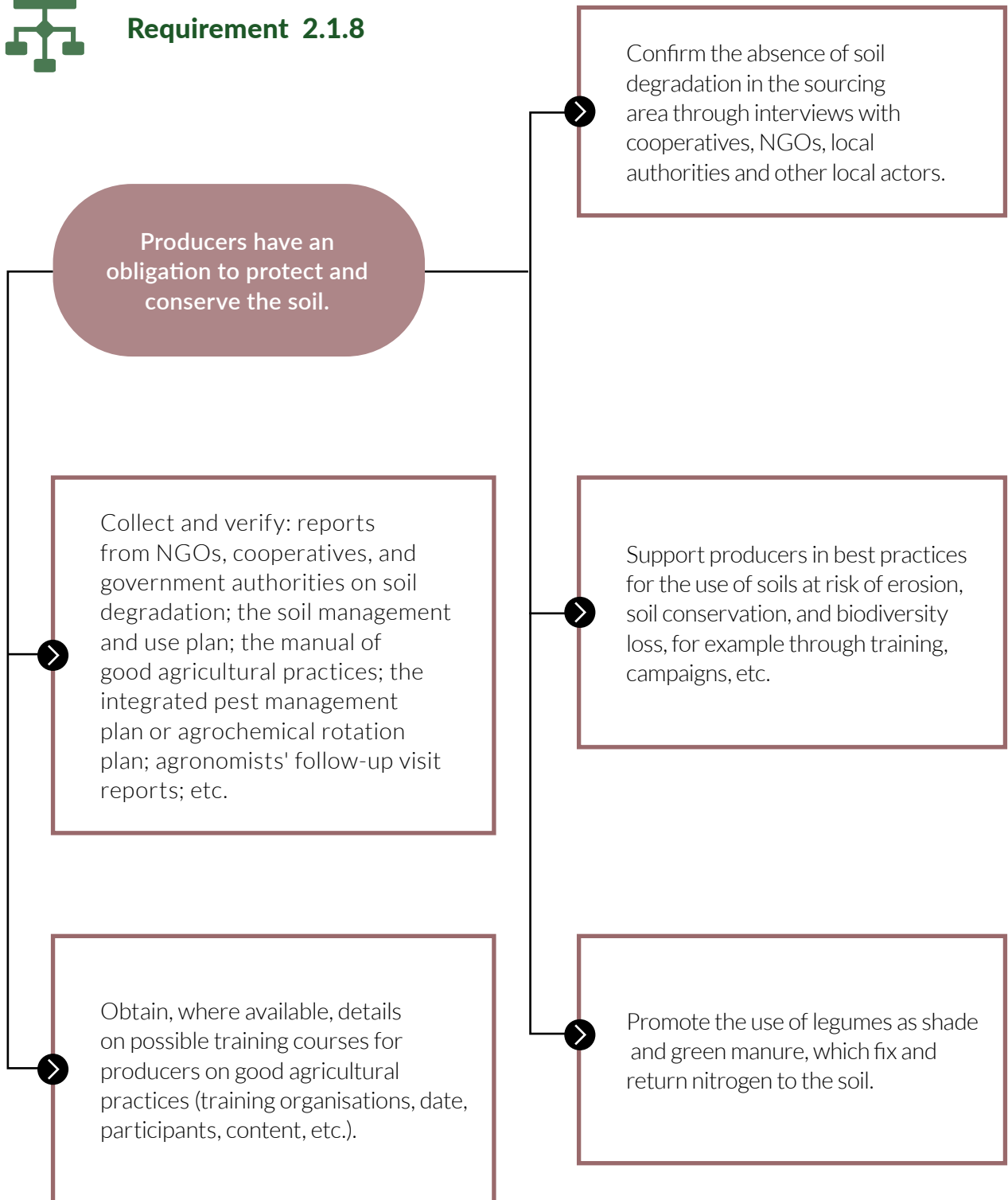
Promote the establishment of an improvement plan that ensures implementation of legal requirements within two years.

Provide training for producers to ensure proper handling of packaging and solid waste.

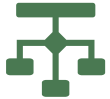
Standard due diligence



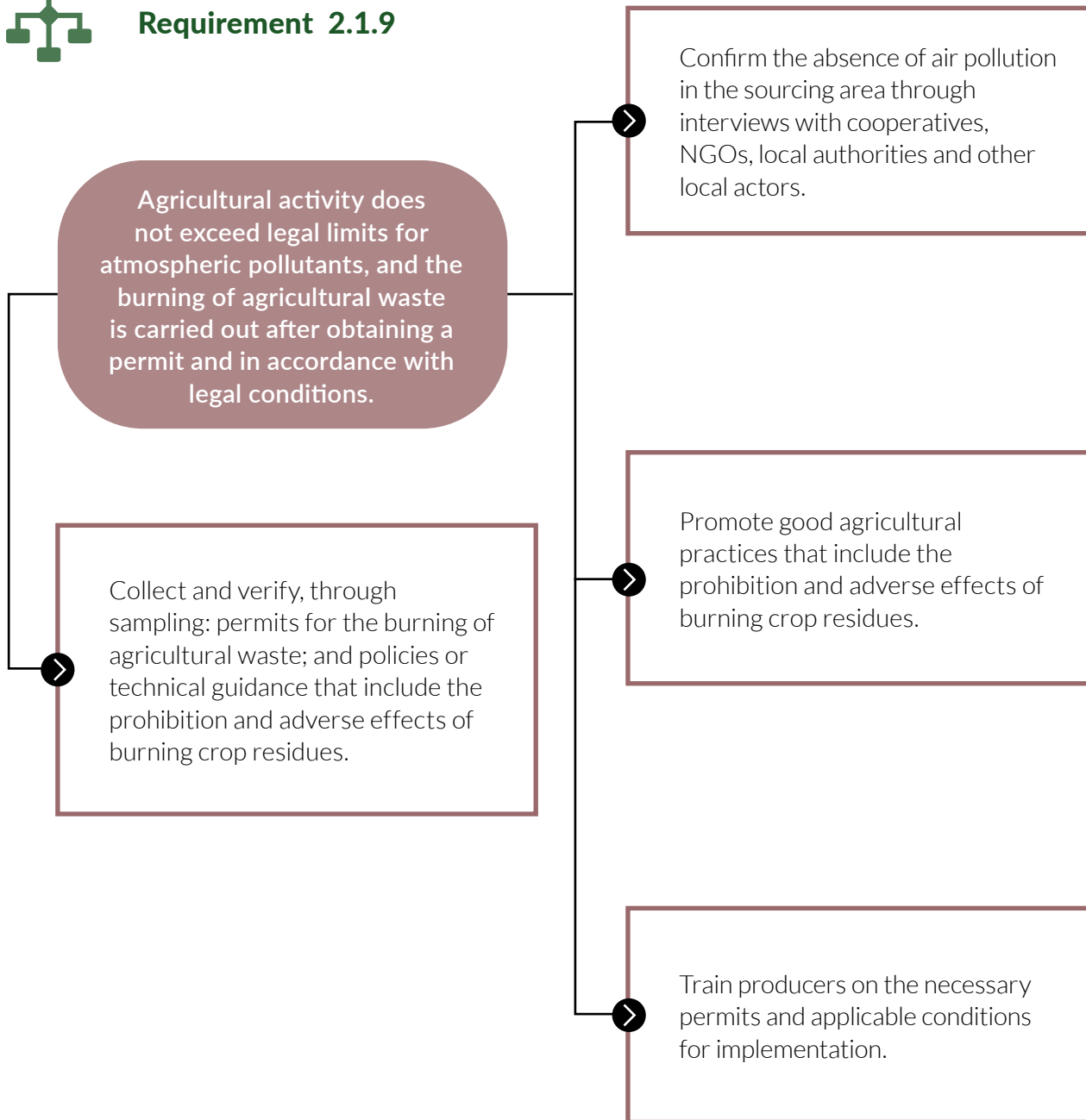
Requirement 2.1.8



Light due diligence



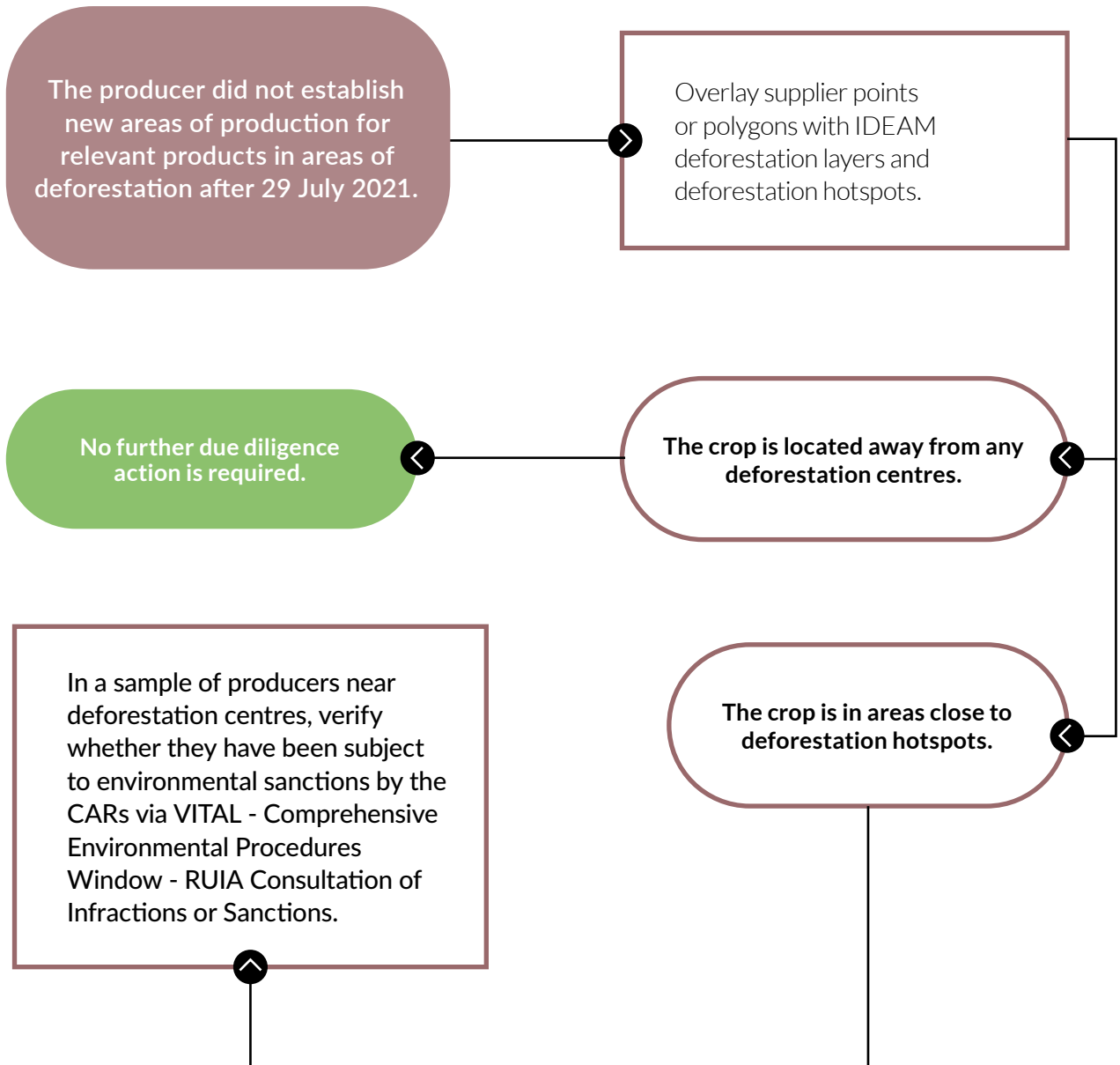
Requirement 2.1.9



Light due diligence



Requirement 2.2.1



Light due diligence



Requirement 2.2.2

Producers who establish an agroforestry system or transform their forest plantation into an agricultural production system (including agroforestry systems) on a plot of land must comply with legal standards on use.

Obtain authorisation from the ICA or local environmental authority for forest use.

Compile evidence that ICA plantation registration commitments have been implemented (e.g., reforestation, compensation).

The producer did not establish their coffee plantation on former forest land and does not trade in timber harvested from their agroforests.

No further due diligence action is required.

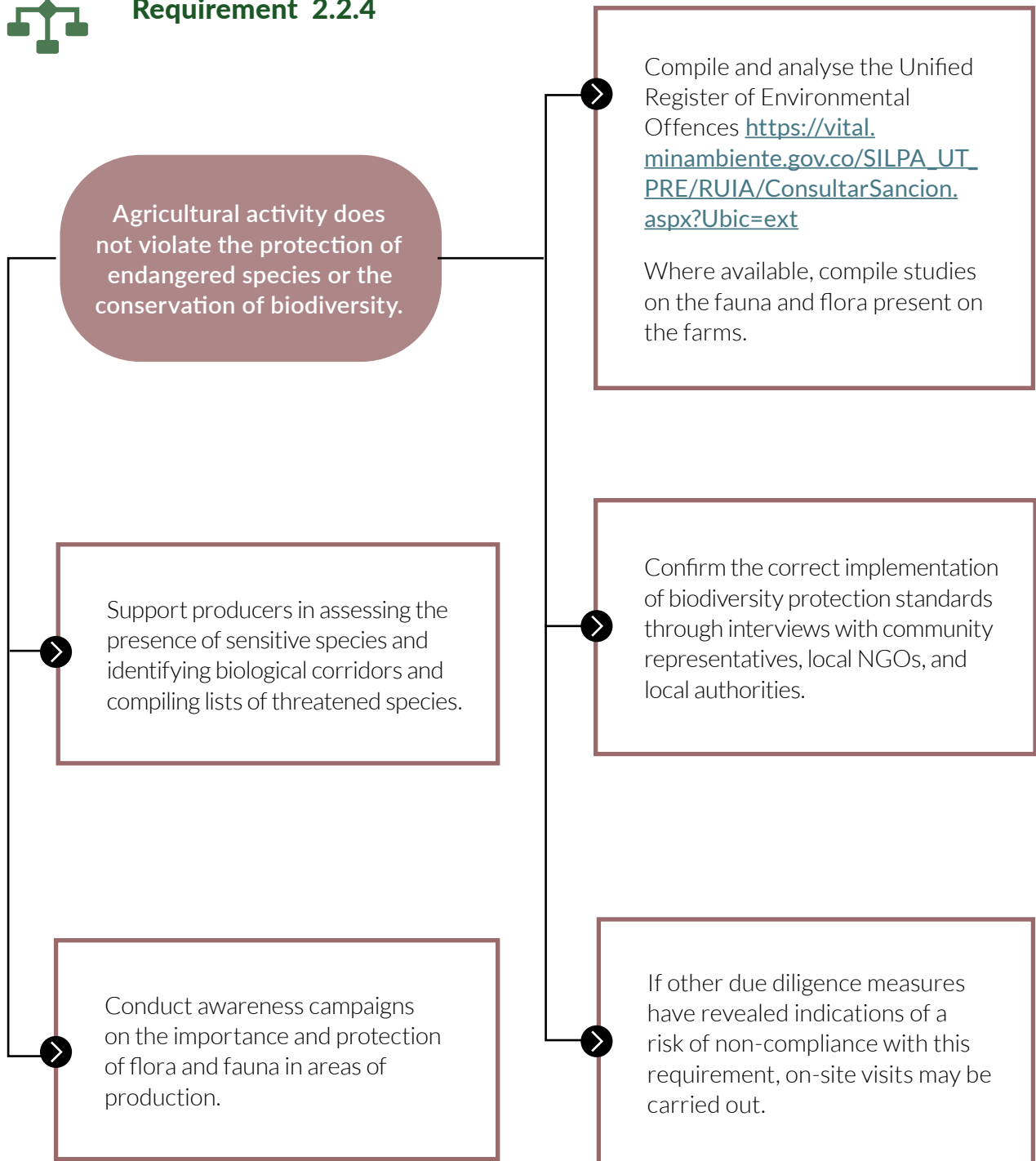
The producer has established their coffee plantation on former forest land or trades in timber harvested from their agroforests.

Consult VITAL (Integrated Environmental Procedures Window) and the RUIA (Unified Register of Environmental Offences) to see if there are any proceedings related to deforestation.

Light due diligence



Requirement 2.2.4



Light due diligence



CATEGORY 3 THIRD PARTIES' RIGHTS AND FPIC

In Colombia, prior consultation and Free, Prior and Informed Consent (FPIC) are distinct but complementary mechanisms for guaranteeing the rights of indigenous and Afro-Colombian communities. FPIC, backed by the 1991 Constitution and ILO Convention 169, is mandatory when a project threatens the physical, cultural or spiritual survival of a people, such as in cases of forced relocation or impact on sacred sites. Agricultural activity must respect cultural and natural heritage, avoiding impacts on collective territories and ensuring effective participation processes. Beyond a legal

obligation, FPIC strengthens trust and promotes sustainable and culturally respectful agricultural production, as demonstrated by coffee experiences in Tolima and Cauca. To comply with the EUDR, due diligence must include verification of respect for ethnic and territorial rights.

The risk for the coffee sector in relation to third-party rights is negligible, given that most producers are smallholders located outside collective areas or within them but carried out by members of these communities.

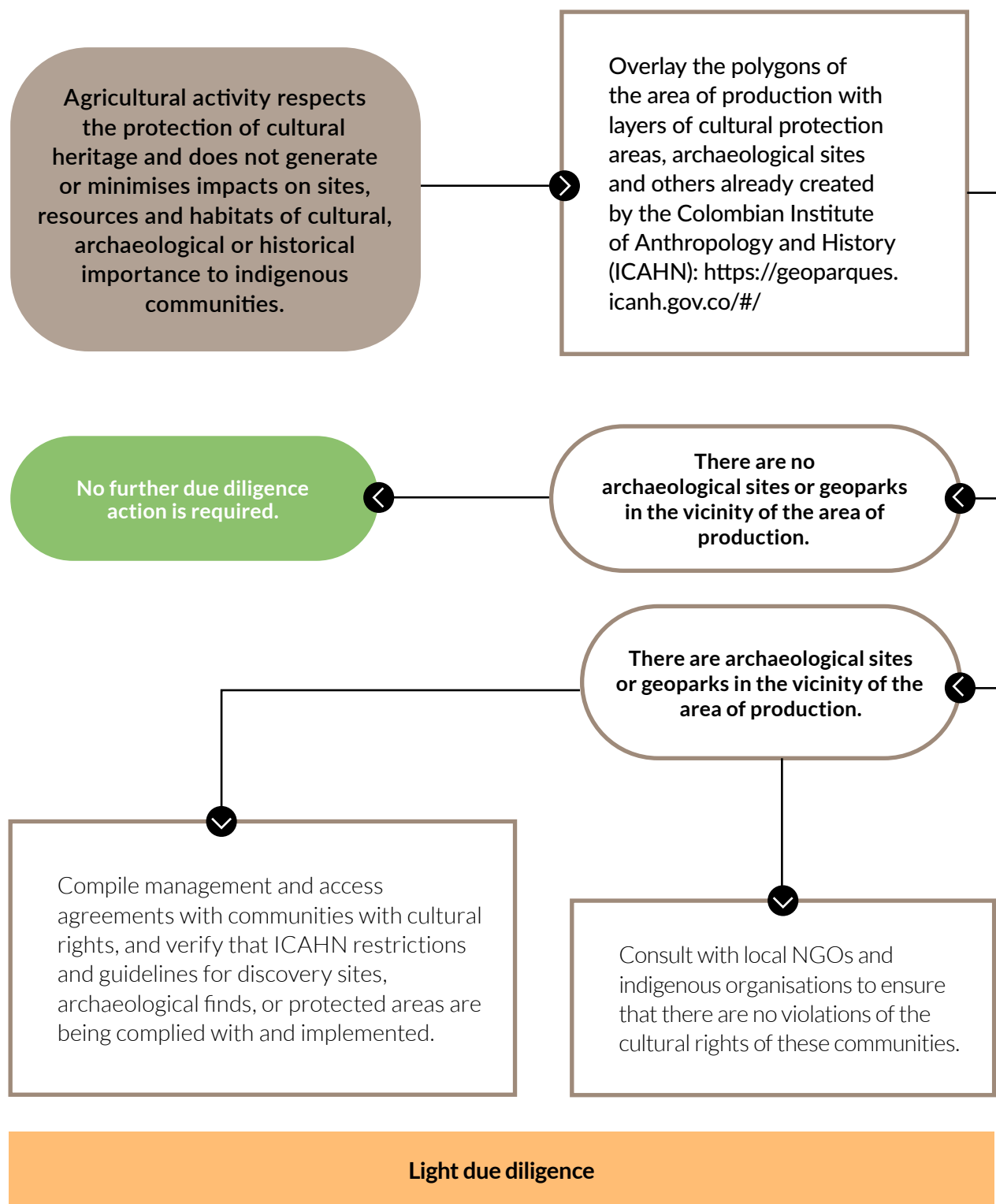
Requisito legal	Contexto	Nivel de implementación	Recomendaciones de Debida Diligencia
 Third parties' rights and FPIC 3.1.1. Agricultural activity respects the protection of cultural heritage and does not generate or minimises impacts on sites, resources and habitats of cultural, archaeological or historical importance to indigenous communities.	In Colombia, coffee is considered a symbol that has marked generations and the country's cultural identity and is part of its cultural heritage. UNESCO declared the Coffee Cultural Landscape a World Heritage Site in 2011, highlighting its historical, social and cultural significance. Within the agricultural frontier, the overlap of coffee cultivation with archaeological areas is minimal (0.2% of coffee UPAS).	High level of implementation Light due diligence	Geospatial analysis Overlay the polygons of the area of production with layers of cultural protection areas, archaeological sites and others already created by the Colombian Institute of Anthropology and History (ICAHN)⁴. If there are archaeological sites or geoparks in the vicinity of the area of production, measures must be taken to manage these sites and agreements must be reached with local communities for access for rituals and other cultural activities, as appropriate. The due diligence actions described below are recommended. Consultations with stakeholders In areas with sacred sites belonging to indigenous communities, consult with local NGOs and indigenous organisations to ensure that there are no violations of the cultural rights of these communities. Relevant data collection Management and access agreements with communities with cultural rights. Verify that the restrictions and guidelines established by ICAHN for discovery sites, archaeological finds or protected areas are being complied with and implemented.

4. <https://geoparques.icanh.gov.co/#/>

Requisito legal	Contexto	Nivel de implementación	Recomendaciones de Debida Diligencia
 Third parties' rights and FPIC 3.3.1. The rights of indigenous and Afro-Colombian peoples are respected	Of the 17,384 UPAs in areas with ethnic and cultural constraints, 3.3% are located in indigenous reserves, 2.1% in areas protected under Law 70, and 0.2% in areas set aside for indigenous affairs.	High level of implementation Light due diligence	Geospatial analysis - Overlay the points or polygons of suppliers with layers of legally constituted collective territories (the Ministry of the Interior and the National Land Agency have georeferenced information on collective territories). If there are overlaps and the producers belong to the reserve or community council, the production complies with the law. If there are overlaps in areas of production and the producer is not registered in the census or registry of the reserve or collective territory, there are strong indications of illegality, unless they present express authorisation from the representatives of the collective territory. Consultations with stakeholders Interviews with authorities from the affected communities, such as community leaders and representatives of indigenous or Afro-descendant organisations and local NGOs, the Ombudsman's Office and/or the Ministry of the Interior. Compilation and verification of documents Relevant documents generated during the prior consultation process, such as notifications, meeting minutes, formal agreements with communities, participation reports and consultation results. Implementation of procedures and processes - Carry out prior consultation processes, where necessary, with effective and documented participation. - Establish strong community relations and ongoing dialogue. - Establish complaint mechanisms accessible to indigenous peoples. - Evaluate implementation of prior consultation externally through audits or reviews by entities. - Establish a mechanism for monitoring the agreements that have been reached.
 Third parties' rights and FPIC 3.4.1. If agricultural activity generates potential impacts on ethnic communities, the FPIC or prior consultation process was respected.	Of the 17,384 UPAs in areas with ethnic and cultural constraints, 3.3% are located in indigenous reserves, 2.1% in areas reserved under Law 70, and 0.2% in areas set aside for indigenous affairs. In general, in these territories, it is the indigenous communities themselves who carry out productive activities, and there are rarely reports of third parties growing coffee without conducting the necessary consultations. Coffee production is not reported as an activity that has an impact on ethnic communities.	High level of implementation Light due diligence	

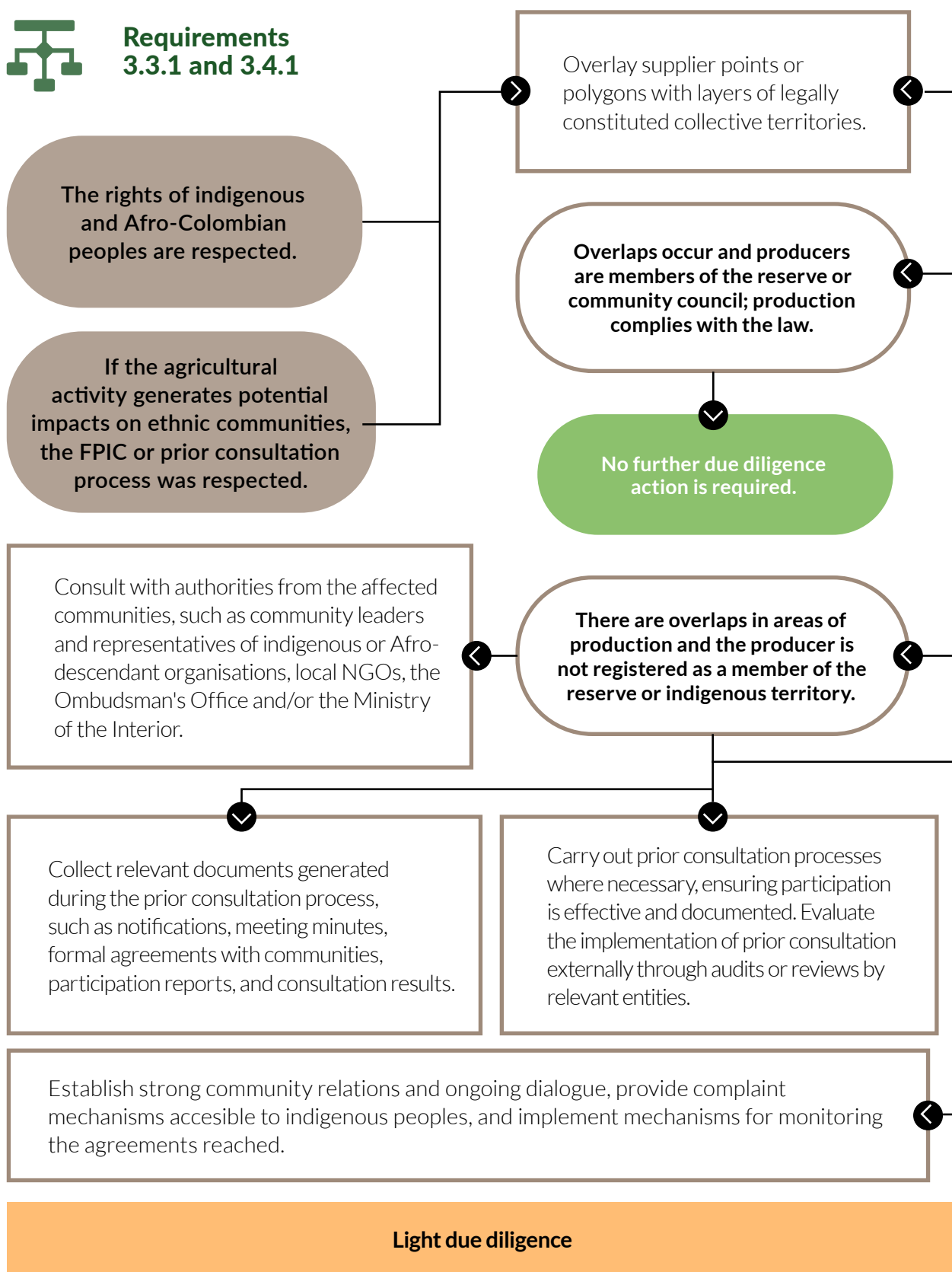


Requirement 3.1.1





Requirements 3.3.1 and 3.4.1





CATEGORY 4 LABOUR RIGHTS

In Colombia, agricultural labour relations are regulated by standards designed to guarantee decent working conditions including formal contracts, respect for working hours and minimum wages, provision of protective equipment, social security registration, freedom of association, and prevention of discrimination and harassment. The coffee sector provides approximately 1.6 million jobs⁵, but most of these are temporary and itinerant, which makes formalisation and social security coverage difficult. Although this does not necessarily imply illegality, it does reflect structural limitations for fully complying with international standards such as those required by the EUDR.

Occupational risks in a predominantly family-based coffee industry are low. However, there may be specific risks in units larger than 5 hectares. For temporary work, typical in the coffee sector, the seasonality of the harvest requires a large workforce for short periods. The Colombian labour system does not yet have simplified mechanisms adapted to the temporary and itinerant nature of agricultural work. Currently, regulations require formal contracts and full monthly social security contributions, even when employment lasts only days or weeks, which is complicated for small producers. The labour reform (Law 2466 of 2025) reinforces formalisation in the agricultural sector but does

not introduce flexible schemes for temporary work, although the regulatory decrees have not yet been issued.

According to information from SICA, by 2024, 96.7% of coffee growers in Colombia will cultivate less than 5 hectares of coffee, classifying them as small-scale coffee growers. In these economic units, the use of household labour and financial resources are predominately used to ensure productive activity. As evidence of this, and to refine this analysis, figures from Colombia's National Administrative Department of Statistics (DANE) and its National Agricultural Survey (ENA) show that in 76.7% of coffee-growing UPAS (Agricultural Production Units), 100% of farm labour is provided by adults within the household. Additionally, 74% of these UPAS occupy plots of less than 5 hectares, while 26% of other coffee growers hire at least one permanent worker. This 5-hectare threshold is used in the following due diligence recommendations. It should be noted that the analyses and conclusions obtained were based on general trends and do not preclude exceptions. Overall, 96.7% of coffee growers in Colombia have less than 5 hectares (SICA 2024), which means that most of them are small-scale producers reliant on family and subsistence economies, without prejudice to exceptions.

5. Esta cifra es estimada por la FNC, a partir de las Gran Encuesta Integrada de Hogares y expandida teniendo en cuenta el universo de productores cafeteros del SICA.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.1.1. If the producer hires workers, they must do so under a fixed-term, indefinite apprenticeship, or temporary, occasional, or casual contract (written or oral), in accordance with the conditions stipulated by law.	Coffee generates around 960,000 direct jobs in Colombia, with a strong multiplier effect throughout the production chain (FNC, 2021). According to FNC estimates, cross-referenced with DANE data, most producers with less than 5 hectares of coffee do not hire workers (except temporary ones) and produce their coffee under the smallholder, family and community farming model. Most seasonal workers work under oral contracts: according to a study conducted by the FNC⁶ with 7,578 harvesters in 2016, only 1.5% of them had formal employment contracts. The most up-to-date figures, such as those presented in the ILO's 2022 study⁷, indicate that informality in the country's coffee harvest may exceed 80%. Figures from the GEIH for July 2024 reveal that around 61% of people employed in coffee-related activities do not have any kind of written employment contract. However, in practice, temporary workers paid by the task agree orally on their remuneration and tasks⁸, and oral contracts are legally valid. Informality is not illegal under Colombian law, which recognises the full validity of oral contracts. As for permanent workers with fixed-term contracts, it is not known whether they usually work with written contracts or not.	In family farming: not applicable High level of implementation on farms larger than 5 hectares: Light due diligence	Implementation of procedures and processes The first step is to establish whether there are permanent workers in the area of production, as defined by law, i.e., who are not members of the family unit. This step can be carried out using the threshold of 5 hectares per farm. - For all producers with less than 5 hectares in production, no additional due diligence is recommended, as long as there are no permanent workers and that temporary workers have oral contracts. - For producers with more than 5 hectares, surveys can be conducted to determine whether they have workers within the meaning of the law. If there are workers in the area of production, the following additional actions may be implemented. Data collection and verification - Use questionnaires to gather information on the type of employment (permanent, temporary or indefinite) and the conditions under which the work could be classified as salaried employment. Working conditions are defined as working hours, wages and affiliation to the General Social Security System for Health, Pensions and Occupational Risks.

6. <https://federaciondecafeteros.org/static/files/ECC32.pdf>

7. https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@americas/@ro-lima/@sro-lima/documents/publication/wcms_863074.pdf

8. https://coffeewatch.org/documents/49/ReporterBrasil_Cafe_Colombia_ESPANOL.pdf

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.2.1. If the producer hires permanent workers, they must not exceed the working hours established by law, and if they do, overtime and Sunday work must be remunerated.	During harvest seasons, it is common for working hours to be longer due to the seasonal and urgent nature of this work. However, any hours worked in excess of the normal working day must be paid as overtime, as established in the Colombian Labour Code. There is no exception that allows the maximum weekly working hours to be exceeded without compensation; however, a variable distribution of daily working hours is permitted, provided that the weekly average does not exceed the legal limit. According to the Coffee Watch report⁹, coffee harvesting work in Colombia is remunerated through daily wages, which are defined as the payment made to rural workers for a day's work. This working day often exceeds the eight hours per day that are the standard for urban work. The Coffee Watch report (pp. 15-16) indicates that the working day and the maximum of 42 hours per week are exceeded.	In family farming: not applicable On farms larger than 5 hectares: standard due diligence	• In the case of written contracts, verify the existence of contracts and working conditions by sampling. • Obtain reports from labour inspectors, if available. Consultations with stakeholders Consult public reports from organisations specialising in these issues, such as Human Rights Watch (reports on human rights in various sectors, including coffee, highlighting working conditions), to obtain information on working conditions and possible cases of non-compliance with agreed working conditions, as well as any reports produced by national and local NGOs. Field verifications As a sample, conduct periodic field audits with commercial producers or those with more than 5 hectares of coffee plots to verify the following: • that employers offer written contracts where necessary (permanent workers on defined terms) • that workers receive the minimum wage and that working hours are respected, without discrimination between men and women. • that workers have access to protective equipment, are not expected to carry excessive loads, and that there are documentary records of these processes as part of the SG-SST.

9. https://coffeewatch.org/documents/49/ReporterBrasil_Cafe_Colombia_ESPANOL.pdf

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.3.1. Workers' wages must not be lower than the minimum stipulated by law.	Depending on the region and the agricultural and livestock activity carried out, the daily wages can vary. For this reason, the Agricultural Sector Price Information System (SIPSA) provides information on the different forms of remuneration used in the field: payments made per day, with or without meals, for livestock or agricultural work; as well as daily, weekly or monthly payments. Labour represents the largest share of total coffee production costs, which means it has a significant impact on the profitability and performance of the activity. Harvesting activities are paid higher wages than the national average daily wage, in response to the demand for labour in the coffee industry, according to the National Federation of Coffee Growers (2016). The Coffee Watch study also acknowledges compliance with the minimum wage, although it remains low for this type of work (p15-16). Workers claim to receive extra pay when the working day exceeds 8 hours. However, a study published in 2022 by the ILO in Colombia pointed out that coffee pickers in the country who are paid by production can earn less than the national minimum wage.	In family farming: not applicable On farms larger than 5 hectares: standard due diligence	Integrate requirements 4.1 to 4.4 into due diligence actions.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.4.1. The employer must provide protective equipment and training to workers who perform risky activities.	The activities identified as hazardous in the coffee sector are: • Implementation of pesticides and fungicides. • Work on steep slopes or erodible areas. • Use of machetes, chainsaws, and scythes. • Manual loading of heavy sacks (over 25 kg). • Working in areas with poisonous wildlife (in humid areas). Coffee harvesting involves working on steep hills, where mechanisation is impossible and the risk associated with machinery is low, but pickers carry sacks weighing an average of 60 kg to the control and weighing point. Currently, there is no universal diagnosis for workers in the coffee sector in terms of implementation of occupational health and safety standards.	In family farming: not applicable On farms larger than 5 hectares: standard due diligence	

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.5.1. For equal work capacities and conditions, there is no discrimination between workers based on gender, race, religion, age or other conditions.	Coffee growing is one of the most diverse economic activities. According to data from SICA and SIHC, 68.3% of coffee producers are men, 31.7% are women, 2.7% are young people, 38.5% are older adults, 20.6% are victims of armed conflict, 6.2% have certified disabilities, 8.9% are indigenous, 2.0% are Afro-descendants, and 0.1% are LGBT. The FNC has developed and implemented two population-oriented policies: (i) the Gender Equity Policy for Women Coffee Growers and (ii) the Generational Integration Policy. Both policies focus on the implementation of specific strategies aimed at removing the barriers that prevent women, young people and young adults from accessing the resources and opportunities mentioned. There is insufficient monitoring of differential treatment of agricultural workers based on gender, race, religion, age, nationality or any other characteristic.	In family farming: not applicable On farms larger than 5 hectares: standard due diligence	

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.6.1. Workers are free to join a trade union of their choice and cannot be penalised for doing so.	The risk in small-scale farms is non-existent, as at least 25 employees are required to form a trade union. Due to the largely informal nature of the sector and the fact that most farms do not have more than 25 workers, no systemic cases of restrictions on this right have been identified for workers in the coffee sector.	In family farming: not applicable High level of implementation on farms with more than 25 permanent employees: light due diligence	As a first step, identify whether there are farms with more than 25 permanent employees in the sourcing area. For producers with farms with more than 25 employees: Consultations with stakeholders - Consult public reports from labour offices and local NGOs specialising in these issues, such as Human Rights Watch and the ILO. Data collection and verification - Contractual verification: Ensure that there are no clauses or practices in employment contracts that directly or indirectly limit the right of association. Implementation of procedures and processes - Map the risks of anti-union practices in the supply chain, including outsourcing schemes designed to prevent unionisation. - Conduct internal and external audits to detect illegal outsourcing practices aimed at limiting workers' rights to union membership. - Establish channels for complaints and grievances for both direct and outsourced workers.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.7.1. The employer complies with the current Social Security regime, including the payment of the corresponding contributions.	For employees with an employment contract: Employers are responsible for enrolling their workers in the General Social Security System for Health, Pensions and Occupational Risks, and for making the corresponding contributions in accordance with current regulations. For contractors providing services: Contractors are responsible for their own enrolment and payment of contributions to the General Social Security System for Health, Pensions and Occupational Risks. The contracting company must verify this enrolment and implementation of contributions both before and during the execution of the contract. The GEIH figures for July 2024 reveal high levels of informal employment: nearly 94% of people employed in coffee-related activities were not contributing to a pension. According to a project by the ILO and INCAS Global+ (2025), only 8.8% of the population in the coffee sector contributes to a pension or already receives a pension, 1% participates in the Periodic Economic Benefits (BEPS) scheme and 3% is affiliated with an Occupational Risk Management (ARL) company. It is estimated that around 78% of the population is covered by a grant-funded health scheme, which suggests it is a highly informal sector with significant challenges in terms of achieving decent work and improving conditions for coffee workers.	In family farming: not applicable On farms larger than 5 hectares: standard due diligence	Integrate requirements 4.1 to 4.4 into due diligence actions.

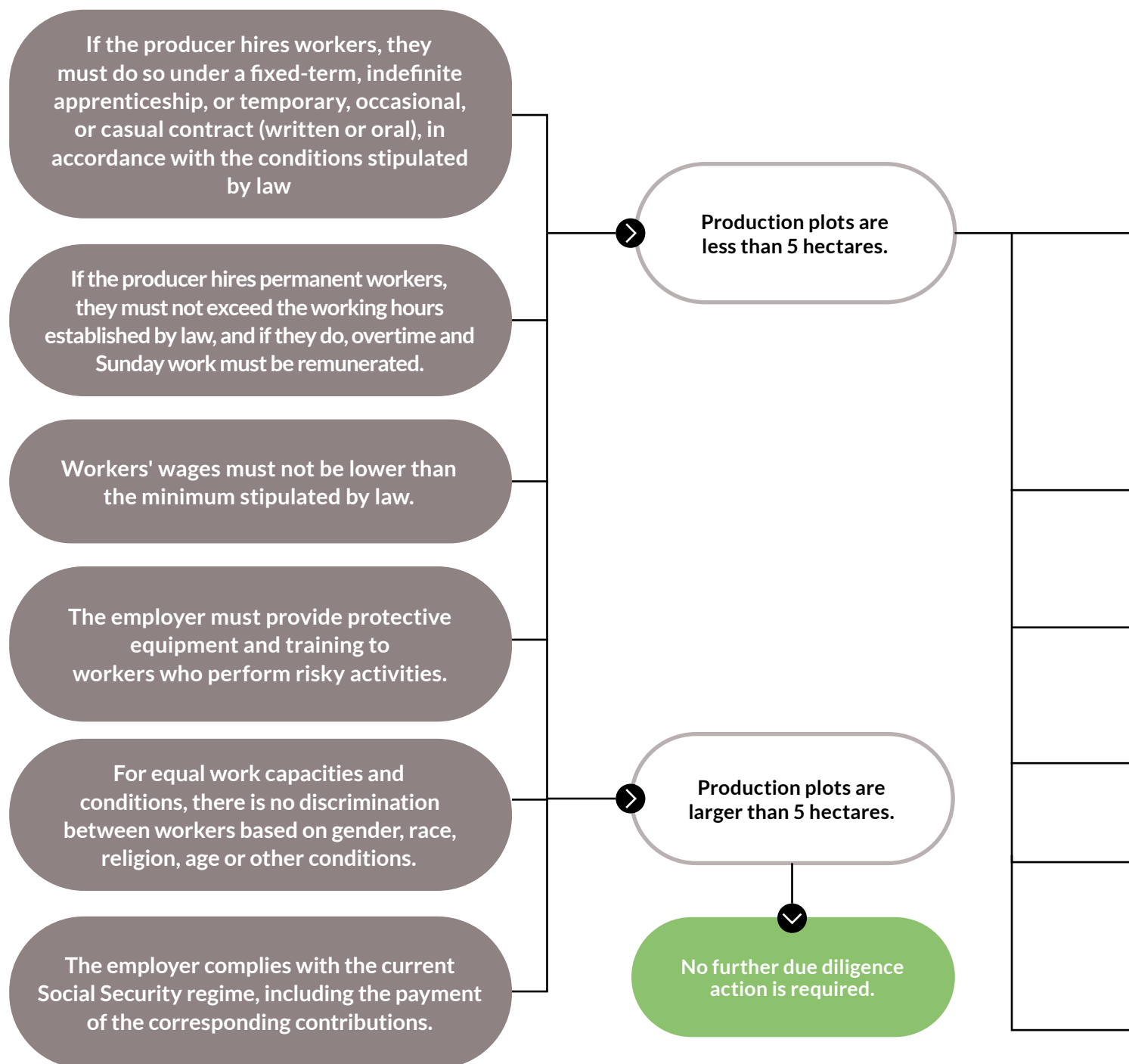
Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.8.1. The employer must grant pregnant women 18 weeks of maternity leave and fathers 8 days of paternity leave and pay leave benefits to both parents.	Large and medium-sized farms affiliated with trade unions tend to comply with these obligations, as they have high levels of labour formalisation. However, there may be greater risk or localised risk on small farms, where oral contracts, informal arrangements or lack of affiliation to the health system can limit access to leave and other benefits.	In family farming: not applicable High implementation on farms larger than 5 hectares light due diligence	Integrate requirements 4.1 to 4.4 into due diligence actions. Implementation of procedures and processes • Training for supervisors and human resources managers on leave regulations. • Written policies on maternity and paternity protection in farming. • Establish confidential reporting mechanisms to report non-compliance with

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Labour Rights 4.9.1. The employer adopts measures to prevent, address and punish workplace harassment and sexual harassment in the workplace, in accordance with current Colombian legislation.	No evidence has been found for Colombian coffee farming industry.	In family farming: not applicable High implementation on farms larger than 5 hectares: light due diligence	Consultations with stakeholders Consult public reports from labour offices and local NGOs specialising in these issues, or other stakeholders who are familiar with your supply chain. Implementation of procedures and processes • Promote employee training, internal policies and protocols for employees for the prevention, detection and handling of cases of workplace or sexual harassment with suppliers. • Enable complaint and reporting mechanisms. • Verify the follow-up of effective sanctions for workplace or sexual harassment. • Establish mechanisms for complaints and grievances, and promote the creation of coexistence committees and joint staff committees as relevant bodies to prevent sexual and labour harassment.

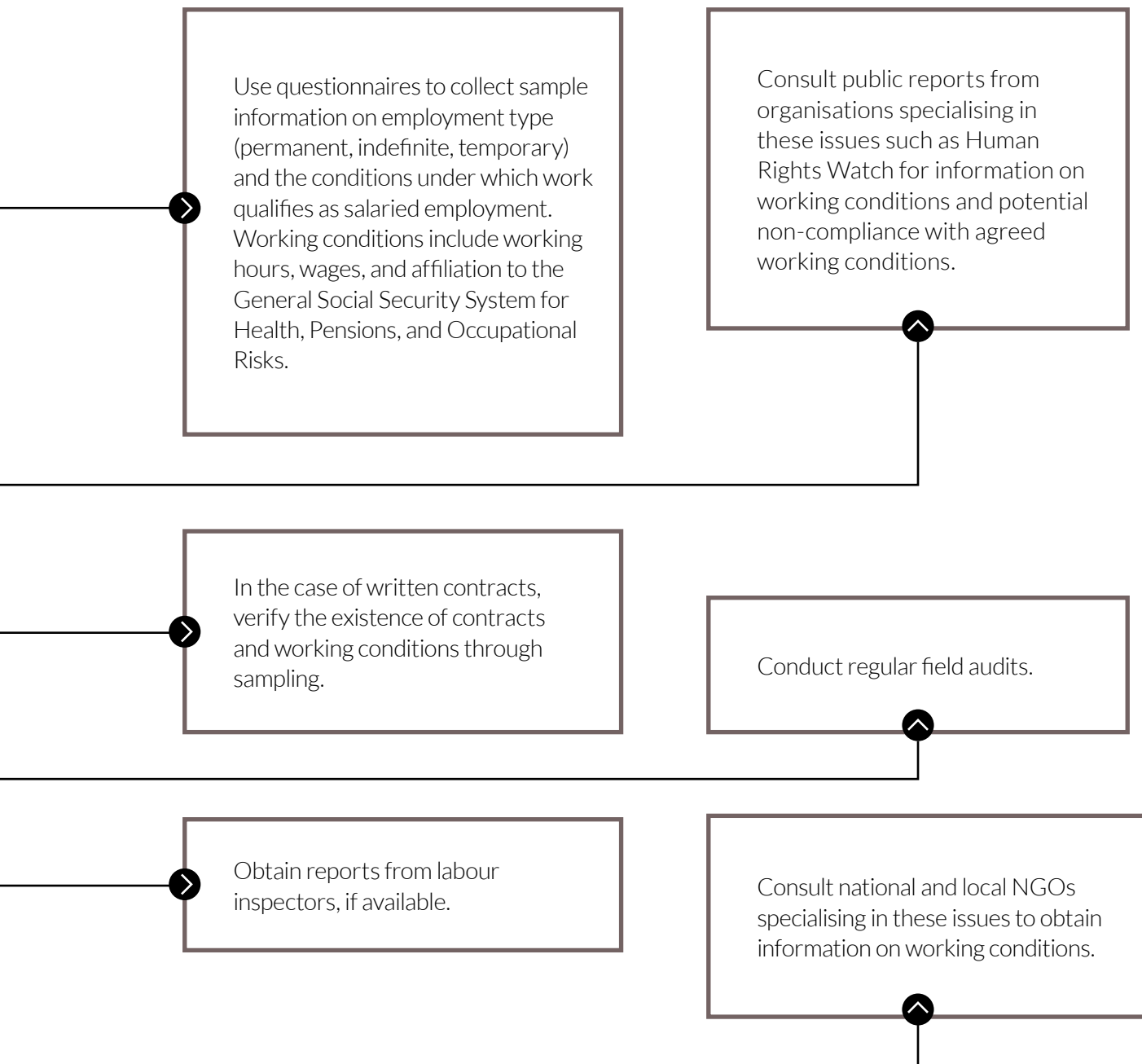


Requirements

4.1.1, 4.2.1, 4.3.1, 4.4.1, 4.5.1 and 4.7.1



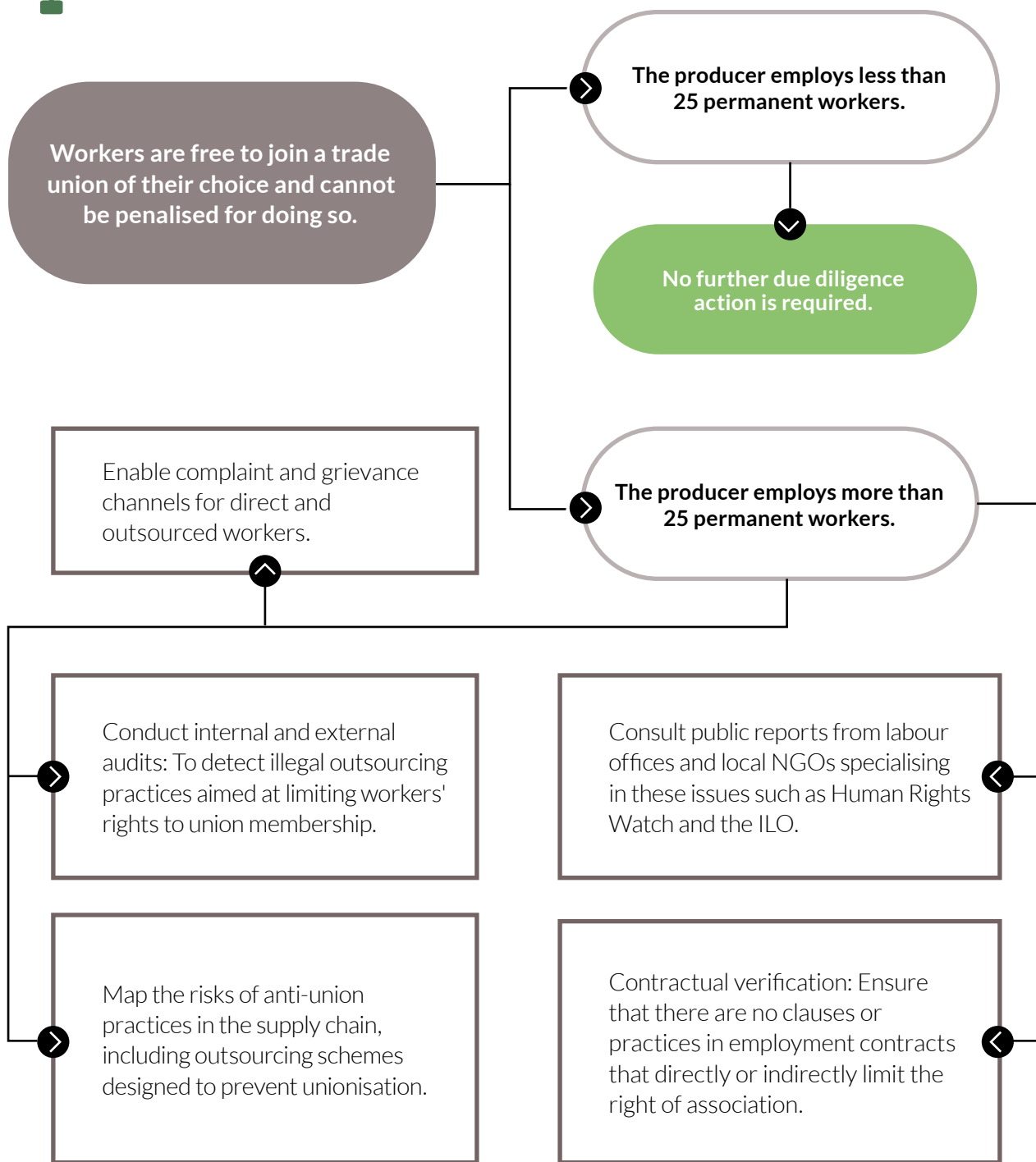
Light due diligence 4.1.1



Standard due diligence 4.2.1, 4.3.1, 4.4.1, 4.5.1 y 4.7.1



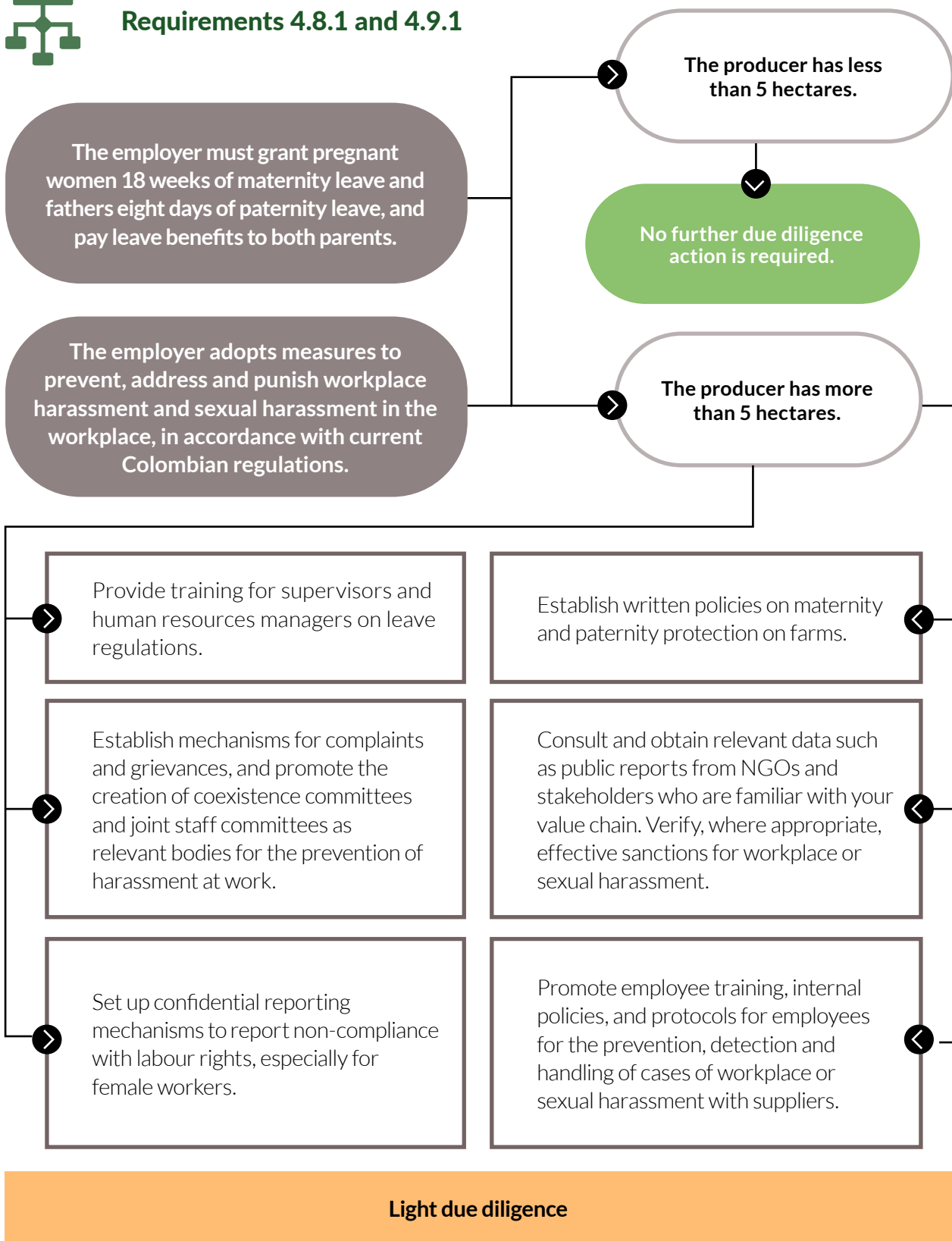
Requirement 4.6.1



Light due diligence



Requirements 4.8.1 and 4.9.1





CATEGORY 5 HUMAN RIGHTS

In the Colombian coffee sector, respect for human rights is essential for sustainability and access to international markets. National law and international commitments prohibit child and forced labour, although challenges persist due to informality and rural socio-economic conditions. In coffee farming, which is based on family agriculture, it is common for household members to participate in farming tasks, but this should

not be confused with child labour, as regulations protect the education and well-being of minors. Compliance with these standards is key to the due diligence required by the EUDR.

The risk to the coffee sector is negligible, although in areas of high social vulnerability, isolated cases may occur, such as those reported in the table below.

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Human rights 5.1.1. Minors under the age of 18 are not employed in agricultural activities, and those over the age of 15 are permitted under the conditions dictated by law (permits, such as working hours, weekly hours and prohibition of dangerous work).	In Colombia, labour legislation protects minors by establishing that the minimum working age is 15, always with authorisation and under conditions that do not compromise their health or education. The Colombian Labour Code prohibits the employment of minors under the age of 18 in hazardous work, and Law 1098 of 2006 (Childhood and Adolescence Code) limits their working hours to six hours per day and thirty hours per week, and prohibits night work between 6:00 p.m. and 6:00 a.m. These standards are complemented by international treaties ratified by Colombia, such as ILO Convention 138 and the Convention on the Rights of the Child, which reinforce the country's commitment to the prevention of child labour and the comprehensive protection of working adolescents, ensuring that their employment relationship is safe, educational and respectful of their rights.	In family farming: not applicable High level of implementation on farms larger than 5 hectares: light due diligence	Consultations with stakeholders With small producer suppliers, consult the ICBF on rulings or reports of child labour cases that put the health, integrity or education of minors at risk. Document compilation and verification - Conduct surveys to determine which production units employ minors between the ages of 15 and 18 - Verify strict implementation of the law on working hours, permitted tasks and health protection, listing the associated tasks and working hours. This can be done, for example, through systematic surveys or by collecting geolocation data from the farms - Obtain, where available, authorisation issued by the labour inspector or, failing that, by the local territorial authority - Request proof of schooling

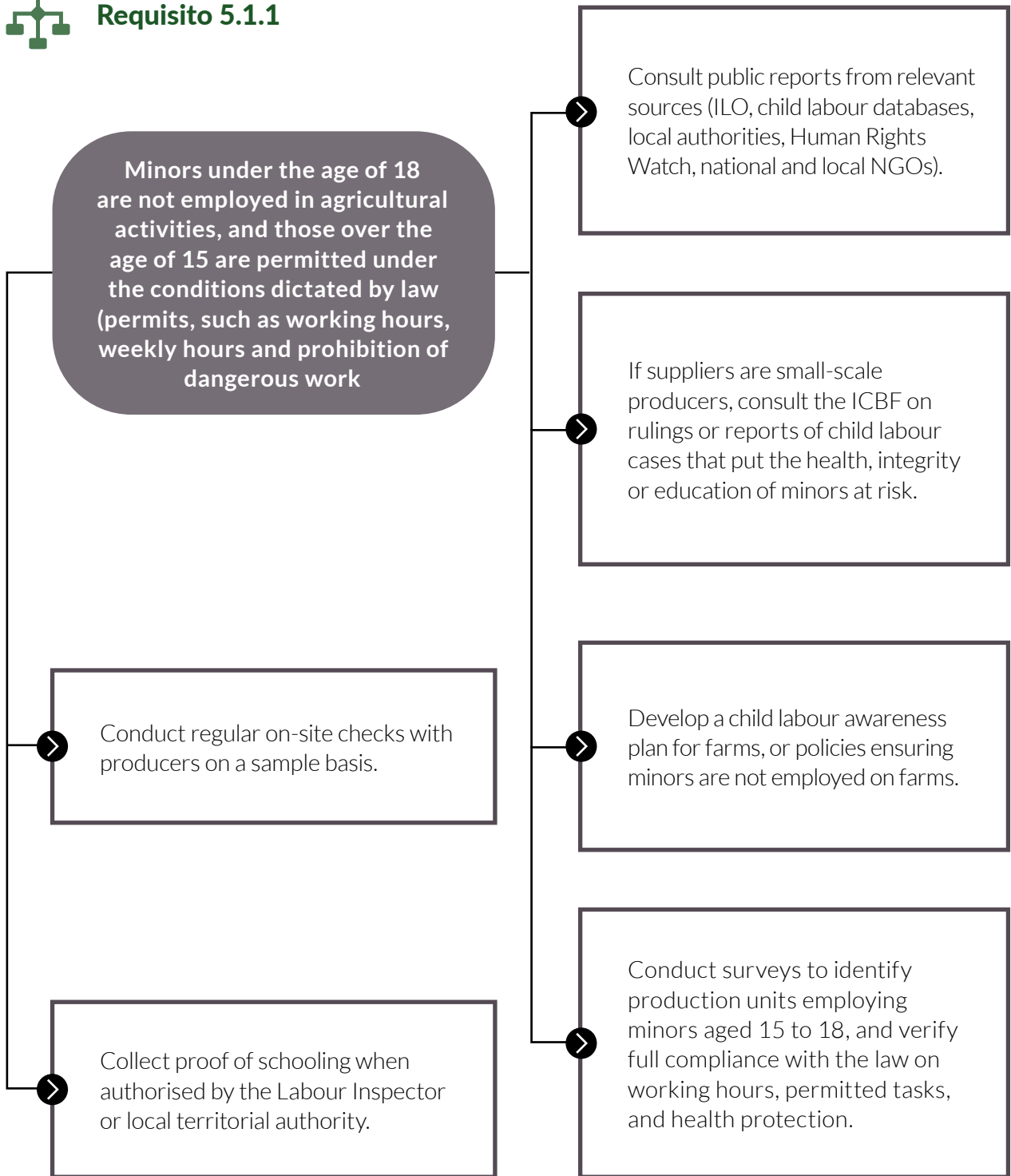
Legal requirement	Context	Level of implementation	Due diligence recommendations
 Human rights 5.1.1. No persons under the age of 18 are employed in agricultural activities, and persons aged 15 or older may be employed under the conditions established by law (legal permission, permitted working hours, weekly hour limits, and prohibition of hazardous work).	In family farming, the activities and tasks carried out by minors are not considered child labour as long as there is no employment relationship or exploitation, and the legal requirements regarding the risk to the health, integrity and education of the minor are respected. Official figures¹⁰ recorded in the System for the Identification, Registration and Characterisation of Child Labour and its Worst Forms (SIRITI), linked to the Colombian Ministry of Labour, indicate that only 61 children and adolescents were identified as working in coffee cultivation in the country in 2024. With regard to work permits for minors, the results of the study indicate that none of the children and adolescents who were working had authorisation issued by the competent authority. This is largely explained by the fact that the majority of the families surveyed are unaware of the regulations and procedures for obtaining work permits for adolescents aged 15 to 17. These authorisations are mainly requested by coffee growers with large farms and certified processes. As the minors surveyed carry out coffee-related activities on family farms, work permits are not even considered, which explains why this is not a common practice among families. The figures also reflect a more favourable scenario in relation to education. School non-attendance is close to eradication among the coffee-growing population. According to SIHC-2025 figures, only 2.7% of coffee producers live in households where a school-age child does not attend school. Finally, the Ministry of Labour and the FNC are developing awareness campaigns, radio programmes and educational materials aimed at preventing and reducing child labour, thereby strengthening the reinforcement of labour regulations in the sector.	In family farming: not applicable High level of implementation on farms larger than 5 hectares: light due diligence	Implementation of procedures and processes • Encourage suppliers to adopt zero-tolerance policies on child labour • Establish protocols to identify and mitigate risks related to minors • Develop an awareness plan on child labour for farms • Compile maps of primary schools in sourcing districts to assess school coverage and related risks Field verifications If the above indicates a significant risk of non-compliance with child labour legislation, carry out sample-based field verifications with producers. Ensure that no children under the age of 15 are working on the farm and that any tasks performed by children over the age of 15 do not pose a risk to their health, in particular through interviews with the workers concerned.

10. <https://www.dol.gov/agencies/ilab/documento-tecnico-sobre-trabajo-infantil-en-el-sector-cafetero-derivado-del-estudio>

Legal requirement	Context	Level of implementation	Due diligence recommendations
 Human rights 5.2.1. No one is forced or subjected to forced labour or practices that restrict freedom of employment.	EThe ILO and INCAS Global+ project (2025), developed with support from German cooperation (GIZ), identified the main labour risks in coffee farming—such as forced labour, child labour, or lack of social protection—and concluded that, although vulnerabilities may exist in steps such as harvesting and initial processing, no evidence of forced labour was found. On the contrary, the study highlights the existence of tools, testimonies and practices that strengthen decent work in the sector (ILO, 2025). The "Sustainable and Resilient Supply Chains" initiative (2021), promoted by the ILO, SENA and the European Union, confirms this trend by characterising employment in coffee farming with an emphasis on occupational safety, access to labour rights, the impact of COVID-19 and the training of new generations. In particular, the pilot project on living wages in Huila seeks to guarantee decent incomes and prevent labour exploitation through social dialogue and training (TSM Noticias, 2021).	In family farming: not applicable High level of implementation on farms larger than 5 hectares: light due diligence	Consultations with stakeholders: Conduct surveys or interviews with workers, trade unions (if any), NGOs and community leaders on working conditions, working hours, wages, and occupational safety. It is important to include both direct and subcontracted workers. Implementation of procedures and processes • Recommend and monitor labour suppliers in the implementation of Codes of Conduct that prohibit forced labour • Implement ongoing training programmes on labour rights for supervisors and workers, focusing on forced labour and freedom of employment • Conduct internal audits and external audits carried out by independent entities • Establish anonymous and confidential complaint mechanisms that allow workers to report abusive labour practices without fear of reprisals.



Requisito 5.1.1



Light due diligence



Requirement 5.2.1

No one is forced or subjected to forced labour or practices that restrict freedom of employment

Conduct surveys or interviews with workers, trade unions (if any), NGOs, and community leaders on working conditions, working hours, wages, and occupational safety.

Implement ongoing training programmes on labour rights for supervisors and workers, focusing on forced labour and freedom of employment.

Conduct internal and external audits.

Establish anonymous and confidential complaints mechanisms.

Light due diligence



CATEGORY 6 TAXATION, ANTI-CORRUPTION, TRADE AND CUSTOMS

N.B. This is the only category in the EUDR that potentially affects entities throughout the supply chain in the country of production, and not only at the level of the coffee production plot.

In the Colombian agricultural sector, taxation, trade and the fight against corruption are key elements for ensuring legality and transparency within the framework of the EUDR. Productive activities, particularly coffee production, are governed by mechanisms such as export taxes and parafiscal levies, which finance research programmes, technical assistance and institutional strengthening in the sector. These instruments, together with customs and trade controls, facilitate product traceability and reinforce confidence in international markets. In addition, the organisational tradition of the coffee industry and the country's institutional strength have contributed to maintaining a low risk of corruption in coffee production and marketing, which is a favourable factor for implementation of the standard due diligence requirements set by European regulations.

In Colombia, coffee production and trade are governed by an institutional system that clearly regulates taxation, trade and customs, contributing to a low-risk environment for corruption in this activity. Coffee exports are not subject to direct taxes, but they are subject to parafiscal charges administered by the National Federation of Coffee Growers, which finance extension, research, promotion and sustainability services for the sector. In terms of customs, the country has a solid regulatory framework that guarantees the traceability and legality of exported beans, under the supervision of the DIAN and with internationally recognised standards. This scheme, combined with the highly organised nature of the coffee sector, allows the Colombian coffee value chain to be perceived as transparent and at low risk of corrupt practices, which is relevant in the

context of the due diligence requirements established by the EUDR.

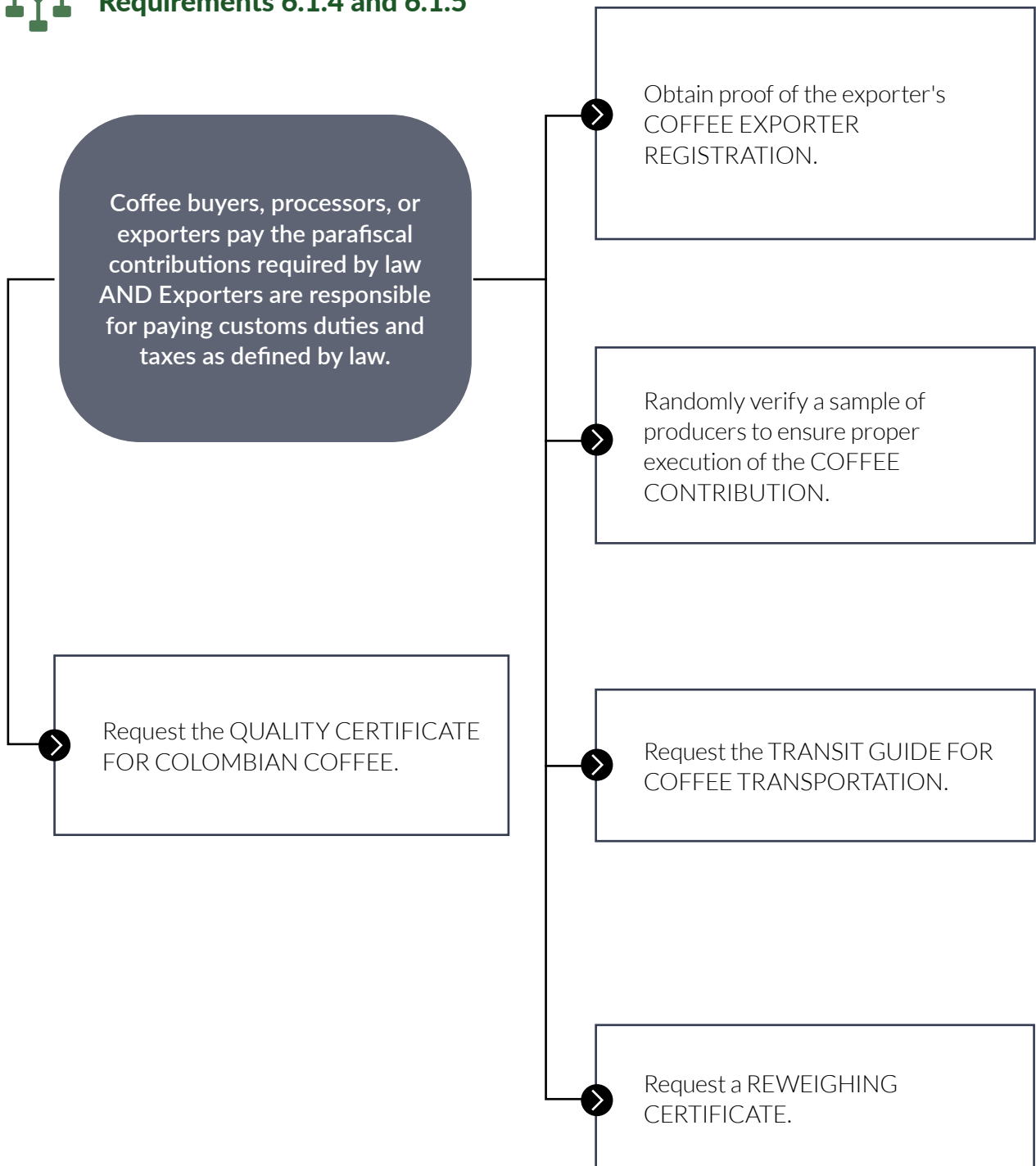
Coffee is recognised as a legal and traditional agricultural product, with a strongly institutionalised value chain backed by the National Federation of Coffee Growers and other state entities that guarantee its traceability and transparency. Although there are economic sectors in the country that have been used for money laundering or other illicit practices, coffee has not been identified as a high-risk item in this regard, precisely because of its strict control systems, the formal nature of its exports, and the monitoring of parafiscal and customs quotas. Consequently, the risk of coffee farming being linked to corruption or money laundering is considered low, which strengthens confidence in this sector in terms of the legality standards and due diligence required in international markets such as Europe.



Requisito legal	Contexto	Nivel de implementación	Recomendaciones de Debida Diligencia
 Taxation, anti-corruption, trade and customs 6.1.4. Coffee buyers, processors, or exporters pay the parafiscal contributions defined by law.	Parafiscal resources are invested, among other things, in the sustainable development of the sector, including research and innovation in sustainable technologies and practices, as well as extension services for adopting them, making them directly relevant to the objectives of the EUDR. The difference with other taxes is that this contribution is specific to the agricultural sectors (specifically coffee), which is why it must be taken into account. The risk is practically zero because it is an essential requirement for export.	High level of implementation Light due diligence	Document collection and verification • Obtain proof of the exporter's Coffee Exporter Registration • Randomly verify the proper execution of the Coffee Contribution in a sample of producers (Article 19 of Law 9/1991) • Transit Guide for coffee transportation • Reweighing Certificate • Quality Certificate for Colombian Coffee[
 Taxation, anti-corruption, trade and customs 6.1.5. Exporters are responsible for paying customs duties and taxes as required by law.	Coffee exporters in Colombia who intend to export coffee must hold a valid Coffee Exporter Registration with the National Federation of Coffee Growers. This registration provides them with an exporter code from the International Coffee Organisation, which must be used to identify and label the batches they export. There is no risk, because the system prevents exports if this requirement is not met, as having an Export Declaration is a prerequisite for exporting.	High level of implementation Light due diligence	



Requirements 6.1.4 and 6.1.5



Light due diligence



5

ANNEX

Annex 1.

Mapping methodology

The first step in developing this tool for legality-related due diligence is to identify the relevant legal requirements under the EUDR for coffee production in Colombia.

The EUDR defines the legality of commodities according to two criteria:

- National legal requirements must refer to the legal status of the production area.
- There are seven legal areas [for agricultural products]: land-use rights; environmental protection; the rights of third parties; labour rights; human rights protected under international law; the principle of Free, Prior and Informed Consent, as set out in the United Nations Declaration on the Rights of Indigenous Peoples; and tax, anti-corruption, trade and customs regulations.

On 2 October 2024 (updated in April 2025), the European Commission published a guidance document for the implementation of the EUDR, which interprets the Regulation's provisions on the legality criterion. The document aims to assess the relevance of legal requirements according to the following criteria:

- The requirements have a specific impact on the legal status of the commodity production area [with the exception of tax, trade and customs standards].
- The requirements are linked to the Regulation's objectives of halting deforestation and forest degradation, as part of the EU's commitment to address climate change and biodiversity loss.

Given that not all labour requirements, as well as certain human rights and third parties' rights, are directly related to the objectives of the EUDR, there is debate as to whether they fall within its scope of application.

In addition, the guidance document extends the scope of tax and anti-corruption regulations to steps in the value chain beyond the area of production. It should be noted that the Commission's guidance document is not legally binding. As specified in the guidance document itself, it does not replace, add to or modify the EUDR's provisions, which establish the legal obligations. Its purpose is to harmonise the implementation of the Regulation across EU member states.

Each EU Member State will adopt its own approach to monitoring operators' implementation of the EUDR. Ultimately, only the courts in each EU country can interpret EU regulations in a legally binding manner and determine the scope of the legality test.

In this context, this tool takes a precautionary approach. It considers all areas of law listed in Article 2.40 and includes all requirements that are considered relevant in these seven areas. It indicates with an asterisk those legal requirements that are not directly linked to the objectives of the EUDR.

This comprehensive approach will allow end users to choose the scope of their work based on their reading of the EUDR and the accompanying guidance.

How the relevance of the requirements has been determined

Under the EUDR, operators are solely responsible for carrying out due diligence to ensure that the products they trade in present a negligible risk of illegality. However, the EU recognises that producing countries can facilitate the work of operators and competent authorities (see question 1.30 of the FAQs), in particular by providing information that allows for a better understanding of the applicable national laws. This is precisely the purpose of Annex 2, which maps the relevant legal requirements for coffee produced in Colombia.

All existing legal texts and requirements in Colombia that fall within the scope of application of the seven legal categories specified above have been identified. Stakeholders in the coffee sector, through consultation workshops and bilateral working meetings (see Annex 3), assessed the relevance of each legal requirement to determine implementation of the EUDR legality criterion.

All identified legal requirements were considered a priori relevant for assessing the conformity of coffee or its derived products with the EUDR legality criterion, unless it can be clearly identified that:

- The legal requirement does not apply to the coffee plot or to the workers and third parties involved in it [with the exception of tax, trade and customs standards]
- The legal requirement is not relevant in the context of coffee production, because the conditions for its implementation are not present
- The legal requirement is generally applicable, is not subject to implementation texts that prevent its implementation or enforcement, and/or is covered by other more specific requirements.



Annex 2.

Mapping of legal requirements relevant to coffee produced in Colombia

The tables below, organised by area of law, present the requirements retained as relevant or irrelevant for coffee produced in Colombia, along with the justifications provided by the stakeholders consulted.

The tables present the **42 legal requirements identified**, of which **33 are considered relevant** and **9 irrelevant**.

Requirements marked with an asterisk are not directly related to the purposes of the EUDR.



Land-use rights

Land tenure regime

In Colombia, land is a fundamental pillar of rural development, cultural identity, and social justice. The Colombian legal framework recognises various forms of tenure, aiming to balance individual property rights with the collective interest and the social function that property must fulfil. Within this context, two essential concepts are distinguished: **private property**, understood as the legally recognised right to property, and **legitimate possession**, which refers to the material and continuous exercise of rights over land, even in the absence of a formal title. Both enjoy legal protection and, under certain conditions, may give rise to the consolidation of ownership rights.

Possession represents a meeting point between social reality and legal formality. In rural Colombia, it is common for farmers, rural communities and ethnic groups to occupy and work land with-

out a registered title, while exercising legitimate and prolonged possession. The legal system has recognised this situation and created mechanisms to formalise it, allowing holders to obtain title through administrative or judicial processes. In this way, possession becomes a path to **legal certainty** and the strengthening of the small-holder farming economy.

Private property is protected by the 1991 Constitution, which enshrines it as an inviolable right, although subject to social and ecological functions. Civil and agrarian laws develop this protection, regulating how property can be acquired, transferred and used, while incorporating principles that guarantee responsible and sustainable use. In this way, land is not conceived solely as an economic asset, but as a vital space for production, culture and environmental balance.

The Colombian State has also recognised the **collective territorial rights** of indigenous peoples, Afro-descendant communities and the Romani or Gypsy people. Through collective titling, the preservation of their ancestral territories, respect for their cultural identity and autonomy in land use are guaranteed. These entities—such as indigenous reserves and Afro-Colombian collective territories—are examples of collective property ownership with historical and legal value, backed by national laws and international instruments such as ILO Convention 169.

In addition, agrarian and civil legislation provides for various forms of **use and exploitation of rural plots**, such as lease agreements, loan agreements (*comodato*), usufruct, sharecropping (*aparcería*) or *anticresis* (an arrangement whereby a creditor uses a debtor's property to satisfy interest or debt), which allow for different degrees of access, administration and benefit from the land. These mechanisms are essential for promoting rural productivity, facilitating cooperation between landowners and workers, and ensuring sustainable land use.

Finally, **land restitution** is a central pillar of Colombia's policy of reparation for victims of the armed conflict. Through the Victims Law and complementary decrees, administrative and judicial procedures have been established to return the territories from which communities were dispossessed to smallholder farming families, indigenous communities, and Afro-descendant communities. This policy seeks not only to restore property rights, but also to rebuild the social fabric and ensure the dignified return of displaced populations.

In short, Colombia's legal framework on land reflects an effort to articulate social justice, historical recognition and sustainable rural development. Ownership, possession and collective territorial rights are not isolated categories, but interdependent elements that shape a comprehensive vision of the territory as a common good, a productive resource and a living space.

Legal regime for land use

In Colombia, land management aims to balance agricultural production with environmental protection and sustainable development. One of the key instruments for achieving this is the **delimitation of the agricultural frontier**, which defines the areas where agricultural activities can be carried out without affecting strategic ecosystems such as moorlands, forests, or wetlands. Formalised by the Ministry of Agriculture in 2018 based on studies by the UPRA, this delimitation makes it possible to identify areas that are suitable, conditional or excluded for production, guiding the scaling up of agriculture and preventing conflicts over land use. In turn, the **Policy on Productive and Social Land Use Planning for Rural Property** promotes land use that responds to its natural vocation and criteria of sustainability, productivity, and equity.

Within this framework, **Peasant Reserve Areas** (*Zonas de Reserva Campesina*) play an essential role in protecting the rural economy and preventing the uncontrolled expansion of the agricultural frontier. All these strategies are linked to the commitments of the **2016 Peace Agreement**, which proposes a national environmental zoning plan and comprehensive rural reform.

Land use planning in Colombia, primarily regulated by Law 388 of 1997, establishes **Land Use Plans (POT)** as mandatory planning instruments for municipalities and districts. These plans determine land use, incorporate environmental and risk criteria, and guide the balanced occupation of the territory. Their periodic updating ensures that urbanisation and rural development processes remain within sustainable limits. Together, the delimitation of the agricultural frontier and the POTs provide the foundation of a land use policy that aims to harmonise production, environmental conservation, and the well-being of the country's rural and urban communities.

Areas of law	Legal requirement	Legal basis	Relevance
1.1 Land tenure regime as an enabling factor for land use			
1.1. Land use rights are guaranteed	1.1.1. Land tenure is established by individual private ownership or by possession (regular or irregular). NB: Land tenure may be individual or collective (see the following requirement)	Private property • 1991 Constitution: Recognises and protects private property, with a social function. • Civil Code (Law 57 of 1887): Regulates ownership, possession, modes of acquisition and acquisitive prescription. • General Code of Procedure (Law 1564 of 2012): Judicial procedures for the defence of property and possession. • Law 1561 of 2012: Establishes a special process for granting title deeds to small property owners. • Law 1448 of 2011: Restitution of land to victims of armed conflict. • Law 1776 of 2016: Promotes the formalisation of rural property. • Law 1801 of 2016: Police and preventive measures to protect private property against disturbances. Legitimate Possession • Civil Code (arts. 762–828): Defines possession, its types and legal effects. • General Code of Procedure (Law 1564 of 2012): Regulates possessory and replevin actions. • Law 1776 of 2016: Recognises possession as a protected right and promotes rural formalisation. • Law 1448 of 2011: Protects the rights of displaced possessors and regulates restitution. • Decree 902 of 2017 (arts. 36–37): Empowers the National Land Agency to grant title to possession by administrative act. • Law 1801 of 2016: Police and preventive measures against disturbances affecting legitimate possession. • Case law (Constitutional Court and Supreme Court of Justice): Clarifies and reinforces the protection of legitimate possession.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
1.1 Land tenure regime as an enabling factor for land use			
1.1. Land use rights are guaranteed	1.1.2. Land tenure is established by collective ownership. NB: Land tenure may be individual or collective (see previous requirement).	Indigenous Reserves • Law 160 of 1994 (Art. 85): Regulates the constitution, expansion and reorganization of indigenous reserves. • Decree 1071 of 2015: Regulates the allocation, titling and legal protection of indigenous lands. • Decree Law 4633 of 2011: Measures for assistance, reparation and restitution of territorial rights to indigenous peoples. • Law 1448 of 2011: Restitution of land to victims, including indigenous communities. • ILO Convention 169: International recognition of the territorial and cultural rights of indigenous peoples. • Comunidades Negras, Black, Afro-Colombian, Raizal and Palenquero communities • 1991 Constitution: Recognises ethnic and cultural diversity, protects collective territories. • Law 70 of 1993: Regulates collective titling and autonomous use of Afro-Colombian territory. • Decree Law 4635 of 2011: Comprehensive reparation and restitution of land to Black and Afro-descendant communities who were victims. • Decree 1071 of 2015: Regulates the expansion, consolidation and legal protection of Afro collective territories. • Law 1448 of 2011: Restitution of land to victims of the conflict, including Afro-Colombian communities. • ILO Convention 169: International standards for territorial and cultural protection. Roma (Gypsy) people • Decree 4634 of 2011: Measures for assistance, comprehensive reparation and land restitution to the Rom people. • Decree 902 of 2017 (Art. 17): Special programme for access to land with a differential approach for the Romani people.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
1.1 Land tenure regime as an enabling factor for land use			
1.1. Land use rights are guaranteed	1.1.3. The farmer exercises the right to production on the plot through lease, usufruct, sharecropping agreement or provisional allocation contracts. This requirement is relevant when the producer has mere tenure, i.e., does not have land ownership or possession as described in the previous requirements	Civil Code (Law 57 of 1887) • Lease (arts. 1973–1991): Use of a plot in exchange for a fee; regulates obligations, duration and restitution. • Bailment (arts. 2200–2212): Loan for use, with obligation to return. • Anticresis (arts. 2458–2460): Transfer of a debtor's property to the creditor to satisfy interest or debt. • Usufruct (arts. 823–829): Use rights and enjoyment of another's property, for life or for a limited period; in the case of property, this requires a public deed and registration. • Emphyteusis: Use and enjoyment of another's plot in exchange for a fee. • Sharecropping (Law 6 of 1975, Decree 2815/1975, now Decree 1071/2015): Joint exploitation of rural land, with distribution of fruits or profits; must be in writing. • Law 160 of 1994 (Agrarian Reform): Regulates ownership and land use of rural land, administration of vacant land and rural lease agreements; seeks to promote access to land and rural productivity. • Law 1776 of 2016 (ZIDRES): Creates Zones of Interest for Rural, Economic and Social Development, allowing the use of vacant land in agro-industrial projects under non-transferable ownership contracts. • Law 70 of 1993 and Decree 1071 of 2015: Regulate contracts on collective territories of Afro-Colombian communities; require community approval and written formalisation.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
1.1 Land tenure regime as an enabling factor for land use			
1.1. Land use rights are guaranteed	1.1.4. The area of production has not been reported as subject to forced expulsion, abandonment or displacement of the original owner.	1991 Political Constitution • Art. 2: Duty of the State to protect life, honour and property. • Art. 58: Protection of property and acquired rights. • Art. 64: Progressive access to land for smallholder farmers, especially displaced persons. • Legislative Acts 1 and 2 of 2016–2017: Incorporate transitional provisions on peace and victims. Law 1448 of 2011 (Victims and Land Restitution Law) • Restitution of dispossessed or abandoned land. • Creation of the Registry of Forcibly Dispossessed and Abandoned Land (RTDAF). • Judicial proceedings before specialised judges. • Jurisdiction of the Land Restitution Unit (URT/ UAEGRTD) for administrative and judicial phases. Law 387 of 1997 • Care and protection of displaced populations. • Creation of the Unified Registry of Abandoned Plots and Territories (RUPTA). Law 160 of 1994 (Agrarian Reform) • Access to and redistribution of rural land. • Guaranteed access for farmers affected by the conflict. • Regulation of vacant land to prevent dispossession. Decrees 4633, 4634 and 4635 of 2011 • Comprehensive repairation and restitution of land for indigenous, Afro-descendant and Rom communities. • Protection of collective territories affected by conflict. Decrees 4829 of 2011, 440 of 2016, 1623 of 2023 (compiled in Decree 1071/2015, Part 15) • Regulate administrative procedures for restitution. • Define the powers of the URT, administrative phases, handling of second occupants and operation of the RTDAF.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
1.2 Legal regime for land use			
1.2. Legal requirements for land use are met.	1.2.1. The plot is located within the National Agricultural Frontier ; if it is located in conditional areas, production is only permitted under certain conditions that must be met.	Law 1776 of 2016, art. 4 - Entrusts the Ministry of Agriculture with defining the agricultural frontier, taking into account environmental reserves and land use restrictions. Resolution 261 of 2018 (Ministry of Agriculture) - Defines the National Agricultural Frontier and adopts the methodology for its identification. Resolution 128 of 2017 (OSPR Policy) - Establishes guidelines for the productive and social management of rural property, including the management and regulation of the agricultural frontier. Resolution 000327 of 2025 - Amends Articles 3, 6 and 8 of Resolution 261 of 2018, which defined the National Agricultural Frontier and adopted the methodology for its general identification. Agreement 024 of 1996 (INCORA) - Regulates the creation of Peasant Reserve Zones (ZRC); its function is to prevent uncontrolled scaling up of the agricultural frontier. Final Peace Agreement 2016, Point 1 (Comprehensive Rural Reform) - Commits the State to developing an environmental zoning plan that delimits the agricultural frontier.	Relevant
	1.2.2. Agricultural activity is permitted in accordance with land use ordinances.	Law 388 of 1997 - Main standard for land use planning. Creates Land Use Plans (POT), mandatory for municipalities and districts, to be updated every 12 years (Art. 10). Decree 1077 of 2015 - Regulates the formulation, adoption, and implementation of POT, EOT, and PBOT. Specifies urban planning, zoning, and procedural standards. Law 99 of 1993 - Integrates environmental criteria into territorial plans, ensuring sustainability and protection of strategic areas. Law 1454 of 2011 (LOOT) - General framework for territorial coordination between national, departmental and municipal levels in planning. Law 2079 of 2021 - Reinforces the focus on sustainability and habitat within land use planning.	Relevant



Environmental protection

In Colombia, environmental protection and sustainable management of natural resources are based on the 1991 Constitution, which recognises the right of all people to enjoy a healthy environment and grants special protection to natural parks due to their inalienable and inprescriptible nature. A robust legal framework has been developed that seeks to harmonise ecosystem conservation with the country's productive activities. From Law 2 of 1959, which defined large national forest reserves, to the most recent standards on waste management and emission control, environmental regulation has evolved towards a comprehensive approach to sustainability.

Protected areas, regulated by the National System of Protected Areas (SINAP), include different categories ranging from strict conservation to integrated management. Agricultural activities are restricted in these areas, although sustainable uses are permitted in specific contexts, such as Integrated Management Districts or Civil Society Nature Reserves. Complementarily, standards such as Law 1753 of 2015, as well as international commitments derived from the Ramsar Convention, protect wetlands and water sources from the scaling up of agricultural activities and intensive land use.

Water, soil and waste management is another essential pillar of environmental policy. Colombian regulations require permits for the use of water resources, with exceptions for dispersed rural dwellings, and promote water conservation and efficient use through specific plans. In relation to spills, Resolution 631 of 2015 establishes maximum pollutant limits for productive activities, including agricultural activities, in order to prevent the contamination of rivers and streams. Although small subsistence producers are exempt from Resolution 631 and from the implementation of complex procedures, they must ensure basic wastewater treatment through adequate systems.

With regard to **solid and hazardous waste**, legislation led by Decree 2981 of 2013 and Decree 4741 of 2005 requires municipalities, companies, and producers to implement comprehensive management plans that prioritise the reduction, reuse, and safe disposal of waste. The most recent resolutions reinforce the shared responsibility of manufacturers and importers in the collection and treatment of containers, packaging and chemicals, extending the chain of environmental responsibility beyond the point of consumption.

Law 2111 of 2021 amends the Penal Code by **deforestation as a criminal offence in Article 330**. It does not establish a cut-off date or baseline for deforestation, nor does it use geographic information layers in the explanatory memorandum, but it does elevate deforestation to the status of a crime, effective 29 July 2021.

Soil and air also have specific protection standards. National policies promote agroecological practices, erosion prevention, and the restoration of degraded land, while air quality regulations prohibit open burning and promote the sustainable use of biomass. These measures are reinforced by criminal penalties, such as the criminalisation of deforestation in 2021, which demonstrates the state's commitment to combating forest cover loss and protecting biodiversity.

This regulatory framework reflects a vision of a country that seeks to balance agricultural productivity with environmental conservation. Rather than isolated prohibitions, environmental standards in Colombia make up a coordinated system that promotes sustainability, responsible use of natural resources, and shared responsibility among the state, rural communities, and the productive sector.

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.1. Agricultural activity is prohibited in protected areas or areas subject to legal exclusion, except where provided for in the management documents for these areas or covered by management agreements with the respective authorities, and in accordance with the established management conditions	1991 Constitution • Art. 63: Natural parks are inalienable, imprescriptible and unseizable. • Art. 79: Right to a healthy environment and duty of the State to protect ecological areas. Law 2 of 1959 • Delimits seven National Forest Reserves; restricts land use and zones into strict conservation (A), restricted use (B) and limited agricultural use (C). Decree 2811 of 1974 – Natural Resources Code • Regulates the management of natural resources; defines the National Park System (arts. 327-330). Decree 622 of 1977 • Regulates national park categories and prohibits agricultural and extractive activities in areas covered by the system. Law 99 of 1993 • Creates the Ministry of the Environment and the SINA; protects moorlands, water sources and water ecosystems. Decree 3600 of 2007 • Regulates determinants of rural land use planning; classifies protected soils (moorlands, wetlands, riparian zones, aquifers). Law 357 of 1997 (Ramsar Convention) • Approves the international protection of wetlands. Decree 1667 of 2002 • Designates Colombian wetlands as Ramsar sites. Law 1753 of 2015, art. 172 • Prohibits high-impact agricultural and extractive activities in Ramsar wetlands. Decree 1076 of 2015 • Sole regulatory body for the environmental sector; organises SINAP categories (parks, forest reserves, management districts, recreation areas, etc.); allows agriculture only under sustainable criteria in areas such as Integrated Management Districts or Civil Society Reserves. Resolution 110 of 2022 (Ministry of the Environment) • Regulates the removal of Forest Reserve areas (Law 2/1959). Law 160 of 1994, Decree 902 of 2017 and ANT agreements • Regulate the use of unallocated vacant land and land-use rights for agricultural purposes under sustainability criteria.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.2. Authorised agricultural inputs are used, managed, and disposed of appropriately in accordance with technical procedures.	Law 9 of 1979 (National Health Code) - Regulates the manufacture, import, trade and use of chemical inputs. Decree 2811 of 1974 (Natural Resources Code) - Establishes guidelines for the use of chemical substances with environmental criteria. Decree 1843 of 1991 - Regulates the handling, use and storage of agricultural pesticides; requires training for users. Law 99 of 1993 - Empowers environmental authorities to control and sanction the improper use of agrochemicals. Resolution 447 of 1974, 209 of 1978, 1849 of 1985, 150 of 2003 and 062376 of 2020 (ICA) - Prohibit dangerous pesticides (DDT, Aldrin, Endrin, organochlorines and others listed). Law 1650 of 2013 - Prohibits pesticides containing persistent and toxic substances (Stockholm Convention). Decree 1071 of 2015 (Agricultural Sector) - ICA controls the registration, quality and safety of fertilisers, pesticides and bio-inputs; requires producers to allow inspections and report health risks. Resolution 789 of 2007 (ICA) - Establishes obligations regarding the storage, transport, final disposal and registration of hazardous substances. Resolution 375 of 2004 and 375 of 2021 (ICA) - Regulate the registration and use of bio-inputs and plant extracts for agricultural use. Resolution 1382 of 2013 (ICA) - Defines procedures for the registration of chemical pesticides for agricultural use.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.2. Authorised agricultural inputs are used, managed, and disposed of appropriately in accordance with technical procedures.	Resolution 3751 of 2013 (ICA) - Regulates the registration, labelling and trade of fertilisers and soil conditioners. Resolution 1704 of 2018 (MinAgricultura) - Promotes the use of biological inputs and clean agriculture. Law 2183 of 2022 - Orders the creation of a technical protocol for bio-inputs, led by ANLA, with support from ICA and AGROSAVIA. Decree 1076 of 2015 (Environment Sector) - Requires environmental licensing for activities that pose a risk to ecosystems and regulates the introduction of species and bio-inputs. Resolution 090832 of 2021 (ICA) - Regulates the trade, distribution, and storage of agricultural inputs and seeds.	
	2.1.3. The productive activity does not result in spills into water sources, or, if it does, the activity is covered by the appropriate management plans and spill permits	Regulatory framework for spills and water use in Colombia Law 1955 of 2019 (Art. 279): Exemption from water concessions and spill permits for domestic consumption in dispersed rural dwellings; applies to small producers (e.g., subsistence coffee). Decree 3930 of 2010: Regulates the use and management of water resources and spill permits. Resolution 631 of 2015: Sets parameters and maximum limits for specific spills into water bodies and sewers. Resolution 699 of 2021: Regulates the spill of treated domestic wastewater into the ground. Decree-Law 2811 of 1974 (arts. 70, 77 and 137): Recognises water as a public good, requires the construction of septic tanks and regulates their use under sustainability criteria.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.3. The productive activity does not result in spills into water sources, or, if it does, the activity is covered by the appropriate management plans and spill permits.	• Decree 1076 of 2015 (arts. 2.2.3.2.1.1.1; 2.2.3.3.5.1; 2.2.3.3.4.3-4; 2.2.6.1.3.1): Compiles provisions on concessions, spill permits and obligations for rational water use. • Law 373 of 1997: Mandates programmes for efficient water use and conservation. • Decree 2981 of 2013 (art. 110): Establishes additional obligations for wastewater management. NB: Subsistence producers in dispersed rural areas are exempt from the concession and spill permit process but must ensure basic sanitation (septic tanks or treatment systems), complying with the quality parameters established in Resolutions 699 of 2021 and 631 of 2015.	Relevant
	2.1.4. Solid waste and agricultural packaging are managed in accordance with proper classification, identification, and disposal procedures.	• Decree 2981 of 2013, Articles 2 and 88: Defines Comprehensive Solid Waste Management Plans (PGIRS) as mandatory municipal instruments for reduction, reuse, treatment, and final disposal. • Decree 2981 of 2013, art. 110: Defines mandatory implementation of integrated waste management for all stakeholders. • Resolution 0754 of 2014: Approves the methodology for the formulation, implementation, monitoring and updating of PGIRS. • Decree 4741 of 2005, Articles 3 and 10: Regulates hazardous waste (RESPEL); requires all generators to ensure its comprehensive management and formulate a management plan to prevent, reduce and minimise its hazardousness. • Resolution 1402 of 2006: Develops Decree 4741/2005 on the prevention and management of hazardous waste. • Resolution 1407 of 2018 (amended by Res. 1342 of 2020): Regulates the post-consumer management of paper, cardboard, plastic, glass and metal containers and packaging, establishing collection and recycling obligations for producers, importers and distributors.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.5. Water may be used for irrigation of productive land only after obtaining a permit or concession and in accordance with the conditions of that permit/concession.	• 1991 Constitution (Articles 79 and 80): Recognises the right to a healthy environment and the state's obligation to plan the management of natural resources, including water. • Decree Law 2811 of 1974 (National Code of Natural Resources, arts. 131-136): Regulates water use, including concessions for irrigation and drainage. • Law 99 of 1993: Creates the SINA and grants environmental authorities the power to grant water permits and concessions. • Law 373 of 1997: Establishes mandatory programmes for efficient water use and conservation, with implementation also applicable to agricultural irrigation. • Decree 1541 of 1978: Specifically regulates water concessions for different uses, including agricultural irrigation, and establishes user obligations. • Decree 1076 of 2015 (DUR Environment): Compiles and updates environmental regulations, including the water concession regime and irrigation permits. • Resolution 0869 of 2004 (MAVDT): Technical guidelines for water efficiency and conservation programmes.	Not relevant Not relevant given the nature of coffee crops and, in addition, technical assistance includes issues of efficient water use and management in this type of recommendation for planting and crop management.
	2.1.6. The use of water for other activities associated with processing after obtaining a permit or concession and according to the conditions of this permit/concession.	• Law 1955 of 2019 (Art. 279): Defines exemption from water concessions and spill permits for domestic consumption in dispersed rural dwellings; applies to small producers (e.g. subsistence coffee). • Decree Law 2811 of 1974 (National Code of Natural Resources, arts. 86, 88, 89): Recognises water as a public good; its use requires a concession, except in cases provided for by law. • Decree 1541 of 1978, art. 36: Regulates procedures and conditions for granting surface and groundwater concessions, including agricultural activities. • Law 99 of 1993: Establishes the Ministry of the Environment and the SINA, as well as guidelines for the conservation and sustainable use of water resources.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.6. The use of water for other activities associated with processing after obtaining a permit or concession and according to the conditions of this permit/concession.	• Law 373 of 1997: Establishes the Programme for Efficient Water Use and Conservation (PUCAA). • Law 1450 of 2011 (PND): Reaffirms access to water as a national priority and promotes its sustainable management. • Decree 1076 of 2015, Book 2, Part 2, Chapter 2: Regulates water concessions, requirements, procedures and common uses by ministerial decree (arts. 2.2.3.2.1.1 to 2.2.3.2.6.2). • Resolution 509 of 2013: Establishes administrative procedures for the application and granting of water concessions.	Relevant
	2.1.7. Agricultural activity respects waterways (riverbeds, ravines, streams and lakes) as established by law.	• Decree Law 2811 of 1974, art. 83: Defines a parallel strip of up to 30 m on each side of rivers and lakes for their protection. • Decree 1449 of 1977, art. 3 (incorporated into Decree 1076 of 2015): Requires rural landowners to conserve protective forest areas of at least 30 m with vegetation cover next to bodies of water. • Circular 16 of 2019 (MADS): Clarifies that the 30 m in Decree 1449 are a rural conservation obligation, not a criterion for limiting buffer zones. • Decree 2245 of 2017: Establishes technical criteria for the demarcation of riparian zones (characterisation, GIS, restoration, coordination with POT). • Resolution 0957 of 2018 (MADS): Adopts the Technical Guide to Criteria for the Delimitation of Waterways. • Law 1333 of 2009 and Law 2387 of 2024: Regulate the environmental sanctioning procedure for damage to water bodies and their protection zones. • Law 2111 of 2021: Reinforces the criminal protection of water resources through penalties for environmental damage.	Not relevant The development and implementation of the delimitation of waterways have progressed in an incipient manner in the country and depends on the objectives and prioritisation of each territorial environmental authority. Regulatory development is considered insufficient.

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.7. Agricultural activity respects waterways (riverbeds, ravines, streams and lakes) as established by law	To date, there is no public indicator indicating how many regional autonomous corporations (CARs) have conducted comprehensive studies on the delimitation of waterways in Colombia. However, Decree 2245 of 2017 and the Technical Guide adopted by Resolution 0957 of 2018 assign this responsibility directly to regional environmental authorities, so it is expected that all CARs and urban authorities with environmental functions are making progress. The delimitation process is carried out by watersheds or bodies of water and depends on the prioritisation made by each environmental authority. Some CARs, such as CORPOBOYACÁ, CVC, CORANTIOQUIA and CARDER, have reported progress in delimitation, especially in areas under high water pressure or risk of occupation. However, there are significant delays in the rest of the country. The Ministry of Environment has promoted the implementation of the technical guide but has not published a consolidated national report detailing the total number of studies carried out.	Not relevant
	2.1.8. Producers are obliged to protect and conserve the soil.	• Law 68 of 1988: Promotes practices for soil conservation and erosion prevention. • Decree 1743 of 1994: Establishes mandatory environmental education programmes, including sustainable soil management. • Decree 2820 of 2010: Regulates environmental licences, incorporating measures for soil protection against projects with an impact. • Resolution 541 of 2015: Regulates the use and disposal of excavation materials to prevent soil degradation. • Decree Law 2811 of 1974 (Natural Resources Code): Establishes general principles for the conservation and rational use of soil. • Decree 1076 of 2015, art. 2.2.1.1.18.6: Imposes obligations on rural landowners to use the soil according to its vocation, to apply techniques to prevent its degradation, and to protect vegetation cover in agricultural and livestock areas, roads and water bodies. • National Policy on Comprehensive Environmental Soil Management (GIAS, MADS 2013): Establishes strategic guidelines for soil monitoring, conservation and sustainable use.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.1. Environmental requirements for agricultural activities are met	2.1.9. Agricultural activity does not exceed the legal limits for atmospheric pollutants, and the burning of agricultural waste is carried out after obtaining a permit and in accordance with legal conditions.	• Law 99 of 1993 (General Environmental Law): Recognises air as a natural resource and the basis of environmental management. • Decree 948 of 1995: Regulates air quality. Establishes maximum limits for atmospheric pollutants and requires the control of emissions from agricultural activities, including the burning of waste. • Decree 1076 of 2015, art. 2.2.5.1.3.14: Prohibits open burning in rural areas, with exceptions (soil preparation, frost control, among others) under strict regulation. • Resolution 532 of 2005: Establishes requirements, permits, and conditions for controlled open burning in rural and mining areas; authorises suspension during critical periods (art. 8). • Resolution 0391 of 2018: Reinforces the prohibition of unauthorised agricultural burning, regulates technical conditions for controlled burning, and promotes alternatives such as composting and biomass use.	Relevant
2.2. Protection of forest ecosystems and wild fauna and flora	2.2.1. The producer has not established new production areas for relevant products in areas of deforestation after 29 July 2021.	• Decree Law 2811 of 1974 (National Code of Natural Resources): Regulates the sustainable management and use of forests; requires permits for exploitation and removal in forest reserves for the removal of natural cover. • Law 160 of 1994, art. 52: Establishes the extinction of agricultural ownership rights over rural plots that fail to comply with the social and ecological function of the property, including cases of deforestation. • Decree 1071 of 2015, art. 2.14.19.2.7: Details the burden of proof on the owner regarding the proper use of land in agricultural domain extinction proceedings. • Resolution 261 of 2018 (UPRA): Defines the National Agricultural Frontier, excluding areas with natural forests as of 2010, prohibiting agricultural activities in areas of deforestation after that date.	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.2. Protection of forest ecosystems and wild fauna and flora	2.2.1. The producer has not established new production areas for relevant products in areas of deforestation after 29 July 2021.	• Law 1333 of 2009: Establishes the environmental sanctioning procedure for the implementation of offences such as unauthorised deforestation. • Law 1708 of 2014: Regulates judicial forfeiture, which can be implemented on plots linked to environmental crimes such as deforestation. • Law 2111 of 2021 (amends the Penal Code, Art. 330): Classifies deforestation as a crime, with criminal penalties effective from 29 July 2021. Law 2111 of 2021 amends the Penal Code by introducing the crime of deforestation in Article 330. It does not establish a cut-off date or baseline for deforestation, but it elevates the offence to criminal status, coming into force on 29 July 2021. The explanatory memorandum does not use layers of geographic information, but it does refer to supporting figures that imply a period of analysis. The latter date is taken as the cut-off date, and evidence can be collated and taken from this date onwards or from cases of deforestation reported since the law came into effect.	Relevant
	2.2.2. Producers who establish an agroforestry system or transform their forest plantation into an agricultural production system (including agroforests) on a plot of land must comply with the legal standards on use.	• Law 101 of 1993 (General Law on Agricultural Development): Classifies commercial forestry activity as part of the agricultural sector, including agroforests. • Decree 1498 of 2008 (compiled in Decree 1071 of 2015): Regulates commercial forest crops and agroforests, provided they are not located in environmental protection areas. • Decree 2398 of 2019: Updates regulations on the transport and circulation of forest products; requires registration of plantations and agroforestry systems with the Single Forestry Window (VUF).	Relevant

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.2. Protection of forest ecosystems and wild fauna and flora	2.2.2. Producers who establish an agroforestry system or transform their forest plantation into an agricultural production system (including agroforests) on a plot of land must comply with the legal standards on use.	• Decree Law 2811 of 1974 (National Code of Natural Resources): Defines categories of forest plantations (industrial, protective and protective-productive) and requires permits for the movement of forest products (Arts. 223 and 230). • Decree 1071 of 2015, art. 2.3.3.2: Defines commercial forestry and equates it with industrial or commercial forest plantations. • Decree 1076 of 2015, arts. 2.2.1.1.12.2 and 2.2.1.1.12.3: Requires the registration of forest plantations, hedges, windbreaks and shade barriers with the environmental authority, establishing requirements for their use. • Resolutions 1909 of 2017 and 081 of 2018 (MADS): Regulate the National Online Unified Permit (SUNL) for the legal movement of biological diversity. • Conpes 3934 of 2018 (Green Growth Mission): Establishes strategic guidelines for consolidating the forestry economy, including agroforests and non-timber products.	Relevant
	2.2.3. Agricultural activity has a management plan or environmental licence, including an environmental impact study.	According to Article 2.2.2.3.2.1 of Decree 1076 of 2015, only projects, works and activities expressly indicated in Articles 2.2.2.3.2.2 and 2.2.2.3.2.3 of the same decree are subject to environmental licensing, which does not include agricultural activity related to coffee, oil palm or cocoa farming.	Not relevant Coffee growing in Colombia does not require a management plan or an environmental licence.

Areas of law	Legal requirement	Legal basis	Relevance
2. Environmental protection			
2.2. Protection of forest ecosystems and wild fauna and flora	2.2.4. Agricultural activity does not violate the protection of endangered species or the conservation of biodiversity.	• Decree Law 2811 of 1974 (National Code of Natural Resources): Defines wildlife (Art. 249) as national heritage (Art. 248); prohibits the destruction of habitats and harmful practices such as the use of fire, chemicals or the destruction of nests (art. 265); imposes conservation and rational management of hydrobiological resources (art. 266). • Decree 1608 of 1978: Regulates wildlife; requires the protection of critical habitats for native and migratory species (Art. 219), collaboration in control and surveillance, and reporting of violations. It establishes that all exploitation must assess environmental impacts (Art. 14) and allows for the declaration of species with special protection (Art. 24). • Law 99 of 1993: Establishes the Ministry of the Environment and the National Environmental System (SINA), recognising biodiversity as national heritage and of public interest. • Law 1930 of 2018: Regulates the comprehensive management of páramos and promotes sustainable agricultural practices to protect biodiversity in these ecosystems. • Law 165 of 1994: Approves the Convention on Biological Diversity, committing the country to the conservation and sustainable use of biodiversity. • Law 1333 of 2009: Establishes environmental sanctioning procedures for offences affecting fauna and ecosystems. • Resolution 1912 of 2017 (MADS): Defines the official list of endangered wild species in Colombia.	Relevant



Third parties' rights and FPIC

In Colombia, the concepts of "prior consultation" and "Free, Prior and Informed Consent" (FPIC) tend to be used interchangeably, but in law they are not the same. Free, Prior and Informed Consent (FPIC) is an essential principle, superior to consultation, which seeks to ensure that indigenous and Afro-Colombian communities actively participate in decisions that may significantly affect their territories, culture and ways of life. Prior consultation, on the other hand, is the right to be consulted and to participate; it seeks agreement but is not always binding. The 1991 Constitution recognises the ethnic and cultural diversity of the nation, protects historical and archaeological heritage, and grants these communities territorial and jurisdictional autonomy, principles reinforced by ILO Convention 169. Within this framework, agricultural activity must be carried out with respect for cultural and natural heritage, avoiding or minimising impacts on sacred sites, ancestral resources and habitats of

cultural or historical importance. This entails recognising territorial rights, ensuring that productive projects comply with conservation standards and, when there is a risk of impact, implementing prior consultation processes that guarantee effective participation and equitable agreements. In Colombia, the Constitutional Court has ruled that Free, Prior and Informed Consent (FPIC) does not replace prior consultation but rather complements and strengthens it when a project or measure threatens the physical, cultural or spiritual survival of a community. In such cases, FPIC is mandatory, including situations involving forced transfers or relocations, the exploitation of resources that compromises the cultural or economic integrity of communities, or impacts on sacred sites essential to their survival.

Beyond being a legal obligation, FPIC is a tool that builds trust between producers, communities and the state, and ensures that agricultural development is guided by sustainability criteria and respect for cultural diversity. Examples such as the coffee initiatives in Tolima and Cauca, where indigenous communities have transformed coffee into a symbol of peace, identity and reconciliation, show that agricultural production can be compatible with cultural and environmental protection when relationships of dialogue and cooperation are established. In this regard, due diligence under the EUDR must include verification of respect for ethnic rights, protection of collective territories and the implementation of FPIC as an indispensable condition for responsible production, particularly whenever there are indications of non-compliance or the presence of indigenous or Afro-Colombian communities.



Areas of law	Legal requirement	Legal basis	Pertinencia
3 Third parties' rights and FPIC			
3.1. Substantive third parties' rights are respected	3.1.1. Agricultural activity respects the protection of cultural heritage and does not generate or minimises impacts on sites, resources and habitats of cultural, archaeological or historical importance to indigenous communities.	• 1991 Constitution: Recognises the right to cultural heritage and the State's duty to protect it. • Law 45 of 1983: Approves the 1972 UNESCO Convention for the Protection of the World Cultural and Natural Heritage. • Law 21 of 1991: Approves ILO Convention 169, protecting the territorial and cultural rights of indigenous peoples. • Law 388 of 1997 (Art. 10, amended by Law 2294 of 2023): Includes cultural heritage as a determining factor in land use planning. • Law 1185 of 2008: Amends the General Law on Culture, regulates tangible and intangible cultural heritage, and incorporates Special Management and Protection Plans (PEMP) into the POT. Art. 11. • Law 1448 of 2011: Guarantees the protection of sacred and cultural sites in the context of land restitution. • Resolution 2079 of 2011 (Mincultura): Declares the Coffee Cultural Landscape (PCC) as a National Cultural Heritage Site. • Resolution 0262 of 2022 (Mincultura): Establishes criteria for the identification, management, and sustainability of cultural landscapes.	Relevant
	3.1.2. Agricultural activity does not generate impacts that violate the rights of local communities and complies with legal requirements regarding the rights of local communities to enjoy a healthy environment.	• 1991 Constitution (Art. 79): Recognises the right to enjoy a healthy environment and the state's duty to protect environmental diversity and integrity. • 1991 Constitution (Art. 74): Guarantees the right of access to information, for implementation in environmental matters. • Constitutional jurisprudence: The Constitutional Court has defined this right as fundamental, enforceable by means of tutela, and as a cross-cutting principle of the legal system. • Law 99 of 1993: Creates the National Environmental System (SINA) and establishes principles of sustainability and citizen participation.	Not relevant This right concerns the condition of the soil and air and is therefore articulated in multiple related rights, which are covered more specifically in other categories of this tool.

Areas of law	Legal requirement	Legal basis	Pertinencia
3 Third parties' rights and FPIC			
3.1. Substantive third parties' rights are respected	3.1.2. Agricultural activity does not generate impacts that violate the rights of local communities and complies with legal requirements regarding the rights of local communities to enjoy a healthy environment.	● Decree 1076 of 2015: Compiles environmental regulations, regulates licences, management plans and participation mechanisms. ● Sectoral laws: These include Law 1252 of 2008 (solid waste) and Law 373 of 1997 (efficient use and conservation of water). ● International instruments: Colombia has ratified the Rio Convention (1992) on biodiversity, the Escazú Agreement (2022) on access to information and environmental justice, and the Minamata Convention (2013) on mercury control	
3.2. Procedural third-party rights are respected	3.2.1. The local population has been informed of the agricultural project through the environmental impact assessment process (if applicable).	● 1991 Constitution (Articles 79 and 80): Recognises the right to a healthy environment and establishes the state's duty to prevent and control environmental degradation, including the requirement for prior assessments. ● Law 99 of 1993: Creates the National Environmental System (SINA) and establishes the environmental licence as a mandatory instrument for projects, works or activities that may cause serious environmental damage, based on an Environmental Impact Assessment. ● Decree 1076 of 2015 (arts. 2.2.2.3.2.2. et seq.): Compiles environmental regulations and details the requirements, scope and content of Environmental Impact Assessments, as well as the procedures for obtaining environmental licences. ● Resolution 631 of 2015 and Resolution 1503 of 2010: Regulate technical aspects of spills and provide guidelines for preparing EIAs in specific sectors. ● Decree 2041 of 2014 (now incorporated into Decree 1076): Regulates the procedure for environmental licences and defined which activities require EIAs.	Not relevant Coffee growing in Colombia is carried out on small plots of land associated with family farming. In Colombia, there are no cases of large projects or plots that require an environmental impact assessment and, therefore, the implementation of the obligation to inform local populations of the activity is not required.

Areas of law	Legal requirement	Legal basis	Pertinencia
3 Third parties' rights and FPIC			
3.2. Procedural third-party rights are respected	3.2.1. The local population has been informed of the agricultural project through the environmental impact assessment process (if applicable).	• In general, agricultural crops are not subject to Environmental Impact Assessments, unless they are associated with large-scale projects that involve: • Significant transformation of specially protected areas, • Development in sensitive ecosystems (moorlands, wetlands, natural forests), • Related activities (dams, irrigation districts, processors, etc.) that do require an environmental licence and, therefore, an EIA.	
3.3. Rights of indigenous and Afro-Colombian peoples	3.3.1. The rights of indigenous and Afro-Colombian peoples are respected.	• 1991 Constitution (Articles 7, 8, 246, 286, 287, 330, Transitional Provision 56): Recognises ethnic and cultural diversity, protects territories, grants autonomy and jurisdiction to indigenous peoples, and guarantees participation in decisions on natural resources. • Law 21 of 1991: Approves ILO Convention 169, which ensures self-determination, prior consultation, and respect for ancestral territories. • Law 89 of 1890: Recognises the autonomy of indigenous reserves in economic and social governance according to their customs and traditions. • Law 160 of 1994 (art. 94): Guarantees access to land and recognises ethnic particularities in rural development. • Decree 1088 of 1993: Regulates the creation of associations of indigenous councils and traditional authorities. • Decree 2001 of 1998: Regulates the constitution of indigenous reserves. • Decree 2333 of 2014: Protects lands ancestrally occupied by indigenous peoples. • Decree 1953 of 2014: Establishes a special regime for the administration of indigenous territories. • Decree Law 4633 of 2011: Creates measures for comprehensive reparation and restitution of territorial rights to indigenous communities that are victims of the conflict.	Relevant

Areas of law	Legal requirement	Legal basis	Pertinencia
3 Third parties' rights and FPIC			
3.3. Rights of indigenous and Afro-Colombian peoples	3.3.1. The rights of indigenous and Afro-Colombian peoples are respected.	• Decree 1500 of 2018: Recognises the Línea Negra as the ancestral territory of the peoples of the Sierra Nevada. • Decree 1320 of 1998: Regulates prior consultation for indigenous and Afro-Colombian communities. • Decree 2613 of 2016: Adopts a protocol for inter-institutional coordination for prior consultation. • Environmental laws and decrees (Law 165 of 1994, Decrees 870/2017 and 1007/2018): Promotes the participation of ethnic communities in conservation, access to genetic resources and benefits for traditional knowledge.	
3.4. Free, Prior and Informed Consent (FPIC).	3.4.1. If agricultural activity generates potential impacts on ethnic communities, the FPIC or Prior Consultation process was respected..	• 1991 Constitution (Articles 2, 7, 8, 13, 63, 330, Transitory Provisions 55 and 56): Recognises ethnic diversity, protects collective territories and guarantees participation in decisions that affect them. • Law 21 of 1991: Approves ILO Convention 169, which establishes the right to prior consultation of indigenous and tribal peoples. • Law 70 of 1993: Extends this right to Afro-Colombian communities, especially in projects involving the use of their territories. • Law 99 of 1993: Incorporates the participation of ethnic communities in environmental management. • Law 160 of 1994: Reinforces ethnic participation in agrarian reform and rural development. • Law 1753 of 2015 (PND): Reiterates prior consultation as a requirement in projects that affect ethnic rights or territories. • Law 2294 of 2023 (PND 2022-2026): Consolidates the duty of prior consultation in policies, plans, and projects involving ethnic communities. • Decree 1320 of 1998: Regulates the prior consultation procedure in natural resource exploitation projects	Relevant

Areas of law	Legal requirement	Legal basis	Pertinencia
3 Third parties' rights and FPIC			
3.4. Free, Prior and Informed Consent (FPIC).	3.4.1. If agricultural activity generates potential impacts on ethnic communities, the FPIC or Prior Consultation process was respected. .	• Decree 1069 of 2015 (DUR environment sector): Compiles standards on participation and administrative procedures for prior consultation. • Decree 1500 of 2018: Recognises the Black Line as the ancestral territory of the peoples of the Sierra Nevada, with special protection. • Decree 2353 of 2019: Defines the functions of the Technical Subdirector for Prior Consultation. • Presidential Directive 2013: Guides the implementation of prior consultation in state projects, works or activities. In Colombia, it is important to highlight the difference between the following concepts: • Prior Consultation: The right of indigenous and Afro-Colombian communities to be informed and participate in decisions that may affect them, with the aim of reaching an agreement, but without implying that their consent is mandatory. • Free, Prior and Informed Consent (FPIC, in the strict sense): This goes beyond consultation, as it requires the explicit authorisation of the community. In Colombia, mandatory consent is required only in exceptional cases: • Relocation or resettlement of communities. • Storage or disposal of hazardous waste within their territories. • Projects with significant impacts that threaten their physical or cultural survival.	



Labour rights*

The **Colombian labour framework**, based on the **Substantive Labour Code (Código Sustantivo de Trabajo, CST)** and supplemented by various laws, establishes the basis for regulating relations between employers and workers in all economic sectors. This code sets out various types of contracts that adapted to the nature of the activities and the duration of the employment relationship. According to Article 23 of the CST, an **employment contract** requires three essential elements, namely (i) the personal activity of the worker, (ii) the subordination or dependence of the worker on the employer, and (iii) a salary as remuneration for the service. If any of these elements is missing, the employment relationship is not established. It is therefore understood that in cases of subsistence family economy, there are **generally** no employment relationships. A **contract for work or labour** is used for specific tasks or projects and ends once its purpose has been fulfilled, although it is not commonly used in agricultural activities. A **fixed-term contract** has a specific duration that cannot exceed three years and must be formalised in writing, while an **indefinite-term contract** has no end date and can be agreed orally or in writing. There are also special types of contracts, such as **apprenticeship contracts**, which provide practical training for young people for a maximum of two years, and **occasional or temporary contracts**, which are used for non-routine, short-term work lasting up to 30 days.

With regard to **working hours**, Colombian legislation has introduced measures to increase flexibility and gradually reduce working hours. **Law 2101 of 2021** established the maximum weekly working hours at 42 hours, distributed over days agreed between the parties, while **Article 161 of the CST** sets the daily limit at eight hours. These provisions seek to balance productivity with worker welfare. In terms of wages, the code distinguishes between **fixed, variable, comprehensive and in-kind wages**, ensuring compliance with the **current legal minimum wage**, which is adjusted annually.

The CST also establishes **employers' obligations regarding occupational health** and safety, requiring adequate conditions, protective equipment, and preventive measures to avoid accidents or occupational diseases. At the same time, **equal treatment and non-discrimination** are fundamental principles recognised by the Constitution and international ILO conventions, guaranteeing that all workers — regardless of gender, race or social status — have the same rights and opportunities.

Freedom of association, protected by Article 39 of the 1991 Constitution, gives workers and employers the right to associate to defend their interests. The CST specifies the requirements for creating trade unions, promoting dialogue and collective bargaining as pillars of labour relations. In terms of social security, all employers must enrol their workers in **health, pension and occupational risk** systems, while independent contractors are responsible for their own enrolment and contributions, under the supervision of the contracting party.

Law 2114 of 2021 and Law 1822 of 2017 consolidated the extension of **maternity leave** to 18 weeks and **paternity leave** to eight working days, in addition to recognising leave for bereavement and family emergencies. Finally, **Law 1010 of 2006, supplemented by Law 2365 of 2024**, strengthened protection against **workplace and sexual harassment**, establishing mechanisms for prevention, reporting and punishment within work environments.

These regulations aim to promote fairer, safer, and more equitable labour relations, balancing respect for workers' dignity with business productivity and the country's economic development. However, it is acknowledged that the system and standards are still not fully adapted to the realities and conditions of rural areas.

NB: According to cross-referenced data from DANE and FNC, 76% of coffee growers produce coffee through smallholder, family and community farming without permanent employees. Twenty-six per cent of other coffee growers hire at least one permanent worker. According to data from the National Agricultural Survey (DANE, 2019), around 80% fit the definition of family farming, where the workforce, as the name suggests, is essentially family-based. In addition, a study on coffee pickers found that around 45% of them are producers in small family agricultural production units (less than 1 ha). On the other hand, around 20% of pickers are interdepartmental itinerant workers,

i.e., they migrate throughout the coffee-growing area following the harvest to maximise their income from this activity. The remainder, or 35%, are intradepartmental itinerant workers (Ensayos de Economía Cafetera, No. 32 (2016/17).

It should be noted that the analyses and conclusions obtained were based on general trends, without precluding exceptions. Moreover, 96.7% of coffee growers in Colombia have less than 5 hectares (SICA 2024), which means that, for the most part, they are small producers operating subsistence-oriented family economies, without prejudice to exceptions.

Categoría legal	Requisito legal	Bases legales	Pertinencia
4. Derechos laborales			
4.1. Employment contracts	4.1.1. If the producer hires workers, they must do so under a fixed-term, indefinite apprenticeship, or temporary, occasional, or casual contract (written or oral), in accordance with the conditions stipulated by law	Substantive Labour Code (CST): Regulates types of contract (work or labour, fixed-term, indefinite, apprenticeship, temporary or occasional), which also apply to the agricultural sector, although there are gaps in relation to the temporary and itinerant nature of rural work. Resolution 464 of 2017 (Ministry of Agriculture): Defines guidelines for Peasant, Family and Community Agriculture (ACFC), establishing that at least 50% of the workforce must be family or community members. Implementation in the coffee sector: General labour regulations are not fully adapted to the particularities of coffee farming, which is characterised by high seasonality and itinerant employment. This leads to high levels of informality, as noted in the Coffee Watch study (2021). The lack of written contracts is often interpreted as informality, which should not be interpreted as illegality, given that oral contracts are valid under the law.	Relevant for production plots larger than 5 hectares

Categoría legal	Requisito legal	Bases legales	Pertinencia
4. Derechos laborales			
4.1. Employment contracts	4.1.1. If the producer hires workers, they must do so under a fixed-term, indefinite apprenticeship, or temporary, occasional, or casual contract (written or oral), in accordance with the conditions stipulated by law	The implementation of Article 39 of the CST is as follows: • As a general rule, employment contracts in Colombia may be agreed orally or in writing. • Exception: when the law requires the contract to be in writing, as in the following cases: - Fixed-term contract (Art. 46 CST): must be in writing and indicate the duration. - Apprenticeship contract (Law 789 of 2002, Art. 30): must be in writing. - Foreign workers: the immigration authority usually requires a written contract for visa and permit purposes Therefore, if an oral contract does not comply with the mandatory requirements for written contracts, it is automatically deemed an indefinite-term contract.	Relevant for production plots larger than 5 hectares
4.2. Working hours	4.2.1. If the producer hires permanent workers, they must not exceed the working hours established by law, and if they do, overtime and Sunday work must be remunerated.	Colombian labour law establishes a maximum weekly working week of 42 hours (Law 2101). In addition, Law 789 allows for flexible working hours • Law 2101: of 2021: Establishes a maximum number of working hours per week. • Law 789 of 2002: Permits flexible working hours. • Substantive Labour Code, Articles 160 and 161: Establishes maximum working hours with exceptions. • Resolution 464 of 2017: Identifies family farming and community farming with working hours integrated into family routines. • Law 2101 of 2021, Art. 2.: Amends Article 161 of the CST, gradually reducing the working week from 48 to 42 hours, with a 2-hour reduction each year until the 42-hour limit is reached in 2026.	Relevant for production plots larger than 5 hectares

Categoría legal	Requisito legal	Bases legales	Pertinencia
4. Derechos laborales			
4.3. Minimum wage	4.3.1. Workers' wages must not be lower than the minimum stipulated by law.	Substantive Labour Code: Establishes the minimum wage each year. There are also fixed wages, which are paid on a regular basis; variable wages, which depend on conditions such as hours or targets; comprehensive wages, which include benefits such as bonuses and severance pay; and wages in kind, which are paid with goods or services. Articles 45 and 46 regulate payment for contracted work or labour.	Relevant for production plots larger than 5 hectares
4.4. Personal protective equipment	4.4.1. The employer must provide protective equipment and training to workers who perform risky activities.	Substantive Labour Code, Articles 56, 57 and 348: Establishes [the employer's] obligations regarding the protection and safety of workers. In Colombia, employers in the agricultural sector are legally obliged to: • Provide personal protective equipment (PPE) appropriate to the risks. • Train workers in prevention, risk management and the use of PPE. • Document these processes as part of the SG-SST. This applies without exception to activities in coffee cultivation. Although many workers are informal, the standard remains enforceable, particularly in the event of an inspection or an accident. Decree 1072 of 2015 and Resolution 0312 of 2019: On the protection of workers in agricultural work. Law 55 of 1993: Approves "Convention No. 170 and Recommendation No. 177 on Safety in the Use of Chemicals at Work", adopted by the 77th Session of the ILO General Conference, Geneva, 1990. Article 10 of Convention 170.	Relevant for production plots larger than 5 hectares

Categoría legal	Requisito legal	Bases legales	Pertinencia
4. Derechos laborales			
4.5. Absence of discrimination	4.5.1. For equal work capacities and conditions, there is no discrimination between workers based on gender, race, religion, age or other conditions.	In Colombia, the legal framework guarantees the right to equal treatment and non-discrimination in employment, in accordance with national legislation and international commitments. In the agricultural sector, all workers must enjoy the same rights, conditions and opportunities, regardless of their gender, race, age, sexual orientation, religion, disability or other personal or social condition. • Law 1496 of 2011: Establishes equal rights and guarantees for all workers. • Law 16 of 1972: Prohibits discrimination on the basis of race, sex, religion, language, opinions or social origin. • Law 1482 of 2011: Punishes acts of discrimination or racism. • Law 1257 of 2008 on discrimination and violence against women. • Law 2365 of 2024 on sexual harassment in the workplace. • Resolutions 4607 of 2022, 2110 of 2023 and Circulars 0062 of 2021 and 055 of 2024: Reinforce the obligation to prevent, report and punish discriminatory acts, as well as to promote inclusive and equitable practices in recruitment and labour management.	Relevant for production plots larger than 5 hectares
4.6. Freedom of association	4.6.1. Workers are free to join a trade union of their choice and cannot be penalised for doing so.	• 1991 Constitution, Art. 39: Recognises the right of workers and employers to form trade unions or professional associations to defend their interests. • Substantive Labour Code (CST), Articles 359 and 373: Regulates trade union rights and functions according to the number of workers (minimum of 25 employees to form a workers' union and minimum of 5 independent employees for an employers' union). • Law 584 of 2000: Reinforces guarantees of freedom of association.	Relevant for production plots with more than 25 permanent employees or a minimum of five independent employers for an employers' union

Categoría legal	Requisito legal	Bases legales	Pertinencia
4. Derechos laborales			
4.6. Freedom of association	4.6.1. Workers are free to join a trade union of their choice and cannot be penalised for doing so.	Summary: In Colombia, freedom of association is enshrined in Article 39 of the 1991 Constitution, which recognises the right of workers and employers to form trade unions or professional associations to defend their interests. This principle is developed in key legislation, including the Substantive Labour Code: Article 359 establishes that at least 25 members are required to form a workers' union and a minimum of five independent employers for an employers' union. In addition, Article 373 of the same Code assigns functions to trade unions such as studying the working conditions of their members and defending their labour rights. Law 83 of 1931 regulates basic aspects of trade unions, while Law 584 of 2000 reinforces guarantees of freedom of association. Finally, Article 292 of the Criminal Code (Law 599 of 2000) classifies any	
4.7. Social security	4.7.1. The employer complies with the current social security regime, including the payment of the corresponding contributions.	• 1991 Constitution (Articles 48 and 49): Establishes social security and health as fundamental rights that are mandatory and universal. • Substantive Labour Code (1950): Regulates labour relations in the country, with implementation also for rural workers. • Law 100 of 1993: Creates the Comprehensive Social Security System (health, pensions, occupational hazards, complementary social services). • Law 1562 of 2012: Strengthens the General Occupational Risk System, with implementation applicable to all activities, including agriculture and coffee farming. • Decree 1072 of 2015 (Single Regulatory Decree of the Labour Sector): Regulates the Occupational Health and Safety Management System (SG-SST), mandatory for all companies, including coffee farms.	Relevant for production plots larger than 5 hectares

Categoría legal	Requisito legal	Bases legales	Pertinencia
4. Derechos laborales			
4.8. Maternity, paternity, and other leave	4.8.1. The employer must grant pregnant women 18 weeks of maternity leave and fathers 8 days of paternity leave and pay leave benefits to both parents.	• Law 2114 of 2021: Regulates maternity and paternity leave. Maternity leave was extended to 18 weeks under Law 1822 of 2017. Paternity leave (CST, art. 236) is set at eight working days. Bereavement leave (CST, no. 10, art. 57) is set at five working days and leave for family emergencies (CST, art. 57, no. 6) has no fixed duration. In Colombia, maternity and paternity leave are paid and regulated by Law 2114 of 2021. Maternity leave was extended to 18 weeks under Law 1822 of 2017 and remains at that duration. Paternity leave (CST, art. 236) is set at eight working days. In addition, the Substantive Labour Code recognises five working days of bereavement leave (CST, Art. 57, No. 10) and leave for family emergencies, the duration of which is not fixed in advance (CST, Art. 57, No. 6).	Relevant for production plots larger than 5 hectaress
4.9. Workplace or sexual harassment	4.9.1. The employer shall adopt measures to prevent, address and punish workplace harassment and sexual harassment in the workplace, in accordance with current Colombian legislation.	• Law 1010 of 2006: Establishes a formal definition of workplace harassment. • Law 2365 of 2024: Broadens the scope of the legal framework by specifically incorporating sexual harassment in work and educational environments. • Law 1010 of 2006: Establishes prohibited behaviours, prevention mechanisms, and penalties for workplace harassment. The Colombian legal framework on workplace harassment is structured mainly around two laws: Law 1010 of 2006 establishes a formal definition of workplace harassment, understood as any persistent and demonstrable conduct towards a worker with the aim of instilling fear, intimidation, distress or demotivation. Law 2365 of 2024 broadened the scope of the legal framework by specifically incorporating sexual harassment in work and educational environments.	Relevant for production plots larger than 5 hectares



Human rights*

In Colombia, labour legislation establishes a solid framework for protecting children and young people from child labour and forms of labour exploitation. The **minimum age for working is 15**, subject to special conditions and prior authorisation from the Ministry of Labour or the competent authority. This framework seeks to ensure that the participation of adolescents in the world of work does not interfere with their right to education, health or holistic development.

Articles 171 and 424 of the **Substantive Labour Code (CST)** expressly prohibit the employment of minors under the age of 18 in work considered dangerous or unhealthy, such as work involving exposure to toxic substances, heavy machinery or physically hazardous conditions. This protection is reinforced by the **Childhood and Adolescence Code (Law 1098 of 2006)**, which regulates the working hours of adolescent workers, limiting them to a maximum of six hours per day and 30 hours per week for children aged 15 to 17. In addition, it prohibits night work—defined as work between 6:00 p.m. and 6:00 a.m.—and requires that any productive activity be carried out in safe environments that are compatible with their educational process.

At the international level, Colombia has incorporated fundamental commitments through instruments of the **International Labour Organisation (ILO)**. **Law 515 of 1999** ratified **Convention 138**, which sets the minimum age for admission to employment, and **Law 12 of 1991** ratified the **Convention on the Rights of the Child**, consolidating the State's obligation to protect minors from any form of economic exploitation. Similarly, **Law 1622 of 2013**, which established the Youth Citizenship Statute,

recognises special rights and guarantees for young people, strengthening their social and labour participation in dignified conditions.

In rural areas, child labour presents particular characteristics. Colombian law **does not prohibit family agricultural work** if it is occasional, light and within the context of family culture or the household economy. Under these conditions, such activities are considered a form of learning or family collaboration rather than a formal employment relationship. However, the law is clear that these activities must not affect the health, education or integrity of the minor, and must never involve economic exploitation or coercion.

The country has also taken strong measures against **forced labour** and **human trafficking**, in compliance with **ILO Conventions 29 and 105**, approved by **Law 23 of 1967** and developed by **Decree 1280 of 1997**. These instruments commit the Colombian State to eliminating all forms of labour imposed through threat or coercion. Accordingly, **Law 985 of 2005** criminalises and punishes human trafficking, recognising it as a modern form of slavery and labour exploitation.

Finally, **Article 59 of the CST** prohibits practices that may generate economic dependence or coercion, such as improper wage deductions or the withholding of documents, which could constitute evidence of forced labour. This regulatory framework seeks not only to prevent child and forced labour, but also to promote an ethical, dignified and safe working environment for all people, particularly those in vulnerable situations.

Areas of law	Legal requirement	Legal basis	Relevance
5. Human rights			
5.1. Child labour	5.1.1. Minors under the age of 18 are not employed in agricultural activities, and those over the age of 15 are permitted under the conditions dictated by law (permits, such as working hours, weekly hours and prohibition of dangerous work).	Substantive Labour Code, Arts. 171 and 424: In Colombia, labour legislation protects minors by establishing that the minimum age for working is 15 years, subject to prior authorisation and under conditions that do not affect their health or education. The Substantive Labour Code prohibits the employment of minors under the age of 18 in hazardous or dangerous work, and Law 1098 of 2006 (the Childhood and Adolescence Code) limits their working hours to a maximum of six hours per day and thirty hours per week, in addition to prohibiting night work between 6:00 p.m. and 6:00 a.m. These standards are complemented by international treaties ratified by Colombia, such as ILO Convention 138 and the Convention on the Rights of the Child, which reinforce the country's commitment to preventing child labour and ensuring the comprehensive protection of working adolescents, by guaranteeing that their employment is safe, educational and respectful of their rights. ● Law 1098 of 2006: Code on Children and Adolescents) limits their working hours: a maximum of 6 hours per day and 30 hours per week if the minor is between 15 and 17 years of age, provided that there is no employment relationship or exploitation. It prohibits night work, i.e. between 6:00 p.m. and 6:00 a.m., for all minors. With regard to work in family farming activities, it is not expressly prohibited if it is carried out on an occasional basis, is light work and is within the framework of the family culture or economy, without putting the health, integrity or education of the minor at risk. ● Law 12 of 1991: Ratifies the Convention on the Rights of the Child. ● Law 515 of 1999: Incorporates ILO Convention 138 on the minimum age for admission to employment. ● Law 1622 of 2013: Recognises specific rights and guarantees for young people. ● Resolution 3597 of 2013: Set the minimum age for entry into employment at 15 years. In Colombia, minors are expressly prohibited from working at night, as part of legal measures to protect their health, development and education.	Relevant for production plots larger than 5 hectares

Areas of law	Legal requirement	Legal basis	Relevance
5. Human rights			
5.2. Forced labour	5.2.1. 5.2.1. No one is forced or subjected to forced labour or practices that restrict freedom of employment	• Law 23 of 1967: Approves ILO Convention 29 on forced labour (1930) and Convention 105 on the abolition of forced labour (1957). • Decree 1280 of 1997: Implements Law 23, which obliges the State to eliminate any form of work demanded under threat or coercion. • Law 985 of 2005: Defines and punishes human trafficking, which is one of the contemporary forms of forced labour. • Substantive Labour Code, Art. 59: Prohibits practices that may generate economic coercion or undue dependence, such as unauthorised deductions from wages, which may be an indication of abusive or forced working conditions.	Relevant for production plots larger than 5 hectares



Tax, anti-corruption, trade and customs regulations

N.B. This is the only category in the EUDR that potentially affects entities throughout the supply chain in the country of production, rather than only at the level of the coffee production plot.

In the Colombian agricultural sector, taxation, trade and the fight against corruption are key elements in ensuring legality and transparency within the EUDR framework. Productive activity, particularly coffee production, is regulated by mechanisms such as parafiscal levies, which fund research programmes, technical assistance and institutional strengthening in the sector. These instruments, together with customs and trade controls, facilitate product traceability and strengthen trust in international markets. In addition, the organisational tradition of the coffee industry and the country's institutional strength have contributed to maintaining a low risk of corruption in coffee production and marketing, which supports the implementation of the standard due diligence requirements set by European regulations.

In Colombia, coffee production and trade are governed by an institutional system that clearly regulates taxation, trade and customs, contributing to a low-risk environment for corruption in this activity. Coffee exports are not subject to direct taxes but are subject to parafiscal contributions administered by the National Federation of Coffee

Growers. These contributions are used to finance extension services, guarantee coffee purchases through the National Coffee Fund, and support research, promotion and sustainability in the sector. In terms of customs, the country has a solid regulatory framework that guarantees the traceability and legality of exported beans, monitored by DIAN and aligned with internationally recognised standards. This scheme, combined with the highly organised nature of the coffee sector, allows the Colombian coffee value chain to be perceived as transparent and at low risk of corrupt practices, which is relevant in the context of the due diligence requirements established by the EUDR.

Coffee is recognised as a legal and traditional agricultural product, with a strongly institutionalised value chain backed by the National Federation of Coffee Growers and other state entities that ensure its traceability and transparency. Although there are economic sectors in the country that have been used for money laundering or other illicit practices, coffee has not been identified as a high-risk item due to its strict control systems, the formal nature of its exports, and the monitoring of parafiscal and customs contributions. Consequently, the risk of coffee farming being linked to corruption or money laundering is considered low, which strengthens confidence in this sector regarding the legality standards and due diligence required in international markets such as Europe.

Categoría legal	Requisito legal	Bases legales	Pertinencia
6 Taxation, anti-corruption, trade and customs			
6.1. Taxes Woul	6.1.1. Plots where agricultural production takes place pay the unified property tax when applicable.	In Colombia, the payment of the unified property tax is a legal obligation for owners, holders of legitimate possession, or lessees of rural and urban property. • Colombian Constitution, Art. 338): Establishes the authority of local authorities (municipalities and districts) to levy taxes such as property tax. • Law 44 of 1990: Establishes that this tax is levied on the cadastral value of the property and must be paid by the owner, holder or usufructuary. • Article 24, amended by Article 184 of Law 223 of 1995: Provides for compensation of property tax for plots recognised as national reserves, with the corresponding cost charged to the National Budget. • Municipal Tax Statute: Each municipality has its own statute detailing property tax rates, deadlines and exemptions.	Not relevant Not related to the objectives of the regulation. No specific allocation for issues related to
	6.1.2. Actors in the value chain who trade, process, or store agricultural products pay the Industry and Commerce Tax (ICA).	Agricultural activities themselves are not subject to ICA, but processes such as marketing, processing, packaging, storage, etc. carried out in urban or rural areas that involve industrial or commercial activity are. This tax primarily applies to individuals, associations, cooperatives, intermediaries and companies within the jurisdiction of the municipality where the activity is carried out. Law 14 of 1983: Defines activities that are and are not subject to ICA. Decree 1333 of 1986: Municipal regime authorising municipalities to collect ICA. Concepts of the Council of State: Clarify that pure agricultural cultivation is not subject to ICA, whereas associated industrial or commercial activities are. Article 259: Exempts agricultural production from ICA.	Not relevant Not related to the objectives of the regulation. No specific allocation for issues related to deforestation.

Categoría legal	Requisito legal	Bases legales	Pertinencia
6 Taxation, anti-corruption, trade and customs			
6.1. Taxes	6.1.3. Value chain actors pay income tax.	National Tax Statute (Decree 624 of 1989 and its amendments), Articles 1 to 365: Regulates income tax payments and the applicable caps defined by the DIAN according to the producer's income and degree of formalisation. Most small rural producers with low incomes are not required to pay this tax. Legal entities (companies, formal associations) must declare and pay income tax regardless of their income, with a general rate of 35% on taxable net income. Individuals must declare and pay income tax which exceeds approximately \$59,377,000 per year (about \$4,950,000 per month); gross assets exceeding \$190,854,000; and credit card purchases, deposits or investments exceeding certain thresholds. Some agricultural activities may be eligible for partial income exemptions or special treatment if they meet certain conditions (such as being a small rural business). Special cases: Producers covered by the Simple Taxation Regime (RST) pay a single simplified rate, which includes income tax, ICA and other taxes. Producers who join cooperatives or solidarity groups may have additional tax benefits. Law 1607 of 2012, Law 1819 of 2016, Law 1943 of 2018 and other subsequent laws have partially modified the income tax rules.	Not relevant Not related to the objectives of the regulation. No specific allocation for issues related to deforestation.
	6.1.4. Coffee buyers, processors, or exporters pay the parafiscal contributions defined by law.	In Colombia, parafiscal contributions are mandatory payments established by law that certain economic sectors must make to finance specific funds or services of common interest to the sector. They are not allocated to the general national budget, but to entities such as parafiscal funds, trade associations or technical institutes. In the agricultural sector, the contribution is usually levied at the point of purchase or export of the product. It applies to the coffee, cocoa and palm sectors as follows:	Relevant

Categoría legal	Requisito legal	Bases legales	Pertinencia
6 Taxation, anti-corruption, trade and customs			
6.1. Taxes	6.1.4. Coffee buyers, processors, or exporters pay the parafiscal contributions defined by law.	Law 222 of 1995 - Parafiscal Contributions: Mandatory levies that affect a specific and unique social group and are used for the benefit of the sector that pays them, implying a direct benefit to the group subject to the contribution. In accordance with the provisions of Articles 64, 65, and 66 of the Political Constitution, parafiscal contributions are particularly important in the agricultural sector, as they establish a legal imperative for the legislature to grant special treatment to this sector (C.E., 2012). Law 101 of 1993, Art. 29 , 30, and 32): Defines the sectors subject to this tax and how parafiscal funds are administered, including activities in the following areas: 1. Research, technology transfer, and technical advice and assistance 2. Health protection programmes 3. Marketing and competitiveness support programmes 4. Consumption promotion programmes (marketing and market development) 5. Economic, social and infrastructure programmes for the benefit of the sectors 6. Sustainability and environmental programme 7. Export promotion and consumption promotion 8. Support for supply and demand regulation 9. Production adjustment and health control	

Categoría legal	Requisito legal	Bases legales	Pertinencia
6 Taxation, anti-corruption, trade and customs			
6.1. Taxes	6.1.5. Exporters are responsible for paying customs duties and taxes as required by law..	Decree 390 of 2016 (New Customs Regulation): Establishes the general framework for customs management, including the treatment of goods, import and export procedures, and related tax obligations. Resolution 00041 of 11 May 2016: Regulates Decree 390, developing the operational and technical aspects necessary for its implementation. External Circular No. 000003 of 22 March 2016: Clarifies the implementation of paragraph 1 of Article 674 of Decree 390, providing guidance to operators on implementation of tax and customs standards. Resolution 46 of 2019, annexes 1 to 10: Defines supplements and details specific procedures on customs regimes and their tax implications. Decree 1165 of 2019: Establishes the current customs regime. Decree 920 of 2023: Introduces structural adjustments. Decree 659 of 2024: Amended certain articles of Decree 1165, updating key procedures. Decree 360 of 7 April 2021: Also forms part of the legal framework regulating these taxes in foreign trade Coffee Exporter Registration: Law 9 of 1991 and its amendments, Article 25; Law 1151 of 2007; Law 1337 of 2009; Resolution 05 of 2015 of the National Coffee Growers Committee; Decree 1714 of 2009; FoNC Administration Contract; Law 1589 of 2012 approving the <i>International Coffee Agreement of 2007</i>.	Relevant

Categoría legal	Requisito legal	Bases legales	Pertinencia
6 Taxation, anti-corruption, trade and customs			
6.1. Taxes	6.1.5. Exporters are responsible for customs duties and taxes as established by law.	Transport Guide for Coffee: Decree 1165 of 2019 of the Ministry of Finance and Public Credit; Current Customs Regulations. Document covering coffee cargo travelling through Colombian national territory to the port of shipment. Weighing Certificate: Decree 231 of 1938; Decree 1165 of 2019; Resolution 5 of 2015 of the National Coffee Growers Committee; FoNC Administration Contract. Document certifying the net weight of coffee destined for export and forming part of the supporting documents for the submission of the Shipment Authorisation Request for coffee. Quality Certification for Excelso Colombian Coffee: Article 23 of Law 9 of 1991; FoNC Administration Contract; Resolution 02 of 2016 of the National Coffee Growers Committee. Document certifying that the coffee meets the quality standards established by the National Committee for Excelso Colombian coffee intended for export. Coffee Contribution: Article 19 of Law 9 of 1991 and its amendments; Law 1151 of 2007; Law 1337 of 2009; FoNC Administration Contract; Resolution 005 of 2015; Decree 1173 of 1991; Current Customs Statute (Decree 1165 of 2019). Document certifying payment of the coffee contribution, payable by coffee producers in Colombia and collected at the time of export. These resources contribute to the funding of public coffee goods. Certificate of Origin from the ICO: International Coffee Agreement; 2018 Statistics Regulation (ICO). Document issued by the Federation of Coffee Growers, as the certification body in implementation of the International Coffee Agreement.	Relevant

Categoría legal	Requisito legal	Bases legales	Pertinencia
6 Taxation, anti-corruption, trade and customs			
6.1. Taxes	6.1.6. Actors in the chain pay value added tax (VAT).	Tax Statute Article 420: Defines the events that generate VAT. Article 421: Establishes what is considered a "sale" for VAT purposes. Law 1819 of 2016: Introduced relevant modifications to the VAT regime. Decree 4048 of 2008: Regulates the DIAN's authority to interpret tax standards.	Not relevant Not related to the objectives of the regulation. No specific allocation for issues related to deforestation.n

Annex 3.

Consultations carried out

The process of identifying the legal requirements applicable to coffee chains under the European Union Regulation on Deforestation-free Products (EUDR) was carried in Colombia as a collaboration between various public, private and civil society entities. The National Federation of Coffee Growers (FNC) provided significant leadership, supported by EFI through the Technical Facility on Deforestation-free Value Chains¹¹, with additional backing for stakeholder management and communications from the Traceability and Sustainability of Export Products project, implemented by the Particip and Idem Concept consortium (TRACE COL), funded by the European Union. EFI, TRACE COL, the Ministry of Agriculture and Rural Development, and SwissContact formed the committee that acted as the technical secretariat and coordinated the development of the process.

The purpose of the process was to develop, with technical and political legitimacy, the proposal for legal requirements described in this document to guide operators in the implementation of the EUDR, while ensuring competitiveness in international markets and sustainability in Peruvian Colombian agricultural production. From the outset, the process was conceived as a transparent, inclusive exercise based on open dialogue, integrating the voices of public entities, business associations, export companies, producer organisations, regional governments, civil society and academia.

Although the tool is based on the work of national and international experts in law and due diligence, its greatest contribution has come through technical consultation with all national and international

actors in the coffee sector, including the Ministry of Trade, Industry and Tourism, Ministry of Agriculture and Rural Development, Ministry of Environment and Sustainable Development, the Rural Agricultural Planning Unit (UPRA), and ProColombia, as well as trade associations such as the National Federation of Coffee Growers (FNC), Asoexport, the APS Colombia Corporation, the National Association of Industrialists (ANDI), and civil society organisations.

The legal mapping was based on analyses of the Colombian regulatory framework carried out by the Coffee, Forest and Climate Agreement, ANDI and the Federation of Coffee Growers. Based on these analyses and using the taxonomy proposed by EFI and Preferred by Nature, Dr Jaime Augusto Correa Medina, a Colombian lawyer with a PhD in Law from the Externado University of Colombia specialising in procedural and agricultural law, and a researcher and lecturer, was commissioned by EFI to compile the relevant national regulations. He also developed concepts on certain legal requirements, such as regulations related to deforestation and forest use, and participated in deliberation sessions with actors in the chain to clarify the concerns and strengthen the debates.

The first step of the dialogue process involved a technical and legal review and the definition of the parameters of Annex 2. Below are some of the most important working sessions of the process, for which many more bilateral sessions were held with government entities, companies and civil society organisations:

11. Programa financiado por la Unión Europea y supervisado por la Dirección General de Alianzas Internacionales de la Comisión Europea (DG INTPA)

- November 2024 and January 2025: Working sessions of the Technical Working Group on legality to consolidate, review and adjust the "EUDR Colombia Legality Matrix", identifying key aspects of legal implementation in Colombia in relation to the EUDR and addressing issues such as land tenure, restitution and expropriation.
- 8 April 2025: The technical working group met at the EU delegation for a session on reviewing the legal requirements.
- 29 May 2025: A hybrid meeting was held at the Bankers' Club-Asoexport, attended by more than 60 participants to discuss progress and receive feedback from stakeholders in the coffee sector, government, trade associations and civil society on the progress of the analysis.
- 29 July 2025: A hybrid multi-stakeholder meeting was held to review the risk matrix and the level of implementation for the coffee sector.
- 2 September 2025: Working meeting with the Coffee Growers Federation, the UPRA, the European Union Delegation and the Ministry of Environment and Sustainable Development.
- 7 October 2025: Meeting with an expanded group to share and obtain feedback on the final results of the analysis of the legal requirements relevant to the coffee sector and the analysis of the level of implementation of these requirements, as well as the proposed actions for due diligence.



